AN ARGUMENT FROM THE CHURCH'S OWN WORDS

The Case for Sedevacantism: An Argument from the Church's Own Words

Every quotation is given with its source so it can be checked. Where the other side has a reply, the reply is stated.

Before the Council After the Council The contradiction Anathema or solemn definition

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Summary

This paper argues that the men who have claimed the papacy since the Second Vatican Council (1962–1965) do not hold the authority of the Roman Pontiff, and that the Apostolic See is therefore vacant (*sede vacante*).

It uses no private revelation and no new theology. It argues from texts that every Catholic accepts: popes, councils, the Code of Canon Law and the standard theology manuals. Every quotation is given with its source so that it can be checked. Where the other side has a reply, the reply is stated.

The argument has four steps:

1. **The Church cannot teach error, impose harmful universal laws, or give her children invalid or doubtful sacraments.** This follows from her divine constitution.
2. **The post-conciliar authorities have done these things.** Their official teaching and law contradict what the Church taught and legislated before the Council, sometimes in almost the same words. The paper sets out more than twenty such contradictions side by side, each with the fuller passage, its context, and the other side's reply.
3. **One who holds the Church's authority cannot do these things.** So the authority that did them is not the authority of the Church.
4. **The same Catholic theology explains how this is possible.** A public heretic is not a member of the Church and cannot be her head, and the Church can survive a long vacancy of the Holy See.

Section 8 explains why a Catholic cannot give the assent Rome requires to Vatican II, taking *Nostra Aetate* as the test case. Section 9 examines each claimant from John XXIII to Leo XIV in his own words, and grades every charge honestly. The strongest objection, that the Church must remain visible with a hierarchy, is answered in section 10, including the question that remains open.

1. What is being claimed, and what is not

What is claimed. The Catholic Church still exists, with her faith, her sacraments and her divine constitution. The Holy See is vacant because the claimants since the Council have publicly professed and imposed doctrines that the Church condemned, and a public heretic cannot hold office in the Church.

What is not claimed.

- It is not a denial of the papacy. The argument depends on the papacy: it is precisely because the pope's teaching and laws are protected by God that the conciliar teaching and laws cannot come from a pope.
- It is not private judgment. The contradictions are between public, official documents. Comparing two published texts is not a private opinion about anyone's soul.
- It is not a claim to have authority to depose anyone. Catholic canon law teaches that public defection from the faith empties an office *of itself*, "without any declaration" (canon 188 §4, below).
- It is not a claim that every Catholic who attends the new rites is personally guilty. Ignorance and good faith are real. The argument concerns the authority that promulgated the changes.

2. Three principles every Catholic accepts

Principle 1: The Church cannot give error or evil

Vatican I, *Pastor Aeternus* ch. 4 §§6–7 (1870; EWTN translation):
"6. For the Holy Spirit was promised to the successors of Peter not so that they might, by his revelation, make known some new doctrine, but that, by his assistance, they might religiously guard and faithfully expound the revelation or deposit of faith transmitted by the apostles. Indeed, their apostolic teaching was embraced by all the venerable fathers and reverenced and followed by all the holy orthodox doctors, for they knew very well that **this See of St. Peter always remains unblemished by any error**, in accordance with the divine promise of our Lord and Savior to the prince of his disciples: I have prayed for you that your faith may not fail; and when you have turned again, strengthen your brethren [60]. 7. **This gift of truth and never-failing faith was therefore divinely conferred on Peter and his successors in this See** so that they might discharge their exalted office for the salvation of all, and so that **the whole flock of Christ might be kept away by them from the poisonous food of error** and be nourished with the sustenance of heavenly doctrine. Thus the tendency to schism is removed and the whole Church is preserved in unity, and, resting on its foundation, can stand firm against the gates of hell."

Context: These paragraphs are the historical preamble to the definition of papal infallibility. The definition itself follows in §9 and is narrower: the Roman Pontiff is infallible "when the Roman Pontiff speaks EX CATHEDRA, that is, when, in the exercise of his office as shepherd and teacher of all Christians, in virtue of his supreme apostolic authority, he defines a doctrine concerning faith or morals to be held by the whole Church". Paragraph 6 also says what the assistance is for: to guard the deposit, not to make known "some new doctrine".

Pius XII, *Mystici Corporis* §66 (1943):
"And if at times there appears in the Church something that indicates the weakness of our human nature, it should not be attributed to her juridical constitution, but rather to that regrettable inclination to evil found in each individual, which its Divine Founder permits even at times in the most exalted members of His Mystical Body, for the purpose of testing the virtue of the Shepherds no less than of the flocks, and that all may increase the merit of their Christian faith. For, as We said above, Christ did not wish to exclude sinners from His Church; hence if some of her members are suffering from spiritual maladies, that is no reason why we should lessen our love for the Church, but rather a reason why we should increase our devotion to her members. Certainly **the loving Mother is spotless in the Sacraments by which she gives birth to and nourishes her children; in the faith which she has always preserved inviolate; in her sacred laws imposed on all**; in the evangelical counsels which she recommends; in those heavenly gifts and extraordinary grace through which with inexhaustible fecundity,[130] she generates hosts of martyrs, virgins and confessors. But it cannot be laid to her charge if some members fall, weak or wounded. …"

Context: Pius XII is answering those who set a "juridical" Church against a Church of charity. He grants that personal sin is found "even at times in the most exalted members", Shepherds included. He then sets apart what is never the Church's fault: her sacraments, her faith and the laws she imposes on all. The paragraph goes on to the Church's prayer for her fallen members.

Council of Trent, Session 22 (17 September 1562), ch. 5 and canon 7:
"And whereas such is the nature of man, that, without external helps, he cannot easily be raised to the meditation of divine things; therefore has holy Mother Church instituted certain rites, to wit that certain things be pronounced in the mass in a low, and others in a louder, tone. She has likewise employed ceremonies, such as mystic benedictions, lights, incense, vestments, and many other things of this kind, derived from an apostolical discipline and tradition, whereby both the majesty of so great a sacrifice might be recommended, and the minds of the faithful be excited, by those visible signs of religion and piety, to the contemplation of those most sublime things which are hidden in this sacrifice."
"CANON VII.–**If any one saith, that the ceremonies, vestments, and outward signs, which the Catholic Church makes use of in the celebration of masses, are incentives to impiety, rather than offices of piety; let him be anathema.**"

Context: Session 22 is Trent's decree on the Sacrifice of the Mass. Chapter 5 explains why the Church uses ceremonies, and canon 7 condemns the Protestant charge that they lead to impiety. The canon names the ceremonies "which the Catholic Church makes use of". Applying it to rites promulgated later is this paper's inference: if a rite is truly the Church's, it falls under the same protection.

CONDEMNED · Pius VI, *Auctorem Fidei* (1794), proposition 78 (Denzinger 1578):
"The prescription of the synod about the order of transacting business in the conferences, in which, after it prefaced 'in every article that which pertains to faith and to the essence of religion must be distinuished from that which is proper to discipline,' it adds, 'in this itself (discipline) there is to be distinguished what is necessary or useful to retain the faithful in spirit, from that which is useless or too burdensome for the liberty of the sons of the new Covenant to endure, but more so, from that which is dangerous or harmful, namely, leading to superstitution and materialism'; in so far as by the generality of the words it includes and submits to a prescribed examination even the discipline established and approved by the Church, **as if the Church which is ruled by the Spirit of God could have established discipline which is not only useless and burdensome for Christian liberty to endure, but which is even dangerous and harmful** and leading to superstition and materialism,–**false, rash, scandalous, dangerous, offensive to pious ears, injurious to the Church and to the Spirit of God by whom it is guided, at least erroneous.**"

Context: Pius VI is condemning, one by one, propositions of the Jansenist Synod of Pistoia (1786). The synod proposed to sift the Church's approved discipline for what was "dangerous or harmful". This is a solemn papal condemnation with theological censures, not a conciliar anathema; "at least erroneous" is a note below heresy. "Distinuished" and "superstitution" are misprints in the Deferrari translation.

The Church's faith, her universal laws and her rites are protected. The solemn definition of 1870 is limited to *ex cathedra* teaching. The protection of the Church's universal laws and rites rests on texts like *Mystici Corporis* §66, Trent's canon 7 and Pius VI's condemnation of the opposite opinion. A Catholic cannot hold that the Church's authority imposed on the whole Church a doctrine she had condemned, a law contrary to faith, or a rite that endangers the sacraments.

Principle 2: The meaning of dogma never changes

Vatican I, *Dei Filius* ch. 4 (1870; Tanner translation):
"For the doctrine of the faith which God has revealed is put forward not as some philosophical discovery capable of being perfected by human intelligence, but as a divine deposit committed to the spouse of Christ to be faithfully protected and infallibly promulgated. Hence, too, **that meaning of the sacred dogmas is ever to be maintained which has once been declared by holy mother church, and there must never be any abandonment of this sense under the pretext or in the name of a more profound understanding.** May understanding, knowledge and wisdom increase as ages and centuries roll along, and greatly and vigorously flourish, in each and all, in the individual and the whole church: but this only in its own proper kind, that is to say, **in the same doctrine, the same sense, and the same understanding**."
(Latin: "Hinc sacrorum quoque dogmatum is sensus perpetuo est retinendus, quem semel declaravit Sancta Mater Ecclesia, nec umquam ab eo sensu, altior intelligentiae specie et nomine, recedendum. Crescat igitur et multum vehementerque proficiat, tam singulorum, quam omnium, tam unius hominis, quam totius Ecclesiae, aetatum ac saeculorum gradibus, intelligentia, scientia, sapientia; sed in suo dumtaxat genere, in eodem scilicet dogmate, eodem sensu, eademque sententia.")

Context: This is the close of the chapter "On faith and reason". The sentences before it say that the sciences may use their own methods but must not intrude on faith. The council does allow growth in understanding, quoting St Vincent of Lérins, but only "in the same sense". The chapter ends with canons, below.

ANATHEMA · Vatican I, *Dei Filius*, canons on faith and reason, canon 3 (Tanner translation):
"3. **If anyone says that it is possible that at some time, given the advancement of knowledge, a sense may be assigned to the dogmas propounded by the church which is different from that which the church has understood and understands: let him be anathema.**"

Context: this canon attaches the council's anathema to the teaching of chapter 4 just quoted. Canon 2, before it, condemns anyone who says that human sciences may hold as true conclusions "opposed to divine revelation".

> **Oath against Modernism** (Pius X, 1910), sworn by every priest until 1967:
> "Fourthly, I sincerely hold that the doctrine of faith was handed down to us from the apostles through the orthodox Fathers in exactly the same meaning and always in the same purport. Therefore, **I entirely reject the heretical' misrepresentation that dogmas evolve and change from one meaning to another different from the one which the Church held previously.** I also condemn every error according to which, in place of the divine deposit which has been given to the spouse of Christ to be carefully guarded by her, there is put a philosophical figment or product of a human conscience that has gradually been developed by human effort and will continue to develop indefinitely."
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> *Context:* This is the fourth article of the oath, which was prescribed for "all clergy, pastors, confessors, preachers, religious superiors, and professors in philosophical-theological seminaries". The articles before it profess that God can be known by reason, that miracles prove revelation, and that Christ founded the Church on Peter. The stray apostrophe after "heretical" is in the source.

Doctrine can be understood more deeply, but only "in the same doctrine, the same sense, and the same understanding" (*in eodem scilicet dogmate, eodem sensu, eademque sententia, Dei Filius*). A later teaching that says the opposite of an earlier one is not development.

Principle 3: A public heretic is not a member of the Church and cannot hold office in her

Pius XII, *Mystici Corporis* §§22–23:
"22. **Actually only those are to be included as members of the Church who have been baptized and profess the true faith, and who have not been so unfortunate as to separate themselves from the unity of the Body**, or been excluded by legitimate authority for grave faults committed. "For in one spirit" says the Apostle, "were we all baptized into one Body, whether Jews or Gentiles, whether bond or free."[17] As therefore in the true Christian community there is only one Body, one Spirit, one Lord, and one Baptism, so there can be only one faith.[18] And therefore, if a man refuse to hear the Church, let him be considered - so the Lord commands - as a heathen and a publican. [19] **It follows that those who are divided in faith or government cannot be living in the unity of such a Body**, nor can they be living the life of its one Divine Spirit. 23. Nor must one imagine that the Body of the Church, just because it bears the name of Christ, is made up during the days of its earthly pilgrimage only of members conspicuous for their holiness … For **not every sin, however grave it may be, is such as of its own nature to sever a man from the Body of the Church, as does schism or heresy or apostasy.**"

Context: Pius XII is defining who belongs to the visible Church. Paragraph 23 goes on to say that sinners remain members as long as they keep faith and hope. Heresy, schism and apostasy are named as the sins that sever by their own nature. The passage is general: it speaks of members, not specifically of office-holders.

Code of Canon Law (1917), canon 188, 4°:
"**Ob tacitam renuntiationem ab ipso iure admissam** quaelibet officia vacant ipso facto et sine ulla declaratione, si clericus: … 4° **A fide catholica publice defecerit**; …"
(By tacit resignation admitted by the law itself, any offices whatever become vacant by the fact itself and without any declaration, if a cleric … 4° has publicly defected from the Catholic faith. Author's translation.)

Context: Canon 188 belongs to the canons on resignation of office. It lists eight acts that the law treats as a *tacit resignation*: the cleric is held to have given up his office himself, so no sentence is needed. The other acts include religious profession, attempted marriage and desertion of residence. The canon speaks of clerics and offices in general and does not name the papacy. Applying it to a pope depends on the theologians' teaching that a manifest heretic loses office (Bellarmine, below).

> **Mgr G. Van Noort**, *Christ's Church*, pp. 240–241:
> "Public heretics (and a fortiori, apostates) are not members of the Church. They are not members because they separate themselves from the unity of Catholic faith and from the external profession of that faith. … By the term public heretics at this point we mean all who externally deny a truth (for example Mary's Divine Maternity), or several truths of divine and Catholic faith, regardless of whether the one denying does so ignorantly and innocently (a merely material heretic), or wilfully and guiltily (a formal heretic). **It is certain that public, formal heretics are severed from Church membership.** It is the more common opinion that public, material heretics are likewise excluded from membership. Theological reasoning for this opinion is quite strong: **if public material heretics remained members of the Church, the visibility and unity of Christ's Church would perish.**"
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> *Context:* Van Noort is listing who is not a member of the Church, following *Mystici Corporis*. He calls the exclusion of public *formal* heretics certain, but the exclusion of public *material* heretics (those in good faith) only "the more common opinion". The OCR's line-end hyphens have been joined.

This is the view defended by St Robert Bellarmine (*De Romano Pontifice* II.30): one who is not a member of the Church cannot be her head.

Put together: if official, universal teaching and law since the Council contradict the Church's teaching and law, then either the Church has failed, which is impossible (Principle 1), or the authority that imposed them was not the Church's authority (Principle 3). The rest of this paper shows the contradictions.

The anathemas, and where they fall

An **anathema** is the Church's most solemn form of condemnation. General councils close their doctrinal decrees with canons in the form "If anyone says … let him be anathema". What such a canon condemns is heresy; what it affirms must be believed. Vatican I states what binds a Catholic's faith:

DEFINED · Vatican I, *Dei Filius* ch. 3 (Tanner translation):
"Wherefore, **by divine and catholic faith all those things are to be believed which are contained in the word of God as found in scripture and tradition, and which are proposed by the church as matters to be believed as divinely revealed, whether by her solemn judgment or in her ordinary and universal magisterium.**"

Context: the chapter is "On faith". The 1917 Code defines a heretic as one who, keeping the name of Christian, "pertinaciter aliquam ex veritatibus fide divina et catholica credendis denegat aut de ea dubitat" (pertinaciously denies or doubts one of the truths to be believed by divine and catholic faith) (canon 1325 §2).

Two cautions keep this honest. First, not every contradiction in this paper meets an anathema. The condemnations of religious liberty, for instance, are papal (Pius IX: "we reprobate, proscribe, and condemn"), not conciliar anathemas. Second, the post-conciliar documents rarely state an anathematised proposition in so many words; more often they teach or legislate in a way that sits against it. The table says which is which. Two anathemas are cited *against* the position of this paper; they are listed too and answered in section 10.

ANATHEMA OR DEFINITION	WHAT IT SAYS	WHERE IT BEARS	HOW DIRECTLY
Trent, Session 6, canons 4, 9 (1547)	Anathema to one who says that free will "nowise co-operates" and is "merely passive" in justification, or that "by faith alone the impious is justified" in the sense that nothing else need cooperate	4.6: Rome's 1999 *Joint Declaration* says the Lutheran teaching it presents "does not fall under the condemnations from the Council of Trent"	Direct: Rome itself addresses Trent's anathemas
Florence, *Cantate Domino* (1442); Lateran IV, const. 1 (1215)	Defined: outside the Church "nobody at all is saved"; "only for those who abide in it do the church's sacraments contribute to salvation"	4.3: separated communities as "means of salvation"	Direct in subject; the Council adds qualifiers
Vatican I, *Dei Filius*, canon on faith and reason 3 (1870)	Anathema to a new sense of dogma	Principle 2; 7.1	Governs every contradiction in this paper
Trent, Session 7, canon 13 (1547)	Anathema to saying the received rites may be changed "into other new ones"	7.4	Disputed: defenders say it binds lesser pastors, not the pope
Trent, Session 22, canons 1, 3 (1562)	Anathema to denying that the Mass is a true and propitiatory sacrifice	7.5: the 1969 definition of the Mass	Indirect: the 1969 text omits, it does not deny
Trent, Session 23, canon 7 (1563)	Anathema to denying that bishops have "the power of	6: what the episcopal form must signify	Indirect: defines the power, not the words

ANATHEMA OR DEFINITION	WHAT IT SAYS	WHERE IT BEARS	HOW DIRECTLY
	confirming and ordaining”		
Trent, Session 22, canon 7; Pius VI, *Auctorem Fidei* prop. 78	The Church’s ceremonies are not incentives to impiety; she cannot establish harmful discipline	Principle 1	The premise of the whole argument
Cited against this paper: Vatican I, *Pastor Aeternus* ch. 2, canon	Anathema to denying that Peter has “perpetual successors” by divine law	§10, visibility	Answered there
Cited against this paper: Trent, Session 23, canon 7, last clause	Anathema to saying that those “neither rightly ordained, nor sent, by ecclesiastical and canonical power” are lawful ministers	§10, jurisdiction	Answered there; it bears on all traditional clergy

3. Religious liberty

The Church taught that the State must profess the true religion, that error has no rights, and that non-Catholic worship may at most be *tolerated* for a grave reason. Vatican II declared a natural right, grounded in revelation, to practise any religion in public, limited only by the requirements of public order.

3.1 Liberty of worship as a personal right written into civil law

BEFORE · Pius IX, *Quanta Cura* §3 (1864), condemning the opinion that Gregory XVI had called *deliramentum* ("insanity"):

"And, against the doctrine of Scripture, of the Church, and of the Holy Fathers, they do not hesitate to assert that 'that is the best condition of civil society, in which no duty is recognized, as attached to the civil power, of restraining by enacted penalties, offenders against the Catholic religion, except so far as public peace may require.' From which totally false idea of social government they do not fear to foster that erroneous opinion, most fatal in its effects on the Catholic Church and the salvation of souls, called by Our Predecessor, Gregory XVI, an 'insanity,' viz., that '**liberty of conscience and worship is each man's personal right, which ought to be legally proclaimed and asserted in every rightly constituted society**; and that a right resides in the citizens to an absolute liberty, which should be restrained by no authority whether ecclesiastical or civil, whereby they may be able openly and publicly to manifest and declare any of their ideas whatever, either by word of mouth, by the press, or in any other way.' But, while they rashly affirm this, they do not think and consider that they are preaching 'liberty of perdition;' …"

Context: Pius IX is listing the opinions of those who apply "naturalism" to civil society and would govern it "without any distinction being made between the true religion and false ones". He presents the liberty-of-worship opinion as fostered by the one just before it (see 3.6). In §6 he condemns "all the singular and evil opinions and doctrines severally mentioned in this letter".

AFTER · Vatican II, *Dignitatis Humanae* §§1–2 (1965):

"Religious freedom, in turn, which men demand as necessary to fulfill their duty to worship God, has to do with immunity from coercion in civil society. Therefore it leaves untouched traditional Catholic doctrine on the moral duty of men and societies toward the true religion and toward the one Church of Christ. Over and above all this, the council intends to develop the doctrine of recent popes on the inviolable rights of the human person and the constitutional order of society.

2. This Vatican Council declares that **the human person has a right to religious freedom**. This freedom means that all men are to be immune from coercion on the part of individuals or of social groups and of any human power, in such wise that no one is to be forced to act in a manner contrary to his own beliefs, whether privately or publicly, whether alone or in association with others, within due limits. The council further declares that the right to religious freedom has its foundation in the very dignity of the human person as this dignity is known through the revealed word of God and by reason itself. **This right of the human person to religious freedom is to be recognized in the constitutional law whereby society is governed and thus it is to become a civil right.**"

Context: §1 first professes that "this one true religion subsists in the Catholic and Apostolic Church" and that all men are bound to seek the truth and embrace it. It then defines religious freedom as immunity from coercion. §2 states the right and its limit, which §7 defines as "public order" (see 3.6).

The contradiction: the first half of the condemned opinion and *Dignitatis Humanae* §2 have the same structure: a personal right to freedom of worship, which the law of every rightly constituted society must proclaim. The condemned opinion goes on to claim "an absolute liberty, which should be restrained by no authority". The Council does not teach that: its right is immunity from coercion "within due limits". This pair therefore does not settle the matter alone; it depends on 3.6, where Pius IX condemned the *limited* version too. He attached his full authority to the condemnation: "by our Apostolic authority, we reprobate, proscribe, and condemn all the singular and evil opinions and doctrines severally mentioned in this letter" (§6).

> **Objection:** *Dignitatis Humanae* means only freedom from coercion "within due limits", not the unlimited liberty Pius IX condemned. It also says it "leaves untouched traditional Catholic doctrine on the moral duty of men and societies toward the true religion" (§1). Fr Brian Harrison reports that his work helped Michael Davies (quoted at 3.4) "to see that there is no formal contradiction between Pius IX's 1864 encyclical Quanta Cura and the doctrine of Dignitatis Humanae".

> **Answer:** Pius IX did not condemn only unlimited liberty. In the same sentence he traces it to the opinion that the State has no duty to restrain offenders against the Catholic religion "except so far as public peace may require" (3.6). That is a *limited* liberty, bounded by public peace, and it is the same kind of limit the Council adopted. As for "leaves untouched", §1 asserts continuity but does not show it. The traditional doctrine on the duty of societies included the State's duty to restrain the public worship of false religions, which it could at most tolerate (3.3–3.6). If §§2–7 deny the State that power, the sentence in §1 cannot make them consistent with the earlier teaching. Whether they are consistent is the question at issue.

3.2 A right given by nature

BEFORE · Leo XIII, *Libertas* §42 (1888):
"From what has been said it follows that it is quite unlawful to demand, to defend, or to grant unconditional freedom of thought, of speech, or writing, or of worship, **as if these were so many rights given by nature to man**. For, if nature had really granted them, it would be lawful to refuse obedience to God, and there would be no restraint on human liberty. It likewise follows that **freedom in these things may be tolerated wherever there is just cause**, but only with such moderation as will prevent its degenerating into license and excess. And, where such liberties are in use, men should employ them in doing good, and should estimate them as the Church does; for liberty is to be regarded as legitimate in so far only as it affords greater facility for doing good, but no farther."

Context: §42 opens Leo XIII's practical conclusions, after his summary of the grades of liberalism (§§36–41). In §§33–34 he has explained that the State may tolerate evil for a greater good, but must confine that tolerance "to the limits which its justifying cause, the public welfare, requires" (see 3.3).

AFTER · *Dignitatis Humanae* §2:
"It is in accordance with their dignity as persons-that is, beings endowed with reason and free will and therefore privileged to bear personal responsibility-that all men should be at once impelled by nature and also bound by a moral obligation to seek the truth, especially religious truth. They are also bound to adhere to the truth, once it is known, and to order their whole lives in accord with the demands of truth. However, men cannot discharge these obligations in a manner in keeping with their own nature unless they enjoy immunity from external coercion as well as psychological freedom. Therefore **the right to religious freedom has its foundation not in the subjective disposition of the person, but in his very nature**."

Context: this paragraph follows the declaration of the right (3.1) and explains what it rests on. The next sentence (3.3) draws the consequence that the right persists even in those who neglect the truth. §9 adds that "this doctrine of freedom has roots in divine revelation".

The contradiction: Leo XIII denies that freedom of worship is a right given by nature, and classes whatever freedom may be allowed as something that "may be tolerated wherever there is just cause". The Council grounds freedom of worship in human nature itself, and adds that this dignity is known "through the revealed word of God and by reason itself" (§2).

> **Objection:** Leo XIII condemns as a natural right only *unconditional* freedom. The Council's right is conditioned ("within due limits"), so he did not condemn it.

> **Answer:** Leo's next sentence says what the conditioned freedom is: it "may be tolerated wherever there is just cause, but only with such moderation as will prevent its degenerating into license". A limited freedom of worship is therefore a concession by public authority for a just cause, not a right of nature. The Council makes that limited freedom itself a natural right. Government must recognise it in

> constitutional law (§2) and “assume the safeguard of the religious freedom of all its citizens, in an effective manner, by just laws” (§6).

3.3 Rights for those in error

BEFORE · Pius XII, *Ci Riesce* §V (1953):
"Could it be that *in certain circumstances* He would not give men any mandate, would not impose any duty, and would not even communicate the right to impede or to repress what is erroneous and false? A look at things as they are gives an affirmative answer. Reality shows that error and sin are in the world in great measure. God reprobates them, but He permits them to exist. Hence the affirmation: religious and moral error must always be impeded, when it is possible, because toleration of them is in itself immoral, is not valid *absolutely and unconditionally.* Moreover, God has not given even to human authority such an absolute and universal command in matters of faith and morality. … The duty of repressing moral and religious error cannot therefore be an ultimate norm of action. It must be subordinate to *higher and more general* norms, which *in some circumstances* permit, and even perhaps seem to indicate as the better policy, toleration of error in order to promote a *greater good.* Thus the two principles are clarified to which recourse must be had in concrete cases for the answer to the serious question concerning the attitude which the jurist, the statesman and the sovereign Catholic state is to adopt in consideration of the community of nations in regard to a formula of religious and moral toleration as described above. First: **that which does not correspond to truth or to the norm of morality objectively has no right to exist, to be spread or to be activated.** Secondly: failure to impede this with civil laws and coercive measures can nevertheless be justified in the interests of a higher and more general good."

Leo XIII, *Libertas* §§33–34: "For this reason, while **not conceding any right to anything save what is true and honest**, she does not forbid public authority to tolerate what is at variance with truth and justice, for the sake of avoiding some greater evil, or of obtaining or preserving some greater good. … But, to judge aright, we must acknowledge that, the more a State is driven to tolerate evil, the further is it from perfection; and that the tolerance of evil which is dictated by political prudence should be strictly confined to the limits which its justifying cause, the public welfare, requires. Wherefore, if such tolerance would be injurious to the public welfare, and entail greater evils on the State, it would not be lawful; for in such case the motive of good is wanting. And although in the extraordinary condition of these times the Church usually acquiesces in certain modern liberties, not because she prefers them in themselves, but because she judges it expedient to permit them, she would in happier times exercise her own liberty; and, by persuasion, exhortation, and entreaty would endeavor, as she is bound, to fulfill the duty assigned to her by God of providing for the eternal salvation of mankind. One thing, however, remains always true - that the liberty which is claimed for all to do all things is not, as We have often said, of itself desirable, inasmuch as **it is contrary to reason that error and truth should have equal rights**."

Context: Pius XII is addressing Catholic jurists on whether a Catholic State may join a community of nations whose rule would not hinder religions recognised in any member State. He answers that such toleration may be permitted for a higher good, which the Catholic statesman must judge in each case, and on which the Pope is "competent to speak in the last instance". The omitted words cite the parable of the cockle. Leo XIII is explaining how the Church permits toleration of evil while granting it no right; the omitted words compare this with God's permission of evil.

AFTER · *Dignitatis Humanae* §§2, 4:

"Therefore the right to religious freedom has its foundation not in the subjective disposition of the person, but in his very nature. In consequence, **the right to this immunity continues to exist even in those who do not live up to their obligation of seeking the truth and adhering to it and the exercise of this right is not to be impeded**, provided that just public order be observed."

§4: "Religious communities also have **the right not to be hindered in their public teaching and witness to their faith**, whether by the spoken or by the written word. However, in spreading religious faith and in introducing religious practices everyone ought at all times to refrain from any manner of action which might seem to carry a hint of coercion or of a kind of persuasion that would be dishonorable or unworthy, especially when dealing with poor or uneducated people. Such a manner of action would have to be considered an abuse of one's right and a violation of the right of others."

Context: the right is the immunity from coercion defined in §2 (3.1), and "public order" is defined in §7 (3.6). §4 applies the right to religious communities without distinguishing true from false religions.

The contradiction: Pius XII says that error has "no right … to be spread", and that a failure to impede it "can … be justified" by a higher good, case by case. The Council says that those who do not seek or hold the truth keep a right whose exercise "is not to be impeded", and that religious communities have "the right not to be hindered in their public teaching". Before, toleration was the exception and needed a justification. Now non-hindrance is the rule, and only public order justifies an exception.

> **Objection:** the right belongs to the person, not to the error: the Council grants immunity from coercion, not a right to spread error. Pius XII himself says that God may "not even communicate the right to impede or to repress what is erroneous and false". Fr Brian Harrison argues that this "seems to imply that those who propagate them do have a God-given right, under those circumstances, to be immune from such repression".

> **Answer:** Pius XII places the "non impedire" under his second principle. It is a *failure to impede* that "can nevertheless be justified" by a higher good, in some circumstances, as weighed by the Catholic statesman with the judgement of the Church. Leo XIII likewise allows tolerance while "not conceding any right to anything save what is true and honest". Neither makes non-hindrance a right that every person has by nature, still less one that persists in those who neglect the truth. The right in question is the right *to act publicly* on one's religion, that is, to spread and practise it, and §4 names it: "the right not to be hindered in their public teaching". Pius XII denied that very thing to error: it has no right "to be spread or to be activated".

3.4 Public worship of non-Catholic religions

BEFORE · *Syllabus of Errors* (1864), §X, "Errors having reference to modern liberalism", propositions 77–79 (all condemned):

"77. In the present day it is no longer expedient that the Catholic religion should be held as the only religion of the State, to the exclusion of all other forms of worship. — Allocution 'Nemo vestrum,' July 26, 1855.

78. **Hence it has been wisely decided by law, in some Catholic countries, that persons coming to reside therein shall enjoy the public exercise of their own peculiar worship.** — Allocution 'Acerbissimum,' Sept. 27, 1852.

79. Moreover, it is false that the civil liberty of every form of worship, and the full power, given to all, of overtly and publicly manifesting any opinions whatsoever and thoughts, conduce more easily to corrupt the morals and minds of the people, and to propagate the pest of indifferentism. — Allocution 'Nunquam fore,' Dec. 15, 1856."

Context: each proposition of the Syllabus is an error Pius IX had already condemned in an earlier act, which is cited after it. Proposition 78 opens with "Hence" and draws a consequence from 77: since the State's religion need no longer exclude other forms of worship, laws granting newcomers public worship are praised as wise.

AFTER · *Dignitatis Humanae* §4:

"The freedom or immunity from coercion in matters religious which is the endowment of persons as individuals is also to be recognized as their right when they act in community. Religious communities are a requirement of the social nature both of man and of religion itself. Provided the just demands of public order are observed, **religious communities rightfully claim freedom** in order that they may govern themselves according to their own norms, **honor the Supreme Being in public worship**, assist their members in the practice of the religious life, strengthen them by instruction, and promote institutions in which they may join together for the purpose of ordering their own lives in accordance with their religious principles."

Context: §4 extends the personal right of §2 to communities. It makes no exception for Catholic countries, and §6 (3.5) requires the same right even where one religion has special civil recognition.

The contradiction: the Syllabus condemns praising laws that grant non-Catholics public worship in Catholic countries. The Council declares that public worship a right. Michael Davies, a defender of the traditional Mass who did not hold the sedevacantist position, wrote: "One instance in which it appears impossible to deny the existence of a formal contradiction is that of Proposition 78 of the Syllabus … Dignitatis humanae most certainly appears to contradict [the Papal condemnation of] this proposition by teaching that non-Catholics shall enjoy the public exercise of their own peculiar worship in every Catholic country, hence the changes in the Spanish Constitution documented in Appendix III" (as quoted by Fr Brian Harrison). Davies stopped short of a verdict of his own: "I shall not claim that a contradiction exists."

> **Objection:** Harrison answers that proposition 78 concerns immigrants ("persons coming to reside therein"), and is "clearly a policy matter, involving not only questions of religious freedom as such, but matters of changeable civil law, such as immigration policies and the rights of non-citizens within a given State". Since §6 speaks of "citizens", "a Catholic nation could, without contravening Dignitatis Humanae, withhold permanent residence rights, citizenship, and full religious liberty from non-Catholic 'persons coming to reside therein'".

> **Answer:** the "Hence" ties 78 to 77, which is not about immigration. It is about whether the Catholic religion should be the only religion of the State "to the exclusion of all other forms of worship". Nor does the Council rest the right on citizenship: §2 grounds it in "the human person", and §4 gives it to "religious communities" as such. Harrison himself concedes that "I do not see how a Catholic government could prohibit all public non-Catholic propaganda 'without infringing the norms laid down by Vatican II'". He also grants that this freedom "was very quickly granted in such nations after the Council (and in its name), at the insistence of the Holy See itself". He treats this as a change of ecclesiastical law rather than of doctrine. But the Syllabus lists proposition 78 as an error, not as a policy.

3.5 The Catholic State

BEFORE · *Syllabus*, proposition 77 (condemned), under §X, "Errors having reference to modern liberalism":
"**In the present day it is no longer expedient that the Catholic religion should be held as the only religion of the State, to the exclusion of all other forms of worship.** — Allocution 'Nemo vestrum,' July 26, 1855."

Context: the error condemned is the claim that modern conditions make the exclusively Catholic State inexpedient. It is drawn from the allocution cited, and proposition 78 (3.4) draws its consequence ("Hence…").

AFTER · *Dignitatis Humanae* §6:
"Government is also to help create conditions favorable to the fostering of religious life, in order that the people may be truly enabled to exercise their religious rights and to fulfill their religious duties, and also in order that society itself may profit by the moral qualities of justice and peace which have their origin in men's faithfulness to God and to His holy will. **If, in view of peculiar circumstances obtaining among peoples, special civil recognition is given to one religious community** in the constitutional order of society, **it is at the same time imperative that the right of all citizens and religious communities to religious freedom should be recognized and made effective in practice.** Finally, government is to see to it that equality of citizens before the law, which is itself an element of the common good, is never violated, whether openly or covertly, for religious reasons. Nor is there to be discrimination among citizens."

Context: §6 opens by counting the care of religious freedom among the duties of government toward the common welfare, and says that "government is to assume the safeguard of the religious freedom of all its citizens". The "special civil recognition" sentence answers whether a confessional State remains possible.

The contradiction: the Catholic State, to the exclusion of other forms of worship, was the norm, and it was condemned to say otherwise. The Council allows special recognition for "peculiar circumstances", but never exclusion: it requires religious freedom for all and forbids "discrimination among citizens" for religious reasons. This was applied at once: Spain's organic law of 10 January 1967 rewrote Article 6 of its Charter, citing *Dignitatis Humanae* §2.

> **Objection:** §6 permits a Catholic State, and §1 keeps "the moral duty of men and societies toward the true religion". Harrison notes that the 1973 concordat between the Holy See and Colombia, "revised specifically in the light of Dignitatis Humanae, grants 'a privileged status to the Catholic Church'".

> **Answer:** proposition 77 does not concern privilege. It concerns exclusion: the Catholic religion as the only religion of the State "to the exclusion of all other forms of worship". That exclusion is exactly what §6 forbids. Recognition survives; the exclusively Catholic State, which it was condemned to call inexpedient, does not.

3.6 The State's duty to restrain false religion

BEFORE · *Quanta Cura* §3:

"For you well know, venerable brethren, that at this time men are found not a few who, applying to civil society the impious and absurd principle of 'naturalism,' as they call it, dare to teach that 'the best constitution of public society and (also) civil progress altogether require that human society be conducted and governed without regard being had to religion any more than if it did not exist; or, at least, without any distinction being made between the true religion and false ones.' And, against the doctrine of Scripture, of the Church, and of the Holy Fathers, they do not hesitate to assert that '**that is the best condition of civil society, in which no duty is recognized, as attached to the civil power, of restraining by enacted penalties, offenders against the Catholic religion, except so far as public peace may require.**' From which totally false idea of social government they do not fear to foster that erroneous opinion … called by Our Predecessor, Gregory XVI, an 'insanity' …"

Context: this is the opinion from which, Pius IX says, the "insanity" of 3.1 springs. The condemned opinion allows restraint, but only for the sake of public peace. What it denies is any duty of the civil power to restrain offenders against the Catholic religion as such.

AFTER · *Dignitatis Humanae* §3:

"There is a further consideration. The religious acts whereby men, in private and in public and out of a sense of personal conviction, direct their lives to God transcend by their very nature the order of terrestrial and temporal affairs. Government therefore ought indeed to take account of the religious life of the citizenry and show it favor, since the function of government is to make provision for the common welfare. However, **it would clearly transgress the limits set to its power, were it to presume to command or inhibit acts that are religious.**"

§7: "Furthermore, society has the right to defend itself against possible abuses committed on the pretext of freedom of religion. It is the special duty of government to provide this protection. However, government is not to act in an arbitrary fashion or in an unfair spirit of partisanship. Its action is to be controlled by juridical norms which are in conformity with the objective moral order. These norms arise out of the need for the effective safeguard of the rights of all citizens and for the peaceful settlement of conflicts of rights, also out of the need for an adequate care of genuine public peace, which comes about when men live together in good order and in true justice, and finally out of the need for a proper guardianship of public morality. These matters constitute the basic component of the common welfare: **they are what is meant by public order**. For the rest, the usages of society are to be the usages of freedom in their full range: that is, the freedom of man is to be respected as far as possible and is not to be curtailed except when and insofar as necessary."

Context: the paragraph of §3 just before ends: "Injury therefore is done to the human person and to the very order established by God for human life, if the free exercise of religion is denied in society, provided just public order is observed." §7 then sets the limit: the rights of all citizens, genuine public peace, and public morality.

The contradiction: Pius IX condemned denying that the State has a duty to restrain offenders against the Catholic religion beyond what public peace requires. The Council says that the State exceeds its power if it commands or inhibits religious acts. It may restrain them only for public order, which it defines as the rights of citizens, public peace and public morality.

> **Objection:** the Council's "public order" includes public morality, the rights of others, and norms "in conformity with the objective moral order", so it is broader than Pius IX's "public peace". Harrison adds that the pre-conciliar restrictions were themselves meant to protect the rights of Catholic citizens. He cites the Council's rejected preparatory schema, which justified them as a way to "defend [Catholic] citizens against the spreading of false doctrines which, in the judgment of the Church, put their eternal salvation at risk".

> **Answer:** all three of the Council's criteria are goods of civil society; none of them is the truth of religion or the protection of the Catholic faith. That is exactly what Pius IX condemned: a State that recognizes no duty toward the true religion as such, and restrains offenders against it only for civil ends. If "the rights of others" included the right of Catholics to be protected from false doctrine, the Council would have left the old restrictions in place. Harrison himself concedes that it did not (3.4).

What the Council's defenders concede. Benedict XVI admitted a discontinuity, but placed it in decisions, not in principles:

> **Benedict XVI**, address to the Roman Curia, 22 December 2005:
> "It is clear that in all these sectors, which all together form a single problem, some kind of discontinuity might emerge. Indeed, **a discontinuity had been revealed** but in which, after the various distinctions between concrete historical situations and their requirements had been made, the continuity of principles proved not to have been abandoned. … The Second Vatican Council, with its new definition of the relationship between the faith of the Church and certain essential elements of modern thought, **has reviewed or even corrected certain historical decisions**, but in this apparent discontinuity it has actually preserved and deepened her inmost nature and true identity."
>
> *Context:* the "sectors" are three questions the Council faced. The second was "the relationship between the Church and the modern State that would make room impartially for citizens of various religions and ideologies". In the omitted passage he argues that "the Church's decisions on contingent matters - for example, certain practical forms of liberalism or a free interpretation of the Bible - should necessarily be contingent themselves". He also argues that the Council "has recovered the deepest patrimony of the Church".

Fr John Courtney Murray SJ, a principal drafter of *Dignitatis Humanae*, said the same more bluntly:

> **J. C. Murray SJ**, "The Declaration on Religious Freedom" (1966):
> "Briefly, the Declaration bases itself on a progress in doctrine that has, in fact, occurred since Leo XIII. It also carries this progress one inevitable step further by **discarding an older theory of civil tolerance in favor of a new doctrine of religious freedom** more in harmony with the authentic and more fully understood tradition of the Church. … In these circumstances, and given this personal conception of rule, the attitude of government toward what is error and evil could only be one of tolerance. Government permits by law what it cannot prevent by law. Moreover, this civil tolerance is no more than a dictate of necessity; it is practiced for the sake of a greater good—the peace of the community. This theory of civil tolerance may indeed be regarded as a counsel of practical wisdom. It **can hardly be regarded as permanent Catholic doctrine**, any more than the theory of government, with which it is correlative, may be so regarded. The roots of both theories are in the contingencies of history, not in the exigencies of abiding truth. Therefore, the Declaration on Religious Freedom puts aside the post-Reformation and 19th-century theory of civil tolerance. The fault is not error but archaism."
>
> *Context:* Murray argues that Leo XIII's tolerance followed from a paternal conception of government (the "ruler-father" who protects "the illiterate masses" from error), which Pius XII and John XXIII replaced with a juridical, constitutional conception. He presents the Declaration as a development of doctrine, not a reversal.

Both men admit that the earlier teaching was set aside. Both defend the change by calling that teaching contingent: "decisions on contingent matters" (Benedict), a "theory" rooted "in the contingencies of history" (Murray). The popes before the Council did not present it so. Pius IX condemned these "opinions and doctrines" "by our Apostolic authority" (*Quanta Cura* §6). Leo XIII said that equal rights for error and truth are "contrary to reason" (*Libertas* §34), and denied that freedom of worship is a right "given by nature" (§42). The defence concedes the discontinuity and disputes only the level at which it lies.

4. Ecumenism and the one true Church

The Church taught that she alone is the Church of Christ, that those divided from her in faith are not her members, and that unity comes only by return to her. After the Council, the Church of Christ is said to be present in other communities, which are means of salvation, and common worship is encouraged.

4.1 The Church of Christ *is* the Catholic Church

BEFORE · Pius XII, *Humani Generis* §27 (1950):
"Some say they are not bound by the doctrine, explained in Our Encyclical Letter of a few years ago, and based on the Sources of Revelation, which teaches that **the Mystical Body of Christ and the Roman Catholic Church are one and the same thing**. Some reduce to a meaningless formula the necessity of belonging to the true Church in order to gain eternal salvation. Others finally belittle the reasonable character of the credibility of Christian faith."

Context: Pius XII is listing errors that have "crept in among certain of Our sons" (§28). The first is the rejection of the teaching of *Mystici Corporis* (1943), which he restates here as a doctrine "based on the Sources of Revelation".

Mystici Corporis §13 (1943): "If we would define and describe **this true Church of Jesus Christ - which is the One, Holy, Catholic, Apostolic and Roman Church** - we shall find nothing more noble, more sublime, or more divine than the expression 'the Mystical Body of Christ' - an expression which springs from and is, as it were, the fair flowering of the repeated teaching of the Sacred Scriptures and the Holy Fathers."

Context: this sentence opens the encyclical's description of the Church. Pius XII first names the true Church as the Roman Church, and then calls that same Church the Mystical Body.

AFTER · Vatican II, *Lumen Gentium* §8 (1964):
"This is the one Church of Christ which in the Creed is professed as one, holy, catholic and apostolic, which our Saviour, after His Resurrection, commissioned Peter to shepherd, and him and the other apostles to extend and direct with authority, which He erected for all ages as 'the pillar and mainstay of the truth'. **This Church constituted and organized in the world as a society, subsists in the Catholic Church**, which is governed by the successor of Peter and by the Bishops in communion with him, **although many elements of sanctification and of truth are found outside of its visible structure**. These elements, as gifts belonging to the Church of Christ, are forces impelling toward catholic unity."

Context: the paragraph begins by teaching that the visible society and the Mystical Body "are not to be considered as two realities" but "one complex reality". The elements found outside are called gifts of the Church of Christ that draw towards Catholic unity.

John Paul II, *Ut Unum Sint* §11 (1995): "By God's grace, however, neither what belongs to the structure of the Church of Christ nor that communion which still exists with the other Churches and Ecclesial Communities has been destroyed. Indeed, the elements of sanctification and truth present in the other Christian Communities, in a degree which varies from one to the other, constitute the objective basis of the communion, albeit imperfect, which exists between them and the Catholic Church. **To the extent that these elements are found in other Christian Communities, the one Church of Christ is effectively present in them.** For this reason the Second Vatican Council speaks of a certain, though imperfect communion."

Context: the paragraph opens by affirming that the Catholic Church "has been preserved in unity, with all the means with which God wishes to endow his Church". John Paul II then explains the "imperfect communion" with other communities by the elements they possess.

The contradiction: identity ("one and the same thing") becomes "subsists in". The qualifiers are real: the elements outside are "gifts belonging to the Church of Christ" that impel "toward catholic unity", and the Church of Christ is present only "to the extent that" they are found. Even so, Pius XII says the Church of Christ *is* the Roman Church, while John Paul II says that the one Church of Christ is "effectively present" in communities outside her.

> **Objection:** Rome's doctrinal office declared: "The use of this expression, which indicates the full identity of the Church of Christ with the Catholic Church, does not change the doctrine on the Church" (CDF, *Responses to Some Questions regarding Certain Aspects of the Doctrine on the Church*, 2007, third question).

> **Answer:** a declaration that there is no contradiction does not remove the words. The same document, in its answer to the second question, grants that "the Church of Christ is present and operative in the churches and ecclesial Communities not yet fully in communion with the Catholic Church, on account of the elements of sanctification and truth that are present in them". Presence in bodies outside the Catholic Church is not identity with her. Cardinal Ratzinger, defending the Council in 2000, granted that "the Council differs from the formula of Pius XII", and wrote: "Because sin is a contradiction, this

> difference between *subsistit* and *est* cannot be fully resolved from the logical viewpoint." He attributes the gap to the division of Christians, not to an error of the Council, but he concedes that the gap exists.

4.2 Who are members of the Body

BEFORE · *Mystici Corporis* §22:
"**Actually only those are to be included as members of the Church who have been baptized and profess the true faith**, and who have not been so unfortunate as to separate themselves from the unity of the Body, or been excluded by legitimate authority for grave faults committed. 'For in one spirit' says the Apostle, 'were we all baptized into one Body, whether Jews or Gentiles, whether bond or free.' As therefore in the true Christian community there is only one Body, one Spirit, one Lord, and one Baptism, so there can be only one faith. And therefore, if a man refuse to hear the Church, let him be considered - so the Lord commands - as a heathen and a publican. **It follows that those who are divided in faith or government cannot be living in the unity of such a Body**, nor can they be living the life of its one Divine Spirit."

Context: Pius XII is defining who belongs to the Body. The next paragraph (§23) adds that sinners remain members, because "not every sin, however grave it may be, is such as of its own nature to sever a man from the Body of the Church, as does schism or heresy or apostasy."

AFTER · *Unitatis Redintegratio* §3 (1964):
"The children who are born into these Communities and who grow up believing in Christ cannot be accused of the sin involved in the separation, and the Catholic Church embraces upon them as brothers, with respect and affection. For men who believe in Christ and have been truly baptized are in communion with the Catholic Church even though this communion is imperfect. The differences that exist in varying degrees between them and the Catholic Church - whether in doctrine and sometimes in discipline, or concerning the structure of the Church - do indeed create many obstacles, sometimes serious ones, to full ecclesiastical communion. The ecumenical movement is striving to overcome these obstacles. But even in spite of them it remains true that **all who have been justified by faith in Baptism are members of Christ's body**, and have a right to be called Christian, and so are correctly accepted as brothers by the children of the Catholic Church."

Context: the Council is speaking of communities separated "from full communion with the Catholic Church" and of those born into them, who are not guilty of the separation. For "members of Christ's body" it cites the Council of Florence's decree for the Armenians (*Exultate Deo*).

The contradiction: those "divided in faith" are not members. Now all the validly baptized, including Protestants, are "members of Christ's body", "in spite of" the differences "in doctrine". The Council speaks of those not guilty of the separation, but *Mystici Corporis* does not make membership depend on guilt. It requires that the baptized "profess the true faith".

4.3 Separated communities and salvation

BEFORE · Pius XI, *Mortalium Animos* §10 (1928):
"So, Venerable Brethren, it is clear why this Apostolic See has never allowed its subjects to take part in the assemblies of non-Catholics: for the union of Christians can only be promoted by promoting the return to the one true Church of Christ of those who are separated from it, for in the past they have unhappily left it. … For since the mystical body of Christ, in the same manner as His physical body, is one, compacted and fitly joined together, it were foolish and out of place to say that the mystical body is made up of members which are disunited and scattered abroad: **whosoever therefore is not united with the body is no member of it, neither is he in communion with Christ its head.**"

Context: the omitted sentences quote St Cyprian on the Church's incorruptible unity. The next paragraph (§11) adds that "in this one Church of Christ no man can be or remain who does not accept, recognize and obey the authority and supremacy of Peter and his legitimate successors".

AFTER · *Unitatis Redintegratio* §3:
"The brethren divided from us also use many liturgical actions of the Christian religion. These most certainly can truly engender a life of grace in ways that vary according to the condition of each Church or Community. These liturgical actions must be regarded as capable of giving access to the community of salvation. It follows that **the separated Churches and Communities as such**, though we believe them to be deficient in some respects, **have been by no means deprived of significance and importance in the mystery of salvation. For the Spirit of Christ has not refrained from using them as means of salvation** which derive their efficacy from the very fullness of grace and truth entrusted to the Church. Nevertheless, our separated brethren, whether considered as individuals or as Communities and Churches, are not blessed with that unity which Jesus Christ wished to bestow on all those who through Him were born again into one body … For it is only through Christ's Catholic Church, which is 'the all-embracing means of salvation,' that they can benefit fully from the means of salvation."

Context: the Council has just said that the elements of the Church found outside her "belong by right to the one Church of Christ". The passage ends by saying that the fullness of the means of salvation is found only in the Catholic Church.

The contradiction: outside the Body there is no communion with Christ the Head. Now the separated communities *as such* are means of salvation. The Council's qualifiers say that these communities are "deficient", that their efficacy derives from the fullness "entrusted to the Church", and that salvation's means are had "fully" only through her. None of them withdraws the claim at issue: that the Spirit of Christ uses the separated communities, as communities, as means of salvation.

What the Church defined on this point:

DEFINED · Council of Florence, *Cantate Domino* (Decree for the Copts, 4 February 1442): "**It firmly believes, professes and preaches that all those who are outside the catholic church, not only pagans but also Jews or heretics and schismatics, cannot share in eternal life** and will go into the everlasting fire which was prepared for the devil and his angels, unless they are joined to the catholic church before the end of their lives; **that the unity of the ecclesiastical body is of such importance that only for those who abide in it do the church's sacraments contribute to salvation** and do fasts, almsgiving and other works of piety and practices of the Christian militia produce eternal rewards; and that nobody can be saved, no matter how much he has given away in alms and even if he has shed his blood in the name of Christ, unless he has persevered in the bosom and the unity of the catholic church."

Context: the decree is a profession of faith for the Coptic Church on its reunion with Rome. Earlier in the same decree, on the Trinity, the council "condemns, reproves, anathematizes and declares to be outside the body of Christ, which is the church, whoever holds opposing or contrary views". This passage itself is in the form of a profession ("firmly believes, professes and preaches"), not of a canon.

DEFINED · Fourth Lateran Council (1215), constitution 1, "On the Catholic faith": "**There is indeed one universal church of the faithful, outside of which nobody at all is saved**, in which Jesus Christ is both priest and sacrifice. His body and blood are truly contained in the sacrament of the altar under the forms of bread and wine…"

Context: this is the profession of faith with which the council's decrees open.

Florence says the Church's sacraments "contribute to salvation" only "for those who abide in" her unity. The Council says the Spirit uses the separated communities "as such" as "means of salvation". The Council's own explanation, that their efficacy derives from the fullness "entrusted to the Church", speaks of the source of the means; Florence speaks of who benefits from them.

4.4 Joining non-Catholics in worship

BEFORE · *Mortalium Animos* §8:
"This being so, it is clear that **the Apostolic See cannot on any terms take part in their assemblies, nor is it anyway lawful for Catholics either to support or to work for such enterprises**; for if they do so they will be giving countenance to a false Christianity, quite alien to the one Church of Christ. Shall We suffer, what would indeed be iniquitous, the truth, and a truth divinely revealed, to be made a subject for compromise? For here there is question of defending revealed truth."

Context: "their assemblies" are the pan-Christian conferences described in §§3–7. These sought the union "of all who call themselves Christians", on the view that the Church of Christ is "divided into sections".

Code of Canon Law (1917), canon 1258: "§1. **Haud licitum est fidelibus quovis modo active assistere seu partem habere in sacris acatholicorum.** §2. Tolerari potest praesentia passiva seu mere materialis, civilis officii vel honoris causa, ob gravem rationem ab Episcopo in casu dubii probandam, in acatholicorum funeribus, nuptiis similibusque sollemniis, dummodo perversionis et scandali periculum absit."
(§1. It is not lawful for the faithful *in any way* to assist actively at, or take part in, non-Catholic worship. §2. Passive or merely material presence may be tolerated, for the sake of civil duty or honour, for a grave reason to be approved by the bishop in case of doubt, at non-Catholic funerals, weddings and similar solemnities, provided there is no danger of perversion or scandal. *Author's translation.*)

Context: §2 is the only exception the canon allows. It permits passive presence for civil reasons; it allows no active part, and it makes no exception for the Eastern Churches.

AFTER · *Unitatis Redintegratio* §15:

"These Churches, although separated from us, possess true sacraments, above all by apostolic succession, the priesthood and the Eucharist, whereby they are linked with us in closest intimacy. Therefore **some worship in common (communicatio in sacris), given suitable circumstances and the approval of Church authority, is not only possible but to be encouraged**."

Context: §15 concerns the separated Eastern Churches only. It has just praised their Eucharist, through which "the Church of God is built up and grows in stature".

Directory for Ecumenism §122 (1993): "Between the Catholic Church and the Eastern Churches not in full communion with it, there is still a very close communion in matters of faith. Moreover, 'through the celebration of the Eucharist of the Lord in each of these Churches, the Church of God is built up and grows in stature' and 'although separated from us, these Churches still possess true sacraments, above all—by apostolic succession—the priesthood and the Eucharist…'. This offers ecclesiological and sacramental grounds, according to the understanding of the Catholic Church, for **allowing and even encouraging some sharing in liturgical worship, even of the Eucharist, with these Churches**, 'given suitable circumstances and the approval of church authorities'. It is recognized, however, that Eastern Churches, on the basis of their own ecclesiological understanding, may have more restrictive disciplines in this matter, which others should respect."

Context: this opens the Directory's rules for sharing with the Eastern Churches. §123 then allows Catholics who cannot reach a Catholic minister to receive Penance, the Eucharist and Anointing from an Eastern minister, and §125 allows the reverse.

The contradiction: active part in non-Catholic worship, forbidden "in any way", becomes "to be encouraged", "even of the Eucharist". The permission concerns the Eastern Churches and requires "suitable circumstances" and approval, but canon 1258 made no such exception: it allowed only passive presence. Under the old Code, one who took part in non-Catholic worship was suspect of heresy: "Qui quoquo modo haeresis propagationem sponte et scienter iuvat, aut qui communicat in divinis cum haereticis contra praescriptum can. 1258, suspectus de haeresi est" (whoever in any way spontaneously and knowingly helps the spread of heresy, or who takes part in divine worship with heretics against the prescription of canon 1258, is suspect of heresy; canon 2316, author's translation). John Paul II, recalling the common prayer of his journeys, asked: "And how could I ever forget taking part in the Eucharistic Liturgy in the Church of Saint George at the Ecumenical Patriarchate (30 November 1979), and the service held in Saint Peter's Basilica during the visit to Rome of my Venerable Brother, Patriarch Dimitrios I (6 December 1987)?" (*Ut Unum Sint* §24).

> **Objection:** prayer and worship are not the same. The Council allowed Catholics to pray with other Christians; it did not allow them to worship with them.

> **Answer:** the distinction is real, and the Council itself makes it. *Unitatis Redintegratio* §8 first says: "In certain special circumstances, such as the prescribed prayers 'for unity,' and during ecumenical gatherings, it is allowable, indeed desirable that Catholics should join in prayer with their separated brethren." It then turns to something else: "Yet worship in common (*communicatio in sacris*) is not to be

> considered as a means to be used indiscriminately for the restoration of Christian unity." So the contradiction does not rest on common prayer. It rests on §15, where the Council encourages that worship in common itself, and on the 1993 Directory, which extends it "even of the Eucharist". The Church before the Council did allow limited common prayer. The Holy Office in 1949 ruled: "Although in all these meetings and conferences any communication whatsoever in worship must be avoided, yet the recitation in common of the Lord's Prayer or of some prayer approved by the Catholic Church, is not forbidden for opening or closing the said meetings" (Instruction *Ecclesia Catholica*, V). Bishops could permit such meetings only on condition "That communicatio in sacris be entirely avoided" (IV). What it forbade is exactly what was later encouraged.

Even common prayer is not a neutral act. St Thomas teaches: "Now man shows reverence to God by means of prayer, in so far as he subjects himself to Him, and by praying confesses that he needs Him as the Author of his goods. Hence it is evident that prayer is properly an act of religion." He adds that "after devotion which belongs to the will, prayer which belongs to the intellective part is the chief of the acts of religion" (*Summa* II-II q.83 a.3 and ad 1). That is why the Church before the Council kept even common prayer within strict limits.

> **Objection:** this is discipline, and the Church may change her discipline.

> **Answer:** the prohibition protects a truth of faith: that worship professes the faith of those who join in it. Fr Brian Harrison, who defends the Council, grants that "in this practical, disciplinary respect, a comparison between MA and UR reveals an undeniable and very marked change of direction — indeed, practically a U-turn". He denies that there is a contradiction of doctrine. But Pius XI did not give a merely prudential reason for his prohibition. He said that Catholics who take part "will be giving countenance to a false Christianity, quite alien to the one Church of Christ", and that "here there is question of defending revealed truth" (*Mortalium Animos* §8). A universal law that leads Catholics into what the Church condemned on those grounds is exactly what Principle 1 rules out.

4.5 Other religions

BEFORE · *Mortalium Animos* §2:

"For which reason conventions, meetings and addresses are frequently arranged by these persons, at which a large number of listeners are present, and at which all without distinction are invited to join in the discussion, both infidels of every kind, and Christians, even those who have unhappily fallen away from Christ or who with obstinacy and pertinacity deny His divine nature and mission. Certainly such attempts can nowise be approved by Catholics, founded as they are on **that false opinion which considers all religions to be more or less good and praiseworthy, since they all in different ways manifest and signify that sense which is inborn in us all, and by which we are led to God** and to the obedient acknowledgment of His rule. Not only are those who hold this opinion in error and deceived, but also in distorting the idea of true religion they reject it, and little by little. turn aside to naturalism and atheism, as it is called; from which it clearly follows that **one who supports those who hold these theories and attempt to realize them, is altogether abandoning the divinely revealed religion**."

Context: Pius XI is describing the meetings of those who hope that "the nations, although they differ among themselves in certain religious matters" will agree on "a common basis of the spiritual life". From §3 onwards he turns to the separate question of unity among Christians.

AFTER · *Nostra Aetate* §2 (1965):

"Likewise, other religions found everywhere try to counter the restlessness of the human heart, each in its own manner, by proposing 'ways,' comprising teachings, rules of life, and sacred rites. **The Catholic Church rejects nothing that is true and holy in these religions. She regards with sincere reverence those ways of conduct and of life, those precepts and teachings** which, though differing in many aspects from the ones she holds and sets forth, nonetheless often reflect a ray of that Truth which enlightens all men. Indeed, she proclaims, and ever must proclaim Christ 'the way, the truth, and the life' (John 14:6), in whom men may find the fullness of religious life, in whom God has reconciled all things to Himself. The Church, therefore, exhorts her sons, that through dialogue and collaboration with the followers of other religions, carried out with prudence and love and in witness to the Christian faith and life, they recognize, preserve and promote the good things, spiritual and moral, as well as the socio-cultural values found among these men."

Context: the paragraph has just described Hinduism and Buddhism. The reverence is for the "ways of conduct", "precepts and teachings" that reflect the Truth, not for the religions as a whole.

John Paul II, General Audience, 9 September 1998 §2: "It must first be kept in mind that **every quest of the human spirit for truth and goodness, and in the last analysis for God, is inspired by the Holy Spirit. The various religions arose precisely from this primordial human openness to God.** At their origins we often find founders who, with the help of God's Spirit, achieved a deeper religious experience. Handed on to others, this experience took form in the doctrines, rites and precepts of the various religions. In every authentic religious experience, the most characteristic expression is prayer. Because of the human spirit's constitutive openness to God's action of urging it to self-transcendence, we can hold that 'every authentic prayer is called forth by the Holy Spirit, who is mysteriously present in the heart of every person' … **We experienced an eloquent manifestation of this truth at the World Day of Prayer for Peace on 27 October 1986 in Assisi**, and on other similar occasions of great spiritual intensity."

Context: the audience begins from *Nostra Aetate* §2 and the "seeds of the Word". In §4 John Paul II adds that the Church's respect for other religions "does not mean forgetting that Jesus Christ is the one Mediator and Saviour of the human race", nor "lessening our missionary efforts".

The contradiction: Pius XI condemns the opinion that all religions are "more or less good and praiseworthy, since they all in different ways manifest and signify that sense which is inborn in us all, and by which we are led to God", and he condemns supporting those who act on it. Taken alone, *Nostra Aetate* reveres only what is "true and holy" in other religions, and it insists that Christ must be proclaimed. Pius XI's condemnation is not aimed at that, so the sharper contrast is with John Paul II. He says that the religions themselves "arose precisely from this primordial human openness to God", that this quest is "inspired by the Holy Spirit", and that Assisi, where the religions were gathered to pray, was "an eloquent manifestation of this truth". He does not say in so many words that all religions are good. But he gives as the origin of the religions the very ground on which, according to Pius XI, the condemned opinion rested. And he presents as its manifestation an interreligious gathering, of the kind Pius XI said "can nowise be approved by Catholics". John Paul II also affirms that Christ is "the one Mediator". Pius XI's condemnation does not depend on denying that: it falls on the opinion and on supporting the meetings built upon it.

4.6 Trent's anathemas on justification

BEFORE · Council of Trent, Session 6 (1547), canons on justification:
"CANON IV.-If any one saith, that **man's free will moved and excited by God, by assenting to God exciting and calling, nowise co-operates towards disposing and preparing itself for obtaining the grace of Justification**; that it cannot refuse its consent, if it would, but that, as something inanimate, it does nothing whatever and **is merely passive; let him be anathema.** … CANON IX.-If any one saith, that **by faith alone the impious is justified; in such wise as to mean, that nothing else is required to co-operate** in order to the obtaining the grace of Justification, and that it is not in any way necessary, that he be prepared and disposed by the movement of his own will; **let him be anathema.**"

Context: these are among the 33 canons Trent attached to its decree on justification, written against the teaching of Luther and the Lutheran confessions.

AFTER · Lutheran World Federation and Catholic Church, *Joint Declaration on the Doctrine of Justification* (signed 31 October 1999):
"21. **According to Lutheran teaching, human beings are incapable of cooperating in their salvation**, because as sinners they actively oppose God and his saving action. Lutherans do not deny that a person can reject the working of grace. When they emphasize that **a person can only receive (mere passive) justification**, they mean thereby to exclude any possibility of contributing to one's own justification, but do not deny that believers are fully involved personally in their faith, which is effected by God's Word. … 26. **According to Lutheran understanding, God justifies sinners in faith alone (sola fide).** … 41. Thus the doctrinal condemnations of the 16th century, in so far as they relate to the doctrine of justification, appear in a new light: **The teaching of the Lutheran churches presented in this Declaration does not fall under the condemnations from the Council of Trent.**"

Context: §20, before it, gives the Catholic view that persons "cooperate" by consenting to God's action, a consent "itself an effect of grace". §26 adds that in "justification by faith alone" a distinction "but not a separation" is made between justification and the renewal of life that "necessarily follows". The *Official Common Statement* signed with it repeats §41 in the name of "the Lutheran World Federation and the Catholic Church".

The contradiction: Trent anathematises the teaching that the will "nowise co-operates" and "is merely passive", and that faith alone justifies so that nothing else need cooperate. The *Joint Declaration* presents as Lutheran teaching that human beings are "incapable of cooperating" and receive "mere passive" justification "in faith alone", and declares that this teaching, as presented, "does not fall under the condemnations from the Council of Trent".

> **Objection:** the Declaration does not lift the anathemas. It says they keep their seriousness, and only that the Lutheran teaching as now presented is not what Trent condemned:

"42. **Nothing is thereby taken away from the seriousness of the condemnations related to the doctrine of justification.** Some were not simply pointless. They remain for us 'salutary warnings' to which we must attend in our teaching and practice."

Context: §42 follows §41 directly.

Answer: the question is whether the teaching presented falls under the canons, and the words above are the words Trent condemned ("merely passive"; faith alone with nothing else cooperating). Rome's own official *Response* of 1998 had said that "it remains difficult to see how, in the current state of the presentation, given in the Joint Declaration, we can say that this doctrine on 'simul iustus et peccator' is not touched by the anathemas of the Tridentine decree on original sin and justification." A year later an *Annex* of clarifications was added, and both sides signed the statement that "the mutual condemnations of former times do not apply to the Catholic and Lutheran doctrines of justification as they are presented in the Joint Declaration". The text of §21 was not changed. The Declaration is an ecumenical agreement, not a dogmatic definition; it shows how the post-conciliar authorities treat Trent's anathemas, not a new definition of faith.

5. At the altar: Communion as the sign of unity in faith

The Eucharist is the sacrament of the Church's unity. St Thomas: "The Apostle says (1 Corinthians 10:17): 'For we, being many, are one bread, one body, all that partake of one bread': from which it is clear that the Eucharist is the sacrament of the Church's unity" (*Summa* III q.73 a.2). In the next article he adds that "the reality of the sacrament is the unity of the mystical body, without which there can be no salvation" (a.3). The Council of Trent, giving the reasons why Christ instituted the sacrament, says that He would have it "be a symbol of that one body whereof He is the head, and to which He would fain have us as members be united by the closest bond of faith, hope, and charity, that we might all speak the same things, and there might be no schisms amongst us" (Session 13, ch. 2; quoted in full at 5.3). To give Communion is to declare unity in faith. The post-conciliar Church now gives that sign to those who do not share the faith.

5.1 Sacraments for non-Catholics

BEFORE · Code of Canon Law (1917), canon 731:
"§1. Cum omnia Sacramenta Novae Legis, a Christo Domino nostro instituta, sint praecipua sanctificationis et salutis media, summa in iis opportune riteque administrandis ac suscipiendis diligentia et reverentia adhibenda est. §2. **Vetitum est Sacramenta Ecclesiae ministrare haereticis aut schismaticis, etiam bona fide errantibus eaque petentibus, nisi prius, erroribus reiectis, Ecclesiae reconciliati fuerint.**"
(§1. Since all the Sacraments of the New Law, instituted by Christ our Lord, are the chief means of sanctification and salvation, the greatest diligence and reverence is to be used in administering and receiving them fittingly and duly. §2. It is forbidden to give the sacraments of the Church to heretics or schismatics, *even those erring in good faith* who ask for them, unless they have first renounced their errors and been reconciled to the Church. *Author's translation.*)

Context: canon 731 opens the 1917 Code's book on the sacraments. §1 gives the reason for the rule in §2: the sacraments are the chief means of salvation and must be given with the greatest reverence.

AFTER · Code of Canon Law (1983), canon 844:
"§1. Catholic ministers administer the sacraments licitly to Catholic members of the Christian faithful alone, who likewise receive them licitly from Catholic ministers alone, without prejudice to the prescripts of §§2, 3, and 4 of this canon, and can. 861, §2. … §3. **Catholic ministers administer the sacraments of penance, Eucharist, and anointing of the sick licitly to members of Eastern Churches which do not have full communion with the Catholic Church if they seek such on their own accord and are properly disposed.** This is also valid for members of other Churches which in the judgment of the Apostolic See are in the same condition in regard to the sacraments as these Eastern Churches."

Context: §1 keeps the general rule of "Catholic members … alone", but it names §§2–4 as exceptions. §2 (quoted at 5.2) lets Catholics receive from non-Catholic ministers. §4 admits other Christians only in danger of death or grave necessity, and only if they "manifest Catholic faith in respect to these sacraments". §3 sets neither of those conditions; it asks only that the Eastern Christian ask freely and be "properly disposed".

The contradiction: no sacraments without renouncing error and being reconciled. Now the Eucharist is given lawfully with neither. This is universal law, binding on the whole Church. Before the Council a schismatic could not even be *named* at the altar. Benedict XIV approved the instruction given to Greek Catholic priests: "Therefore where commemorations are customarily made in the sacred liturgy, the Roman Pontiff should be first commemorated, then one's own bishop and patriarch, provided they are Catholic. But if either or both of them are schismatic or heretic they should by no means be commemorated" (*Ex Quo* §9, 1756). Now he may *receive Communion* there.

> **Objection:** "properly disposed" means the same as renouncing error, so nothing has changed.
>
> **Answer:** the texts rule this out in five ways.

1. **The canon is about people who remain separated.** It applies to "members of Eastern Churches which do not have full communion with the Catholic Church". Someone who had renounced his errors and been reconciled would be a Catholic, and would not need this canon at all.
2. **Rome says they receive while still separated.** John Paul II distinguishes this from intercommunion: "In this case, in fact, the intention is to meet a grave spiritual need for the eternal salvation of an individual believer, not to bring about an intercommunion which remains impossible until the visible bonds of ecclesial communion are fully re-established. This was the approach taken by the Second Vatican Council when it gave guidelines for responding to Eastern Christians separated in good faith from the Catholic Church, who spontaneously ask to receive the Eucharist from a Catholic minister and are properly disposed" (*Ecclesia de Eucharistia* §45). Separated, and properly disposed, at the same time.
3. **Rome defines what makes them improperly disposed, and it is not their errors in general.** "These conditions, from which no dispensation can be given, must be carefully respected, even though they deal with specific individual cases, because the denial of one or more truths of the faith regarding these sacraments and, among these, the truth regarding the need of the ministerial priesthood for their validity, renders the person asking improperly disposed to legitimately receiving them" (*Ecclesia de Eucharistia* §46). Only truths about these sacraments count. An Orthodox Christian who rejects the primacy and infallibility of the Pope is still admitted.
4. **The minister is told to avoid any suggestion of proselytism.** The 1993 *Directory for Ecumenism* §125: "Catholic ministers may lawfully administer the sacraments of penance, Eucharist and the anointing of the sick to members of the Eastern Churches, who ask for these sacraments of their own free will and are properly disposed. In these particular cases also, due consideration should be given to the discipline of the Eastern Churches for their own faithful and any suggestion of proselytism should be avoided."
5. **The Council separates reconciliation from ecumenism.** "However, it is evident that, when individuals wish for full Catholic communion, their preparation and reconciliation is an undertaking which of its nature is distinct from ecumenical action. But there is no opposition between the two, since both proceed from the marvelous ways of God" (*Unitatis Redintegratio* §4). The Council sees no conflict between the two. But the 1993 *Directory for Ecumenism* (§§122–125) places the giving of these sacraments among its ecumenical norms, so they are given without reconciliation.

Canon 731 required two things, "erroribus reiectis" (errors rejected) and "Ecclesiae reconciliati" (reconciled to the Church). Canon 844 requires neither.

5.2 Catholics at the sacraments of non-Catholics

BEFORE · St Thomas Aquinas, *Summa* III q.82 a.9:

"As was said above (Article 5, Article 7), heretical, schismatical, excommunicate, or even sinful priests, although they have the power to consecrate the Eucharist, yet they do not make a proper use of it; on the contrary, they sin by using it. But **whoever communicates with another who is in sin, becomes a sharer in his sin**. Hence we read in John's Second Canonical Epistle (11) that 'He that saith unto him, God speed you, communicateth with his wicked works.' Consequently, it is not lawful to receive Communion from them, or to assist at their mass. Still there is a difference among the above, because **heretics, schismatics, and excommunicates, have been forbidden, by the Church's sentence, to perform the Eucharistic rite. And therefore whoever hears their mass or receives the sacraments from them, commits sin.** But not all who are sinners are debarred by the Church's sentence from using this power: and so, although suspended by the Divine sentence, yet they are not suspended in regard to others by any ecclesiastical sentence: consequently, until the Church's sentence is pronounced, it is lawful to receive Communion at their hands, and to hear their mass. … Reply to Objection 2. The unity of the mystical body is the fruit of the true body received. But those who receive or minister unworthily, are deprived of the fruit … And therefore, **those who belong to the unity of the Faith are not to receive the sacrament from their dispensing**."

Context: the article asks whether one may receive Communion or hear Mass from heretical, excommunicate or sinful priests. Thomas forbids it in principle for all of them, but the line he draws in practice is the Church's sentence: those under it may not be approached, while sinners not yet sentenced may. The omitted words are a gloss of St Augustine and a cross-reference.

AFTER · John Paul II, *Ecclesia de Eucharistia* §46 (2003), quoting *Ut Unum Sint* §46:

"It is a source of joy to note that Catholic ministers are able, in certain particular cases, to administer the sacraments of the Eucharist, Penance and Anointing of the Sick to Christians who are not in full communion with the Catholic Church but who greatly desire to receive these sacraments, freely request them and manifest the faith which the Catholic Church professes with regard to these sacraments. **Conversely, in specific cases and in particular circumstances, Catholics too can request these same sacraments from ministers of Churches in which these sacraments are valid.**"

Code of Canon Law (1983), canon 844 §2: "Whenever necessity requires it or true spiritual advantage suggests it, and provided that danger of error or of indifferentism is avoided, the Christian faithful for whom it is physically or morally impossible to approach a Catholic minister are permitted to **receive the sacraments of penance, Eucharist, and anointing of the sick from non- Catholic ministers in whose Churches these sacraments are valid**."

Context: John Paul II goes on to insist that these conditions "must be carefully respected", and that "Catholics may not receive communion in those communities which lack a valid sacrament of Orders". The canon is the law he is describing: it allows the practice only when a Catholic minister cannot be reached.

The contradiction: St Thomas holds that receiving the sacraments from a heretical or schismatic minister makes one "a sharer in his sin", that "those who belong to the unity of the Faith are not to receive the sacrament from their dispensing", and that, since the Church's sentence, it is a sin to do so. Now, by universal law, Catholics may ask schismatic ministers for them when a Catholic minister cannot be reached.

> **Objection:** St Thomas rests the prohibition on "the Church's sentence", and in the same article he allows Catholics to hear the Masses of sinful priests whom the Church has not sentenced. What the Church's law forbade, the Church's law may permit. Besides, an Orthodox priest born into schism may not be personally guilty of it.

> **Answer:** the objection is partly right, and this pair should not be made to say more than Thomas says. In this article the practical line between forbidden and allowed is the Church's sentence, and Thomas's reasons speak of ministers who sin by celebrating. So this pair, taken alone, shows the reversal of a standing law of the Church and of the reason Thomas gave for it. It does not show the contradiction of a defined doctrine. Two points remain. First, the sentence had been given, and it was general: "heretics and schismatics are subject to the censure of major excommunication" by the canons Benedict XIV cites (*Ex Quo* §23), and the 1917 Code still forbade any active part in their worship (canon 1258, at 4.4). Second, canon 844 §2 does not lift a sentence from particular men whose case has been judged. It permits, as general law, receiving the sacraments from the ministers of bodies that remain separated. Whether the Church can give such a universal law is the question of Principle 1, together with 5.3 below.

5.3 The sign of unity set aside

BEFORE · Council of Trent, Session 13, ch. 2:
"Wherefore, our Saviour, when about to depart out of this world to the Father, instituted this Sacrament, in which He poured forth as it were the riches of His divine love towards man, making a remembrance of his wonderful works; and He commanded us, in the participation thereof, to venerate His memory, and to show forth his death until He come to judge the world. And He would also that this sacrement should be received as the spiritual food of souls, whereby may be fed and strengthened those who live with His life who said, He that eateth me, the same also shall live by me; and as an antidote, whereby we may be freed from daily faults, and be preserved from mortal sins. He would, furthermore, have it be a pledge of our glory to come, and everlasting happiness, and thus be **a symbol of that one body whereof He is the head, and to which He would fain have us as members be united by the closest bond of faith, hope, and charity, that we might all speak the same things, and there might be no schisms amongst us.**"

Context: the chapter gives the reasons for which Christ instituted the Eucharist: a memorial of His death, food for the soul, an antidote to sin, a pledge of glory and, last, a symbol of the one Body united in faith.

AFTER · *Unitatis Redintegratio* §8 (Latin):
"Attamen communicationem in sacris considerare non licet velut medium indiscretim adhibendum ad Christianorum unitatem restaurandam. Quae communicatio a duobus principiis praecipue pendet: ab unitate Ecclesiae significanda, et a participatione in mediis gratiae. **Significatio unitatis plerumque vetat communicationem. Gratia procuranda quandoque illam commendat.** De modo concreto agendi, attentis omnibus circumstantiis temporum, locorum et personarum, prudenter decernat auctoritas episcopalis localis, nisi aliud a conferentia episcopali, ad normam propriorum statutorum, vel a Sancta Sede statuatur."
(Vatican English: "Yet worship in common (communicatio in sacris) is not to be considered as a means to be used indiscriminately for the restoration of Christian unity. There are two main principles governing the practice of such common worship: first, the bearing witness to the unity of the Church, and second, the sharing in the means of grace. **Witness to the unity of the Church very generally forbids common worship to Christians, but the grace to be had from it sometimes commends this practice.** The course to be adopted, with due regard to all the circumstances of time, place, and persons, is to be decided by local episcopal authority, unless otherwise provided for by the Bishops' Conference according to its statutes, or by the Holy See.")

Context: §8 has just allowed common prayer with separated Christians. Here it turns to worship in common: it keeps the general prohibition, but it allows the bishops to make exceptions for the sake of grace.

The contradiction: the Eucharist signifies unity in faith. Now the sign may "sometimes" be shared with those who lack that unity. John Paul II himself wrote: "It is not possible to give communion to a person who is not baptized or to one who rejects the full truth of the faith regarding the Eucharistic mystery. Christ is the truth and he bears witness to the truth (cf. Jn 14:6; 18:37); the sacrament of his body and blood does not permit duplicity" (*Ecclesia de Eucharistia* §38). And again: "Precisely because the Church's unity, which the Eucharist brings about through the Lord's sacrifice and by communion in his body and blood, absolutely requires full communion in the bonds of the profession of faith, the sacraments and ecclesiastical governance, it is not possible to celebrate together the same Eucharistic liturgy until those bonds are fully re-established" (§44). He draws that conclusion only for concelebration. In §45–46 he allows Communion to individuals who hold the faith about these sacraments but not the whole faith. The 1993 Directory does the same: "Thus Eucharistic communion is inseparably linked to full ecclesial communion and its visible expression"; yet "in certain circumstances, by way of exception, and under certain conditions, access to these sacraments may be permitted, or even commended, for Christians of other Churches and ecclesial Communities" (§129). The reason John Paul II gives in §44, however, is about the Eucharist itself and not about concelebration. If the unity it brings about "absolutely requires full communion in the bonds of the profession of faith", then to give it to one who lacks that communion is to give the sign without the reality.

The pope's name in the Canon of the Mass

The same principle explains why many traditional priests no longer name the conciliar claimants in the Mass. In the Canon the priest offers the Sacrifice "for Thy holy Catholic Church … together with Thy servant N. our Pope" (*una cum famulo tuo Papa nostro N.*). Benedict XIV explained what this naming means:

> Benedict XIV, *Ex Quo* §12 (1756): "But however it may be with this disputed point of ecclesiastical learning, it suffices Us to be able to state that **a commemoration of the supreme pontiff and prayers offered for him during the sacrifice of the Mass is considered, and really is, an affirmative indication which recognizes him as the head of the Church, the vicar of Christ, and the successor of blessed Peter, and is the profession of a mind and will which firmly espouses Catholic unity**. This was rightly noticed by Christianus Lupus in his work on the Councils: 'This commemoration is the chief and most glorious form of communion'."
>
> *Context:* Benedict XIV is explaining why the revised Greek Euchologion tells priests to name the Pope, and their own bishop and patriarch "provided they are Catholic" (§9). The "disputed point" is whether the early Greek Church named the Pope at Mass.
>
> §23: "Moreover heretics and schismatics are subject to the censure of major excommunication … But the sacred canons of the Church forbid public prayer for the excommunicated … Though this does not forbid prayer for their conversion, still **such prayer must not take the form of proclaiming their names in the solemn prayer during the sacrifice of the Mass**."
>
> *Context:* this explains the rule of §9. The omitted words are references to the canons.

Rome still teaches that the Eucharist is celebrated in union with the Pope:

> CDF, *Communionis Notio* §14 (1992): "The liturgy expresses this reality in various ways, showing, for example, that **every celebration of the Eucharist is performed in union not only with the proper Bishop, but also with the Pope**, with the episcopal order, with all the clergy, and with the entire people. Every valid celebration of the Eucharist expresses this universal communion with Peter and with the whole Church, or objectively calls for it, as in the case of the Christian Churches separated from Rome."
>
> *Context:* the paragraph teaches that the unity of the Eucharist and the unity of the episcopate "with Peter and under Peter" are "essentially interlinked realities". Its last clause allows that a valid Eucharist outside Catholic communion "calls for" communion with Peter without expressing it.

That qualifier concerns Churches that do not name the Pope. Where the priest does name a man as "our Pope", the naming is the expression of communion with him, which is what Benedict XIV says. The Roman Missal's own rubric provides for the case of a vacancy: "Sede autem vacante verba praedicta omittuntur" (when the See is vacant, these words are omitted).

6. The 1968 rite for consecrating bishops

In 1968 Paul VI replaced the essential words of the rite by which bishops are consecrated. Because bishops ordain priests, the validity of this rite affects every sacrament that depends on the priesthood. The claim here is the moderate one: the new rite is at least *positively doubtful*, and the Church forbids relying on a doubtful sacrament.

6.1 The essential words

BEFORE · Pius XII, *Sacramentum Ordinis* §§4–5 (1947):
"Sacrorum Ordinum Diaconatus, Presbyteratus et Episcopatus materiam eamque unam esse manuum impositionem; formam vero itemque unam esse verba applicationem huius materiae determinantia, **quibus univoce significantur effectus sacramentales, — scilicet potestas Ordinis et gratia Spiritus Sancti,** — quaeque ab Ecclesia qua talia accipiuntur et usurpantur. … Denique in Ordinatione seu Consecratione Episcopali materia est manuum impositio quae ab Episcopo consecratore fit. Forma autem constat verbis « Praefationis », quorum haec sunt essentialia ideoque ad valorem requisita: « **Comple in Sacerdote tuo ministerii tui summam**, et ornamentis totius glorificationis instructum coelestis unguenti rore sanctifica »."
(The matter of the sacred Orders of diaconate, priesthood and episcopate is one and the same, the imposition of hands; and the form likewise is one, the words that determine the application of this matter, **which univocally signify the sacramental effects, namely the power of Order and the grace of the Holy Spirit**, and which are accepted and used as such by the Church. … Finally, in episcopal ordination or consecration the matter is the imposition of hands by the consecrating bishop. The form consists of the words of the "Preface", of which these are essential and therefore required for validity: "**Complete in thy priest the fullness of thy ministry**, and, adorned with the ornaments of all glorification, sanctify him with the dew of heavenly anointing." Author's translation.)

Context: Pius XII is settling, by his supreme authority, which words are essential in each of the three Orders of the Roman rite. In §1 he recalls that "Ecclesiae nulla competat potestas in substantiam Sacramentorum" (the Church has no power over the substance of the sacraments); in §3 he adds that what the Church herself has established, such as the handing over of the instruments, "omnes norunt Ecclesiam quod statuit etiam mutare et abrogare valere" (all know the Church can also change and abrogate).

AFTER · Paul VI, *Pontificalis Romani* (1968):

"Quod ut rectius obtineretur, opportunum visum est e fontibus antiquis arcessere precationem consecratoriam quae in ea invenitur, quae vocatur Traditio Apostolica Hippolyti Romani, saeculo tertio ineunte scripta, quaeque, magna ex parte, in liturgia Ordinationis Coptorum et Syrorum occidentalium adhuc servatur. … Porro ex ceteris Supremi Magisterii documentis, ad Sacros Ordines pertinentibus, peculiari mentione dignam existimamus Constitutionem Apostolicam Sacramentum Ordinis … qua declaratur Sacrorum Ordinum Diaconatus, Presbyteratus et Episcopatus materiam eamque unam esse manuum impositionem: formam vero itemque unam esse verba applicationem huius materiae determinantia, **quibus univoce significantur effectus sacramentales** - scilicet potestas Ordinis et gratia Spiritus Sancti - quaeque ab Ecclesia qua talia accipiuntur et usurpantur. … Denique in Ordinatione Episcopi, materia est impositio manuum quae ab Episcopis consecrantibus, vel saltem a Consecratore principali, fit silentio super caput Electi ante precationem consecratoriam; forma autem constat verbis eiusdem precationis consecratoriae, quorum haec ad naturam rei pertinent, atque adeo ut actus valeat exiguntur: **Et nunc effunde super hunc Electum eam virtutem, quae a te est, Spiritum principalem**, quem dedisti dilecto Filio Tuo Iesu Christo, quem Ipse donavit sanctis Apostolis, qui constituerunt Ecclesiam per singula loca, ut sanctuarium tuum, in gloriam et laudem indeficientem nominis tui."

(To achieve this better, it seemed fitting to take from ancient sources the consecratory prayer found in what is called the Apostolic Tradition of Hippolytus of Rome, written at the beginning of the third century, which in great part is still preserved in the ordination liturgy of the Copts and the West Syrians. … Among the other documents of the supreme Magisterium on sacred Orders, We consider worthy of special mention the Apostolic Constitution *Sacramentum Ordinis* … which declares that the matter of the sacred Orders of diaconate, priesthood and episcopate is one and the same, the imposition of hands, and the form likewise is one, the words determining the application of this matter, **which univocally signify the sacramental effects**, namely the power of Order and the grace of the Holy Spirit, and which are accepted and used as such by the Church. … Finally, in the ordination of a bishop the matter is the imposition of hands, made in silence on the head of the elect by the consecrating bishops, or at least by the principal consecrator, before the consecratory prayer; the form consists of the words of the same consecratory prayer, of which these belong to the nature of the thing and are therefore required for the act to be valid: "**And now pour out upon this elect that power which is from you, the governing Spirit**, whom you gave to your beloved Son Jesus Christ, whom he bestowed on the holy Apostles, who established the Church in every place as your sanctuary, for the glory and unceasing praise of your name." Author's translation.)

Context: Paul VI's preamble quotes *Lumen Gentium* §21, that episcopal consecration confers "plenitudinem … Sacramenti Ordinis, quae … summum sacerdotium, sacri ministerii summa nuncupatur" (the fullness of the sacrament of Order, called the high priesthood, the summit of the sacred ministry). He says he declares the essential words "ad omnem controversiam tollendam" (to remove all controversy), since parts of the rite were added, deleted or changed. Only the one sentence above is declared essential. The rest of the new consecratory prayer, outside that sentence, asks that the bishop "summum sacerdotium tibi exhibeat sine reprehensione" (show forth to you the high priesthood without reproach), as quoted by Fr Cekada from the 1990 edition.

The contradiction: the old form names the priesthood (*Sacerdote*) and its fullness (*ministerii tui summam*). The new essential words name neither, yet Paul VI himself repeats Pius XII's rule that these words must signify the power of Order *univocally*. His preamble and the wider prayer do speak of the high priesthood, but those words are outside the sentence he declares necessary for validity.

What Trent defined about the power of a bishop:

> **ANATHEMA** · Council of Trent, Session 23 (15 July 1563), canon 7:
> "CANON VII.–**If any one saith, that bishops are not superior to priests; or, that they have not the power of confirming and ordaining**; or, that the power which they possess is common to them and to priests; or, that orders, conferred by them, without the consent, or vocation of the people, or of the secular power, are invalid; or, that those who have neither been rightly ordained, nor sent, by ecclesiastical and canonical power, but come from elsewhere, are lawful ministers of the word and of the sacraments; let him be anathema."
>
> *Context:* Session 23 is Trent's decree on the sacrament of Order. Canon 6 before it defines a hierarchy "by divine ordination instituted, consisting of bishops, priests, and ministers". The last clause of canon 7 is discussed in section 10.

Trent does not prescribe the words of the form. It defines what distinguishes a bishop: "the power of confirming and ordaining". Pius XII required the essential words to signify the power of Order *univocally*. The old form signified the fullness of the priesthood; the new essential sentence asks for the "governing Spirit", and says nothing of the power to ordain.

6.2 Invoking the Holy Spirit is not enough

BEFORE · Leo XIII, *Apostolicae Curae* §§24–25, 27 (1896), judging the Anglican rite:
"Although the signification ought to be found in the whole essential rite, that is to say, in the 'matter and form', it still pertains chiefly to the 'form'; since the 'matter' is the part which is not determined by itself, but which is determined by the 'form'. And this appears still more clearly in the Sacrament of Order, the 'matter' of which, in so far as we have to consider it in this case, is the imposition of hands, which, indeed, by itself signifies nothing definite, and is equally used for several Orders and for Confirmation. But the words which until recently were commonly held by Anglicans to constitute the proper form of priestly ordination namely, **'Receive the Holy Ghost,' certainly do not in the least definitely express the sacred Order of Priesthood (sacerdotium) or its grace and power**, which is chiefly the power 'of consecrating and of offering the true Body and Blood of the Lord' … In vain has help been recently sought for the plea of the validity of Anglican Orders from the other prayers of the same Ordinal. For, to put aside other reasons which show this to be insufficient for the purpose in the Anglican rite, let this argument suffice for all. From them has been deliberately removed whatever sets forth the dignity and office of the priesthood in the Catholic rite. That 'form' consequently cannot be considered apt or sufficient for the Sacrament which omits what it ought essentially to signify."

Context: Leo XIII is examining the Anglican Ordinal's form. §26 adds that later words ("for the office and work of a priest") came too late; §28 applies the same judgment to bishops, whose preface "has been stripped of the words which denote the *summum sacerdotium*". In §§30–31 he also weighs the rite's "native character": its authors deliberately struck out every mention of sacrifice and priesthood. His verdict therefore rests both on the indeterminate form and on a surrounding rite purged of the priesthood.

AFTER · *Pontificalis Romani* (1968), the essential petition:
"Et nunc **effunde super hunc Electum eam virtutem, quae a te est, Spiritum principalem**, quem dedisti dilecto Filio Tuo Iesu Christo, quem Ipse donavit sanctis Apostolis …" (And now **pour out upon this elect that power which is from you, the governing Spirit**, whom you gave to your beloved Son Jesus Christ, whom he bestowed on the holy Apostles … Author's translation.)

Context: this is the sentence Paul VI declares necessary for validity (6.1). Dom Bernard Botte, who led the study group that drafted the rite, explained *Spiritus principalis*: "The bishop is the ruler of the Church. Hence the choice of the term *hegemonicos* is understandable: it is the gift of the Spirit apt for a leader. The best translation in French would perhaps be '*the Spirit of authority*.'" (*Notitiae*, 1974, quoted by Fr Pierre-Marie).

The contradiction: Leo XIII ruled that an invocation of the Spirit which does not specify the Order is not a sufficient form, because the laying on of hands "by itself signifies nothing definite". The core of the new form is a petition for the "governing Spirit". Fr Anthony Cekada documented that this phrase is used in the Coptic rite to install an abbot, who is a simple priest, and that in Scripture and the Fathers it is applied to King David and to other leaders: "Coptic abbots, King David, and virtuous leaders can all receive this governing Spirit." In fairness, the 1968 rite is not the Anglican Ordinal: its wider prayer was not stripped of the priesthood, and it does name the high priesthood. So the case rests on Pius XII's requirement that the essential words themselves be univocal, not on the surrounding rite.

> **Objection:** the meaning is fixed by the surrounding prayer, and the prayer comes from ancient Eastern rites (Fr Pierre-Marie OP, for the Society of St Pius X):

> "The utilization of the form that is in use in two certainly valid Eastern rites assures its validity. … To respond to the difficulty, two solutions can be offered: 1) Either the designation of the episcopal power by one of its properties (the capacity to receive jurisdiction) is sufficiently clear, in which case the essential part suffices; 2) **or else the essential part, insufficiently determined, is specified by the context, especially by the expression 'summum sacerdotium' [fullness of the priesthood] which follows.**"
>
> *Context:* this is from Fr Pierre-Marie's answer to the "defect of form" objection (*Sel de la Terre*, 2005, published in English by the SSPX). He holds the rite certainly valid, offers these two solutions as alternatives, and in the same section admits that "the Coptic rite does not mention in any way the 'completion of the priesthood' anywhere".

> **Answer:** the defender's second solution concedes that the essential part may be "insufficiently determined" on its own, which is the opposite of univocal; his first rests on reading "governing" as a property of the episcopate, the very point in dispute. As Fr Cekada replies, an argument from context "could never produce moral certitude that the new sacramental form was valid, only a probable opinion that it was", and a probable opinion may not be followed in conferring Orders (below). As for the Eastern rites, Fr Pierre-Marie himself says the Syrian comparison has to be made with "the consecration rite of a Maronite patriarch". Cekada shows that in the Maronite and Syrian rites the prayer closest to Paul VI's is "a *non-sacramental* prayer for installing a Patriarch, who is usually already a bishop when he is appointed", not the sacramental form for making a bishop.

Why doubt is enough. In 1679 the Holy Office condemned, as the first of a list of laxist moral propositions, this one:

> "**It is not illicit in conferring sacraments to follow a probable opinion regarding the value of the sacrament, the safer opinion being abandoned**, unless the law forbids it, convention or the danger of incurring grave harm. Therefore, one should not make use of probable opinions only in conferring baptism, sacerdotal or episcopal orders." (Denzinger 1151)
>
> *Context:* the whole sentence is the condemned proposition. Even the laxists conceded that probable opinions may not be used for baptism and Orders; Innocent XI went further and condemned the use of a probable opinion about validity in any sacrament.

In sacraments the safer course is obligatory. The Society of St Pius X accepts this principle. It holds the Latin form of 1968 valid in itself, but it still treats the question as open in particular cases, because of translations and the intention of the ministers:

> "**The question of episcopal consecration in the 1968 rite promulgated by Paul VI is even more delicate. The difficulty lies in the complete change of the wording of the form of episcopal consecration.** The very erudite article of Fr. Pierre-Marie, O.P., … establishes that the form is in itself valid. … However, this does not mean that this new rite of episcopal ordination is valid in every concrete case, for this could depend upon the translation, modifications (now that the principle of change has been accepted), and eventual defect of intention. … It is for this reason that the superiors have the right to insist on conditional re-ordination for any priest turning towards Tradition, and will only accept ordinations in the conciliar Church after having investigated both priestly and episcopal ordinations and established moral certitude." (Fr Peter Scott, *The Angelus*, September 2007)
>
> *Context:* Fr Scott writes for the SSPX to explain when priests ordained in the new rite are conditionally re-ordained. His doubts concern translations and intention, not the Latin form, which he accepts as valid. Fr Pierre-Marie likewise calls conditional re-ordination a "prudential measure" that "obviously does not weaken the conclusion of our study on the validity of the new rite in itself".

So even those who defend the rite do not claim the moral certitude for every case that the old rite gave. The sedevacantist case goes further: it holds that the Latin form itself fails Pius XII's test of univocity, and that this alone makes it positively doubtful.

7. A different religion, not a reformed one

How a religion is identified

St Robert Bellarmine's classic definition of the Church, as given by Fr John Hardon SJ:

> "Against this limitation, Bellarmine declared that 'according to our doctrine, the one and true Church is **the assembly of men, bound together by the profession of the same Christian faith, and by the communion of the same sacraments, under the rule of legitimate pastors, and in particular of the one Vicar of Christ on earth, the Roman Pontiff**.' From this definition, he says, 'we can easily decide what people belong to the Church and what people do not.' Each of the three elements excludes one class of persons."
>
> *Context:* Bellarmine (*De Ecclesia Militante* III.2) is answering the Protestant idea of an invisible Church "discernible to the eye of God alone". His definition tells who belongs to the Church: unbelievers and heretics fail the first bond, catechumens and the excommunicated the second, schismatics the third. Applying the same three bonds to a whole body is this paper's own step.

By those three bonds, a religion is identified by **what it professes, how it worships, and whom it obeys**.

Worship is itself a profession of faith:

Pius XII, *Mediator Dei* §§47–48 (1947):
"But this is not what the Church teaches and enjoins. **The worship she offers to God, all good and great, is a continuous profession of Catholic faith** and a continuous exercise of hope and charity, as Augustine puts it tersely. … In the sacred liturgy we profess the Catholic faith explicitly and openly, not only by the celebration of the mysteries, and by offering the holy sacrifice and administering the sacraments, but also by saying or singing the credo or Symbol of the faith … **The entire liturgy, therefore, has the Catholic faith for its content, inasmuch as it bears public witness to the faith of the Church.** … The sacred liturgy, consequently, does not decide or determine independently and of itself what is of Catholic faith. … But if one desires to differentiate and describe the relationship between faith and the sacred liturgy in absolute and general terms, it is perfectly correct to say, '*Lex credendi legem statuat supplicandi*' - let the rule of belief determine the rule of prayer."

Context: in §46 Pius XII rejects one use of "*Lex orandi, lex credendi*": the claim that the liturgy is "a kind of proving ground" which obliges the Church to approve a doctrine when it has produced fruits of piety. §47 opens "But this is not what the Church teaches" and states the true relation. Worship professes the faith, and belief governs prayer, not the reverse. This paper relies only on that true relation: a rite professes the faith of those who make it.

That is why Leo XIII judged the Anglican reform a change of religion and not merely of ceremony:

Leo XIII, *Apostolicae Curae* §30 (1896):
"For the full and accurate understanding of the Anglican Ordinal, besides what We have noted as to some of its parts, there is nothing more pertinent than to consider carefully the circumstances under which it was composed and publicly authorised. … the history of that time is sufficiently eloquent as to the animus of the authors of the Ordinal against the Catholic Church; as to the abettors whom they associated with themselves from the heterodox sects; and as to the end they had in view. **Being fully cognisant of the necessary connection between faith and worship, between 'the law of believing and the law of praying', under a pretext of returning to the primitive form, they corrupted the Liturgical Order in many ways to suit the errors of the reformers.** For this reason, in the whole Ordinal not only is there no clear mention of the sacrifice, of consecration, of the priesthood (*sacerdotium*), and of the power of consecrating and offering sacrifice but … every trace of these things which had been in such prayers of the Catholic rite as they had not entirely rejected, was deliberately removed and struck out."

Context: Leo XIII judges the Ordinal by the known heretical intent of its authors as well as by its text. §31 concludes that words in such a rite "cannot be taken in the same sense as they possess in the Catholic rite". Applying this test to the post-conciliar rites is this paper's argument; Leo XIII spoke only of the Anglican Ordinal.

Pius XII had warned against the same appeal to antiquity:

> Pius XII, *Mediator Dei* §§63–64:
> "Just as obviously unwise and mistaken is the zeal of one who in matters liturgical would go back to the rites and usage of antiquity, discarding the new patterns introduced by disposition of divine Providence to meet the changes of circumstances and situation. **This way of acting bids fair to revive the exaggerated and senseless antiquarianism to which the illegal Council of Pistoia gave rise.** It likewise attempts to reinstate a series of errors which were responsible for the calling of that meeting …"
>
> *Context:* Pius XII is reproving private individuals who restore ancient forms on their own authority (§62: "one would be straying from the straight path were he to wish the altar restored to its primitive tableform"). He also teaches (§58) that "the Sovereign Pontiff alone enjoys the right … to introduce and approve new rites, as also to modify those he judges to require modification". The warning is against antiquarianism, not against papal reform as such.

Sections 3–6 showed the change in what is professed. The following show the change in the profession itself and in worship.

7.1 The meaning of dogma

BEFORE · Vatican I, *Dei Filius* ch. 4 §§13–14 (1870):
"For the doctrine of the faith which God has revealed is put forward not as some philosophical discovery capable of being perfected by human intelligence, but as a divine deposit committed to the spouse of Christ to be faithfully protected and infallibly promulgated. Hence, too, **that meaning of the sacred dogmas is ever to be maintained which has once been declared by holy mother church, and there must never be any abandonment of this sense under the pretext or in the name of a more profound understanding.** May understanding, knowledge and wisdom increase as ages and centuries roll along, and greatly and vigorously flourish, in each and all, in the individual and the whole church: but this only in its own proper kind, that is to say, **in the same doctrine, the same sense, and the same understanding**."

Context: the Council is explaining how faith and reason relate. It allows real growth in understanding (the *Crescat* of St Vincent of Lérins), but only "in the same sense"; what it forbids is abandoning a defined meaning in the name of deeper understanding.

AFTER · John Paul II, *Ecclesia Dei* §4 (1988), on Archbishop Lefebvre:
"The *root* of this schismatic act can be discerned in **an incomplete and contradictory notion of Tradition. Incomplete, because it does not take sufficiently into account the *living* character of Tradition**, which, as the Second Vatican Council clearly taught, 'comes from the apostles and progresses in the Church with the help of the Holy Spirit. There is a growth in insight into the realities and words that are being passed on. …' But especially contradictory is a notion of Tradition which opposes the universal Magisterium of the Church possessed by the Bishop of Rome and the Body of Bishops."
Cardinal Arthur Roche, Prefect for Divine Worship, BBC Radio 4, 19 March 2023 (as transcribed by Dr Joseph Shaw): "**You know the theology of the Church has changed.** Whereas before the priest represented, at a distance, all the people. They were channelled, as it were, through this person who alone was celebrating the Mass. It is not only the priest who celebrates the liturgy, but also those who are baptised with him. And that is an enormous statement to make."

Context: John Paul II is explaining why the 1988 episcopal consecrations were a schismatic act. His "living Tradition" quotes *Dei Verbum* §8 on "growth in insight", and his footnote also cites *Dei Filius* ch. 4 (DS 3020), the passage above. Cardinal Roche was explaining to the BBC why the old Mass is restricted. The change he names concerns who celebrates the liturgy. Dr Shaw, who transcribed him, argues that the teaching Roche points to (*Sacrosanctum Concilium* §48) rests on pre-conciliar papal texts.

The contradiction: taken on its own, *Ecclesia Dei*'s appeal to "growth in insight" does not contradict Vatican I, which also allows growth "in the same sense". The conflict lies in its use. "Living Tradition" was invoked to condemn the bishop whose objection was that defined meanings had been abandoned (sections 3–4). A Roman prefect now says outright that "the theology of the Church has changed", on who offers the Mass.

7.2 The sworn profession of faith

BEFORE · Oath against Modernism (1910):
"Fourthly, I sincerely hold that the doctrine of faith was handed down to us from the apostles through the orthodox Fathers in exactly the same meaning and always in the same purport. Therefore, **I entirely reject the heretical' misrepresentation that dogmas evolve and change from one meaning to another different from the one which the Church held previously.** … The purpose of this is, then, not that dogma may be tailored according to what seems better and more suited to the culture of each age; rather, that **the absolute and immutable truth preached by the apostles from the beginning may never be believed to be different, may never be understood in any other way.**"

Context: the oath was "to be sworn to by all clergy, pastors, confessors, preachers, religious superiors, and professors in philosophical-theological seminaries". It accepts every definition of the Church, rejects the specific modernist theses one by one, and submits to *Pascendi* and *Lamentabili*.

AFTER · Congregation for the Doctrine of the Faith, 17 July 1967:
"**Formula to adopt from now on in cases in which the Profession of Faith is prescribed by law in substitution of the Tridentine formula and the oath against modernism** … I also firmly accept and retain each and every truth regarding the doctrine of faith and morals, whether solemnly defined by the Church or asserted and declared with the ordinary Magisterium, as well as those doctrines proposed by the same Magisterium, above all those which regard the mystery of the Holy Church of Christ, the Sacraments, the Sacrifice of the Mass, as well as the Primacy of the Roman Pontiff."

Context: this is the document's title and its closing clause. Between them it gives the Nicene Creed in full. The new formula keeps a general acceptance of all defined and ordinarily taught doctrine.

The contradiction: two years after the Council, the legally required profession of faith was replaced. The new formula still accepts all Church doctrine in general terms, but the sworn rejection of the evolution of dogma, and of each modernist thesis, was dropped.

7.3 Condemning the modern errors

BEFORE · Pius X, *Pascendi* §39 (1907):
"And now, can anybody who takes a survey of the whole system be surprised that We should define it as **the synthesis of all heresies**? Were one to attempt the task of collecting together all the errors that have been broached against the faith and to concentrate the sap and substance of them all into one, he could not better succeed than the Modernists have done. Nay, they have done more than this, for, as we have already intimated, their system means **the destruction not of the Catholic religion alone but of all religion**."
Pius IX, *Quanta Cura* §6 (1864): "Amidst, therefore, such great perversity of depraved opinions, we, well remembering our Apostolic Office … have thought it right again to raise up our Apostolic voice. Therefore, **by our Apostolic authority, we reprobate, proscribe, and condemn all the singular and evil opinions and doctrines severally mentioned in this letter**, and will and command that they be thoroughly held by all children of the Catholic Church as reprobated, proscribed and condemned."

Context: Pius X has just finished setting out the modernist system, including its programme to reform philosophy, theology, worship and Church government (§38). Pius IX has just listed the errors of naturalism and liberalism, including the theory that society should be governed without regard to religion.

AFTER · Paul VI, closing address of Vatican II, 7 December 1965 (vatican.va English):
"Secular humanism, revealing itself in its horrible anti-clerical reality has, in a certain sense, defied the council. **The religion of the God who became man has met the religion (for such it is) of man who makes himself God. And what happened? Was there a clash, a battle, a condemnation? There could have been, but there was none.** The old story of the Samaritan has been the model of the spirituality of the council. A feeling of boundless sympathy has permeated the whole of it. … But we call upon those who term themselves modern humanists, and who have renounced the transcendent value of the highest realities, to give the council credit at least for one quality and to recognize our own new type of humanism: **we, too, in fact, we more than any others, honor mankind.** … Errors were condemned, indeed, because charity demanded this no less than did truth, but for the persons themselves there was only warning, respect and love."
Official Latin: "Religio, id est cultus Dei, qui homo fieri voluit, atque religio - talis enim est aestimanda - id est cultus hominis, qui fieri vult Deus, inter se congressae sunt. Quid tamen accidit? **Certamen, proelium, anathema? Id sane haberi potuerat, sed plane non accidit.** … nam nos etiam, immo nos prae ceteris, **hominis sumus cultores**." (The religion, that is the worship, of God who willed to become man, and the religion, for so it must be judged, that is the worship of man who wills to become God, have met. What happened? Conflict, battle, anathema? That could have happened, but it plainly did not. … for we too, indeed we more than any others, are **worshippers of man**. Author's translation.)

Context: Paul VI is describing the "religious meaning" of the Council and its turn to the modern world. He says the Council looked at man "very much more upon this pleasant side", and he concedes that "errors were condemned", while "for the persons themselves there was only warning, respect and love".

The contradiction: the popes met the religion of man with solemn condemnation. Paul VI says that this time there was no anathema, though "errors were condemned" in general terms. In the Latin he calls the Church, more than any others, *hominis cultores*, using the same word (*cultus*) he has just used for the religion of man (*cultus hominis*).

> **Objection:** in the same address Paul VI turns this humanism toward God: "our humanism becomes Christianity, our Christianity becomes centered on God".

> **Answer:** the address says both things, and the reader should see both:

> Paul VI, closing address, 7 December 1965 (vatican.va English):
> "[Our religion] gives this interpretation in virtue of its knowledge of God: **a knowledge of God is a prerequisite for a knowledge of man** as he really is, in all his fullness … Consequently, if we remember … how in everyone we can and must recognize the countenance of Christ … and if we can and must recognize in Christ's countenance the countenance of our heavenly Father … our humanism becomes Christianity, our Christianity becomes centered on God; in such sort that we may say, to put it differently: **a knowledge of man is a prerequisite for a knowledge of God.** Would not this council, then, which has concentrated principally on man, be destined to propose again to the world of today the ladder leading to freedom and consolation? Would it not be, in short, **a simple, new and solemn teaching to love man in order to love God**? To love man, we say, not as a means but as the first step toward the final and transcendent goal which is the basis and cause of every love."
>
> *Context:* these are the closing paragraphs of the address, in which Paul VI sums up "the ultimate religious meaning" of the Council. The Latin of the reversed sentence reads "opus esse cognoscere hominem, ut cognoscatur Deus" (it is necessary to know man in order that God may be known).

Paul VI first affirms that knowledge of God comes before knowledge of man. He then sums up the Council the other way round: knowledge of man as the prerequisite for knowing God, and love of man as "the first step" to God. The Council's ladder runs from man to God, and that is the order the address presents as the Council's "new" teaching.

7.4 Changing the received rites

BEFORE · Council of Trent, Session 7, canon 13:
"If any one saith, that **the received and approved rites of the Catholic Church**, wont to be used in the solemn administration of the sacraments, may be contemned, or without sin be omitted at pleasure by the ministers, or **be changed, by every pastor of the churches, into other new ones**; let him be anathema."
Pius XII, *Sacramentum Ordinis* §1 (1947): "Neque his a Christo Domino institutis Sacramentis Ecclesia saeculorum cursu alia Sacramenta substituit vel substituere potuit, cum … septem Novae Legis Sacramenta sint omnia a Iesu Christo Domino Nostro instituta et **Ecclesiae nulla competat potestas in substantiam Sacramentorum**, id est in ea quae, testibus divinae revelationis fontibus, ipse Christus Dominus in signo sacramentali servanda statuit." (Nor has the Church in the course of the centuries substituted, nor could she substitute, other sacraments for these instituted by Christ the Lord, since … the seven sacraments of the New Law were all instituted by Jesus Christ our Lord, and **the Church has no power over the substance of the sacraments**, that is, over those things which, as the sources of divine revelation attest, Christ the Lord himself determined should be kept in the sacramental sign. Author's translation.)

Context: Trent's canon is among the canons on the sacraments in general. On its face it condemns ministers and "every pastor" who changes the received rites at will; defenders of the reform read it as aimed at private innovation, not at the Pope. Pius XII adds (§3) that what the Church herself has established in a rite she may change.

AFTER · Paul VI, *Divinae Consortium Naturae* (1971), on Confirmation:
"Ad eum finem Nos in hac recognitione **includi voluimus etiam ea, quae ad ipsam essentiam ritus confirmande [sic] pertinent**, per quem christifideles ut Donum accipiunt Spiritum Sanctum. … Quod ad verba attinet, quae in chrismatione proferuntur, dignitatem venerabilis formulae, quae in Ecclesia Latina adhibetur, aequa aestimatione perpendimus quidem; ei tamen praeferendam censemus antiquissimam formulam ritus Byzantini propriam …" (To that end **We wished to include in this revision also the things that pertain to the very essence of the rite** of Confirmation, by which the faithful receive the Holy Spirit as Gift. … As to the words spoken in the anointing, We have indeed weighed fairly the dignity of the venerable formula used in the Latin Church; yet We judge that the very ancient formula proper to the Byzantine rite is to be preferred … Author's translation.) *Sacram Unctionem Infirmorum* (1972), on Extreme Unction: "All these elements had to be taken into consideration in revising the rite of Sacred Anointing, in order better to adapt to present-day conditions those elements which were subject to change. **We thought fit to modify the sacramental formula** in such a way that, in view of the words of Saint James, the effects of the sacrament might be better expressed."

Context: Paul VI takes the new Confirmation form, "Accipe signaculum doni Spiritus Sancti", from the Byzantine rite, rendering it "fore [fere] verbum pro verbo" (almost word for word). He presents the change to Anointing as touching only "those elements which were subject to change".

The contradiction: in the years after 1968 the sacramental rites were rewritten, and for Orders, Confirmation and Anointing Paul VI changed the essential form itself, what he calls "the very essence of the rite". For Anointing he said he changed only what was "subject to change", and for Confirmation he adopted a form already used in the East. The objection stands where a new form fails to signify what Christ requires; for episcopal consecration, that is the case made in section 6.

7.5 What the Mass is

BEFORE · Council of Trent, Session 22, canons 1 and 3:
"CANON I.-If any one saith, that **in the mass a true and proper sacrifice is not offered to God**; or, that to be offered is nothing else but that Christ is given us to eat; let him be anathema. … CANON III.-If any one saith, that the sacrifice of the mass is only a sacrifice of praise and of thanksgiving; or, that it is **a bare commemoration of the sacrifice consummated on the cross, but not a propitiatory sacrifice**; or, that it profits him only who receives; and that it ought not to be offered for the living and the dead for sins, pains, satisfactions, and other necessities; let him be anathema."

Context: these are the canons of Trent's doctrine on the sacrifice of the Mass. Canon 2, between them, defines that by "Do this for the commemoration of me" Christ instituted the apostles priests and ordained that they and other priests should offer His body and blood.

AFTER · General Instruction of the Roman Missal (1969), article 7:
"**Cena dominica sive Missa est sacra synaxis seu congregatio populi Dei in unum convenientis, sacerdote praeside, ad memoriale Domini celebrandum.** Quare de sanctae Ecclesiae locali congregatione eminenter valet promissio Christi: 'Ubi sunt duo vel tres congregati in nomine meo, ibi sum in medio eorum' (Mt. 18, 20)."
(**The Lord's Supper, or Mass, is the sacred meeting or congregation of the people of God assembled, the priest presiding, to celebrate the memorial of the Lord.** For this reason, Christ's promise applies eminently to such a local gathering of holy Church: "Where two or three come together in my name, there am I in their midst" (Mt. 18:20). Translation as given by Rorate Caeli.)

Context: article 7 opens chapter II, "De structura Missae", of the 1969 Instruction, and is its definition of the Mass. Rorate Caeli, which published the 1969 text, notes that article 7 "would be amended in 1970, 1975, and 2002".

The contradiction: Trent defines a true and propitiatory sacrifice offered by priests. The new Missal's definition in article 7 named a supper, an assembly and a memorial, and applied to that assembly Christ's promise of His presence among two or three. It says nothing of sacrifice, or of the priest acting in the person of Christ. Rome rewrote the definition in 1970, but the rite it described was not changed. Cardinals Ottaviani and Bacci had written to Paul VI:

> "The accompanying critical study of the *Novus Ordo Missae*, the work of a group of theologians, liturgists and pastors of souls, shows quite clearly in spite of its brevity that if we consider the innovations implied or taken for granted, which may of course be evaluated in different ways, **the *Novus Ordo* represents, both as a whole and in its details, a striking departure from the Catholic theology of the Mass as it was formulated in Session XXII of the Council of Trent.** The 'canons' of the rite definitively fixed at that time provided an insurmountable barrier to any heresy directed against the integrity of the Mystery." (Letter of Cardinals Ottaviani and Bacci to Paul VI, 25 September 1969, §1)
>
> *Context:* the letter introduced the *Brief Critical Study of the Novus Ordo Missae* by a group of Roman theologians; according to the SSPX, Archbishop Lefebvre chaired the committee that drafted it. The study's first criticism is of article 7. The cardinals themselves grant that the innovations "may of course be evaluated in different ways".

Paul VI himself acknowledged how great the change was, while insisting that the substance was untouched:

Paul VI, General Audience, 19 November 1969:
"**Il cambiamento ha qualche cosa di sorprendente, di straordinario, essendo considerata la Messa come espressione tradizionale e intangibile del nostro culto religioso, dell'autenticità della nostra fede.** … Ma sia ben chiaro: **nulla è mutato nella sostanza della nostra Messa tradizionale.** … L'unità fra la Cena del Signore, il Sacrificio della croce, la rinnovazione rappresentativa dell'una e dell'altro nella Messa è inviolabilmente affermata e celebrata nel nuovo ordinamento, come nel precedente."
(**The change has something astonishing, extraordinary about it, since the Mass is regarded as the traditional and untouchable expression of our worship, of the authenticity of our faith.** … But let it be quite clear: **nothing has changed in the substance of our traditional Mass.** … The unity between the Lord's Supper, the Sacrifice of the Cross, and the representative renewal of both in the Mass is inviolably affirmed and celebrated in the new order, as in the former. Author's translation.)
Paul VI, General Audience, 26 November 1969: "Come altra volta dicevamo, sarà bene che ci rendiamo conto dei motivi, per i quali è introdotta **questa grave mutazione**: l'obbedienza al Concilio … E finalmente, a ben vedere, si vedrà che il disegno fondamentale della Messa rimane quello tradizionale, non solo nel suo significato teologico, ma altresì in quello spirituale" (As we said before, it will be good for us to understand the reasons why **this grave change** is introduced: obedience to the Council … And finally, on careful inspection, it will be seen that the fundamental design of the Mass remains the traditional one, not only in its theological meaning but also in its spiritual meaning. Author's translation.)

Context: in both audiences Paul VI is preparing the faithful for the new rite, in force in Italy from 30 November 1969. He calls it a "nuovo rito" that "tocca il nostro patrimonio religioso ereditario, che sembrava dover godere d'un'intangibile fissità" (touches our inherited religious patrimony, which seemed bound to enjoy an untouchable fixity). In the same breath he affirms that the substance, the sacrifice and the theological meaning are unchanged.

The pope's own words grant that the rite which had been held to be the "untouchable expression … of the authenticity of our faith" was being gravely changed. His assurance that nothing changed "in the substance" is exactly what the Ottaviani study and article 7 call into question.

7.6 Rome against itself

BENEDICT XVI · *Summorum Pontificum* art. 1 and letter to the bishops (2007):
"The Roman Missal promulgated by Pope Paul VI is the ordinary expression of the *lex orandi* (rule of prayer) of the Catholic Church of the Latin rite. The Roman Missal promulgated by Saint Pius V and revised by Blessed John XXIII is nonetheless to be considered an extraordinary expression of the same *lex orandi* of the Church and duly honoured for its venerable and ancient usage. **These two expressions of the Church's *lex orandi* will in no way lead to a division in the Church's *lex credendi* (rule of faith); for they are two usages of the one Roman rite.**"
"There is no contradiction between the two editions of the Roman Missal. In the history of the liturgy there is growth and progress, but no rupture. **What earlier generations held as sacred, remains sacred and great for us too, and it cannot be all of a sudden entirely forbidden or even considered harmful.** … Needless to say, in order to experience full communion, the priests of the communities adhering to the former usage cannot, as a matter of principle, exclude celebrating according to the new books."

Context: Benedict XVI is freeing the 1962 Missal, which he says was "never abrogated", while keeping the Missal of Paul VI as the ordinary form. His letter explains to the bishops why this does not undermine the Council.

FRANCIS · *Traditionis Custodes* art. 1–2 and letter to the bishops (2021):
"Art. 1. **The liturgical books promulgated by Saint Paul VI and Saint John Paul II, in conformity with the decrees of Vatican Council II, are the unique expression of the *lex orandi* of the Roman Rite.** Art. 2. It belongs to the diocesan bishop … to regulate the liturgical celebrations of his diocese. Therefore, it is his exclusive competence to authorize the use of the 1962 Roman Missal in his diocese, according to the guidelines of the Apostolic See."
"But I am nonetheless saddened that the instrumental use of *Missale Romanum* of 1962 is often characterized by a rejection not only of the liturgical reform, but of the Vatican Council II itself … Responding to your requests, **I take the firm decision to abrogate all the norms, instructions, permissions and customs that precede the present *Motu proprio***, and declare that the liturgical books promulgated by the saintly Pontiffs Paul VI and John Paul II … constitute the unique expression of the *lex orandi* of the Roman Rite."

Context: Francis revokes Benedict XVI's permission. The 1962 Missal is not forbidden outright: a bishop may still authorise it (art. 2). But it is no longer an expression of the Roman rite's *lex orandi*. In the letter Francis gives his reason: many who use it reject the Council.

The contradiction: "two usages of the one Roman rite" that "cannot be … entirely forbidden" become one "unique expression", with the old rite reduced to a concession. Francis states the reason:

Francis, *Desiderio Desideravi* §31 (2022):
"It would be trivial to read the tensions, unfortunately present around the celebration, as a simple divergence between different tastes concerning a particular ritual form. **The problematic is primarily ecclesiological.** I do not see how it is possible to say that one recognizes the validity of the Council … and at the same time not accept the liturgical reform born out of *Sacrosanctum Concilium*, a document that expresses the reality of the Liturgy intimately joined to the vision of Church so admirably described in *Lumen gentium*."

Context: Francis is explaining why he restricted the old rite. He ties the reformed liturgy to the Council's "vision of Church" in *Lumen Gentium*.

Francis makes the dispute one about the Church itself, not about taste: the reformed rite carries the vision of Church of *Lumen Gentium*, and not to accept it is not to accept the Council. Benedict said the two missals express one faith; Francis says the difference is ecclesiological. They cannot both describe the same pair of rites.

What this adds up to

The post-conciliar body has a different profession (the anti-modernist oath dropped, "living Tradition" set against the bishop who held to the fixed meaning, the doctrines of sections 3–4), a different worship (essential sacramental forms replaced, the Mass newly defined), and pastors whose authority is in question (section 6 and Principle 3). By Bellarmine's three bonds, it is not the same religion. Archbishop Lefebvre, who never held the sedevacantist position, said the same in 1976:

"What could be clearer! Henceforth, it is the *Conciliar Church* to which one must be obedient and faithful, and no longer the Catholic Church. … **This *Conciliar Church* is a schismatic Church, because it breaks with the Catholic Church of all time. It has its new dogmas, its new priesthood, its new institutions, its new worship—already condemned by the Church in many official and definitive documents.** … The Church which affirms such errors is at once schismatic and heretical. This *Conciliar Church* is therefore not Catholic. Insofar as the Pope, bishops, priests, and faithful adhere to this new Church, they separate themselves from the Catholic Church." (Archbishop Lefebvre, "Reflections on the suspension *a divinis*", 29 July 1976, tr. *The WM Review*)

Context: Lefebvre is answering his suspension *a divinis* and a letter of Mgr Benelli (25 June 1976) asking for "true fidelity to the conciliar Church". He names as its founding errors the new conception of the Mass in article 7 of the Instruction and the natural right to religious liberty. He concluded that adherents of the "Conciliar Church" separate themselves from the Catholic Church, but he did not conclude that the Holy See was vacant.

8. Why one cannot be in union with Vatican II and *Nostra Aetate*

Sections 3 and 4 set texts side by side. This section asks a different question: can a Catholic give the Council the assent that Rome requires of him? It uses *Nostra Aetate*, the declaration on non-Christian religions (28 October 1965), as the test case. That is the hardest case for this paper, not the easiest. Read with its own qualifiers, *Nostra Aetate* contradicts no defined dogma, and this section says so. The difficulty lies in what Rome requires: an inward assent to the Council as a whole, in its obvious sense, as the act of the supreme magisterium. It also lies in what the claimants have since made of the declaration.

8.1 What Rome requires: adherence, not silence

> **Vatican II**, *Lumen Gentium* §25, 21 November 1964 (vatican.va English):
> "In matters of faith and morals, the bishops speak in the name of Christ and the faithful are to accept their teaching and adhere to it with a religious assent. **This religious submission of mind and will must be shown in a special way to the authentic magisterium of the Roman Pontiff, even when he is not speaking ex cathedra**; that is, it must be shown in such a way that his supreme magisterium is acknowledged with reverence, the judgments made by him are sincerely adhered to, according to his manifest mind and will. **His mind and will in the matter may be known either from the character of the documents, from his frequent repetition of the same doctrine, or from his manner of speaking.**"
> (Latin: "Hoc vero religiosum voluntatis et intellectus obsequium singulari ratione praestandum est Romani Pontificis authentico magisterio etiam cum non ex cathedra loquitur".)
>
> *Context:* the paragraph then distinguishes a higher level. When the bishops teach infallibly, especially in an ecumenical council, their "definitions must be adhered to with the submission of faith". So the Council itself distinguishes the assent of faith from "religious submission".

Vatican II, declaration of the Doctrinal Commission, 6 March 1964, read to the Council on 16 November 1964 and printed with *Lumen Gentium* (vatican.va English):
"Taking conciliar custom into consideration and also the pastoral purpose of the present Council, **the sacred Council defines as binding on the Church only those things in matters of faith and morals which it shall openly declare to be binding.** The rest of the things which the sacred Council sets forth, **inasmuch as they are the teaching of the Church's supreme magisterium, ought to be accepted and embraced by each and every one of Christ's faithful** according to the mind of the sacred Council. The mind of the Council becomes known either from the matter treated or from its manner of speaking, in accordance with the norms of theological interpretation."

Context: those who call Vatican II "merely pastoral" rely on this note, and it does say that the Council defined only what it openly declared. In the same breath it says that the rest must be "accepted and embraced" (*excipere et amplecti*) as the teaching of the supreme magisterium.

Paul VI, promulgation formula at the end of *Nostra Aetate*, 28 October 1965 (vatican.va Latin):
"Haec omnia et singula quae in hac Declaratione edicta sunt, placuerunt Sacrosancti Concilii Patribus. **Et Nos, Apostolica a Christo Nobis tradita potestate, illa, una cum Venerabilibus Patribus, in Spiritu Sancto approbamus, decernimus ac statuimus** et quae ita synodaliter statuta sunt ad Dei gloriam promulgari iubemus."
(Each and every thing set forth in this Declaration has won the approval of the Fathers of the Sacred Council. **And We, by the apostolic power handed down to Us by Christ, together with the Venerable Fathers, approve, decree and enact these things in the Holy Spirit**, and We order that what has thus been enacted in synod be promulgated to the glory of God. Author's translation.)

Context: the same formula closes each of the Council's documents. The vatican.va English text of *Nostra Aetate* leaves it out. The Latin gives it, followed by the signature "Ego PAULUS Catholicae Ecclesiae Episcopus" and the signatures of the Fathers.

Paul VI, General Audience, 12 January 1966 (vatican.va Italian; vatican.va has no English): "Esso è un grande atto del magistero ecclesiastico; e **chi aderisce al Concilio riconosce ed onora con ciò il magistero della Chiesa** … Vi è chi si domanda quale sia l'autorità, la qualificazione teologica, che il Concilio ha voluto attribuire ai suoi insegnamenti, sapendo che esso ha evitato di dare definizioni dogmatiche solenni, impegnanti l'infallibilità del magistero ecclesiastico. E la risposta è nota per chi ricorda la dichiarazione conciliare del 6 marzo 1964, ripetuta il 16 novembre 1964: dato il carattere pastorale del Concilio, **esso ha evitato di pronunciare in modo straordinario dogmi dotati della nota di infallibilità; ma esso ha tuttavia munito i suoi insegnamenti dell'autorità del supremo magistero ordinario** il quale magistero ordinario e così palesemente autentico deve essere accolto docilmente e sinceramente da tutti i fedeli, secondo la mente del Concilio circa la natura e gli scopi dei singoli documenti." (It is a great act of the Church's magisterium; and **whoever adheres to the Council thereby recognises and honours the magisterium of the Church** … Some ask what authority, what theological qualification, the Council meant to give its teachings, knowing that it avoided giving solemn dogmatic definitions that engage the infallibility of the Church's magisterium. The answer is known to anyone who remembers the conciliar declaration of 6 March 1964, repeated on 16 November 1964: given the pastoral character of the Council, **it avoided pronouncing in an extraordinary manner dogmas endowed with the note of infallibility; but it nevertheless endowed its teachings with the authority of the supreme ordinary magisterium**, and this ordinary magisterium, being so plainly authentic, must be received docilely and sincerely by all the faithful, according to the mind of the Council concerning the nature and aims of the individual documents. Author's translation.)

Context: the omitted words quote John XXIII's opening address and deny that the Council is "un distacco, una rottura" (a separation, a break) from the Church's traditional teaching. Earlier in the same audience Paul VI says that Catholic doctrine "non è messa in dubbio dal Concilio o sostanzialmente modificata" (is not put in doubt by the Council or substantially changed).

Paul VI, letter to Archbishop Lefebvre, 11 October 1976 (vatican.va Latin):
"Neque amplius in medium proferre tibi licet **illam distinctionem inter rem dogmaticam et pastoralem, qua fretus alios textus Concilii Vaticani II accipias, alios respuas**. Re quidem vera, quae in aliquo Concilio edicta sunt, ea non eiusdem indolis consensionem postulant; etenim solum id, quod ut veritas fidei ve1 ut fidei adnexum actibus «definitivis», quos vocant, affirmatur, assensum fidei infert. **Verumtamen cetera quoque partem efficiunt sollemnis Magisterii Ecclesiae, quod fidelium quisque fidenter debet accipere et sincere ad effectum deducere.**"
"Haec ergo Declaratio affirmare debet **te sincere adhaerescere ad Concilium Oecumenicum Vaticanum II et singula ipsius documenta, «sensu obvio» intellecta**, quae quidem a Concilii Patribus confecta sint atque ex Nostra auctoritate approbata et promulgata. Nam huiusmodi adhaesio ad Concilia Oecumenica quod spectat, semper agendi regula fuit in Ecclesia a principio."
(Nor may you any longer put forward **that distinction between the dogmatic and the pastoral, relying on which you accept some texts of the Second Vatican Council and reject others**. It is true that the things set forth in a council do not all call for an assent of the same kind: only what is affirmed by "definitive" acts, as they are called, as a truth of faith or as connected with faith, calls for the assent of faith. **But the rest also forms part of the solemn Magisterium of the Church, which each of the faithful must accept with trust and sincerely put into effect.** … This Declaration must therefore affirm that **you sincerely adhere to the Second Vatican Ecumenical Council and to each of its documents, understood "in their obvious sense"**, which were drawn up by the Fathers of the Council and approved and promulgated by Our authority. For such adherence, where ecumenical councils are concerned, has been the rule of conduct in the Church from the beginning. Author's translation.)

Context: Lefebvre had written that he could not see how certain conciliar texts could be reconciled with Trent and earlier popes. Paul VI lists the points as collegiality, the new Mass, ecumenism, religious liberty, dialogue and evangelisation. He answers that explanations may help obedience, but "per se non sunt necessariae ad consensionem, cum oboedientia coniunctam, quae Concilio Oecumenico … debetur" (they are not of themselves necessary for the assent, joined with obedience, that is owed to an ecumenical council). Just before, he states that the Council's decrees contain nothing "quod ecclesiasticae Traditioni duorum milium annorum adversetur, prout ea respiciuntur, quae sunt fundamentalia et immutabilia" (opposed to the Church's two-thousand-year Tradition, as regards the things that are fundamental and immutable). He names himself as guarantor of this "vi muneris" (by virtue of his office) and by the promise "Ego autem rogavi pro te ut non deficiat fides tua". "ve1" is a misprint for *vel* on vatican.va.

Congregation for the Doctrine of the Faith, Profession of Faith, 9 January 1989 (vatican.va English):
"With firm faith, I also believe everything contained in the word of God, whether written or handed down in Tradition, which the Church, either by a solemn judgment or by the ordinary and universal Magisterium, sets forth to be believed as divinely revealed. I also firmly accept and hold each and everything definitively proposed by the Church regarding teaching on faith and morals. **Moreover, I adhere with religious submission of will and intellect to the teachings which either the Roman Pontiff or the College of Bishops enunciate when they exercise their authentic Magisterium, even if they do not intend to proclaim these teachings by a definitive act.**"

Context: this profession follows the Creed and is required of those taking office in the Church (CIC 1983 can. 833). The CDF's 1998 commentary on the same page says that a proposition contrary to teachings of the third kind "can be qualified as erroneous or, in the case of teachings of the prudential order, as rash or dangerous". The CDF's instruction *Donum Veritatis* §23 (1990) adds: "This kind of response cannot be simply exterior or disciplinary but must be understood within the logic of faith and under the impulse of obedience to the faith."

John Paul II, *Ecclesia Dei* §5, 2 July 1988 (vatican.va English):
"a) The outcome of the movement promoted by Mons. Lefebvre can and must be, for all the Catholic faithful, a motive for sincere reflection concerning their own fidelity to the Church's Tradition, **authentically interpreted by the ecclesiastical Magisterium, ordinary and extraordinary, especially in the Ecumenical Councils from Nicaea to Vatican II.** … b) Moreover, I should like to remind theologians and other experts in the ecclesiastical sciences that they should feel themselves called upon to answer in the present circumstances. Indeed, the extent and depth of the teaching of the Second Vatican Council call for a renewed commitment to deeper study in order to reveal clearly **the Council's continuity with Tradition, especially in points of doctrine which, perhaps because they are new, have not yet been well understood by some sections of the Church.**"

Context: written two days after Lefebvre's episcopal consecrations of 30 June 1988, which §3 calls "a schismatic act". §4 traces the "root" of that act to "an incomplete and contradictory notion of Tradition". The words left out of §5 a) call on all the faithful to reject "erroneous interpretations and arbitrary and unauthorized applications in matters of doctrine, liturgy and discipline".

Benedict XVI, letter to the bishops on the remission of the excommunication of the four SSPX bishops, 10 March 2009 (vatican.va English):
"This will make it clear that **the problems now to be addressed are essentially doctrinal in nature and concern primarily the acceptance of the Second Vatican Council and the post-conciliar magisterium of the Popes.** … **The Church's teaching authority cannot be frozen in the year 1962 – this must be quite clear to the Society.** But some of those who put themselves forward as great defenders of the Council also need to be reminded that Vatican II embraces the entire doctrinal history of the Church. Anyone who wishes to be obedient to the Council has to accept the faith professed over the centuries, and cannot sever the roots from which the tree draws its life."

Context: "This" refers to Benedict's decision to join the Pontifical Commission *Ecclesia Dei* to the CDF. The omitted sentence describes the CDF's collegial bodies.

Francis, letter to the bishops accompanying *Traditionis Custodes*, 16 July 2021 (vatican.va English):
"But I am nonetheless saddened that the instrumental use of Missale Romanum of 1962 is often characterized by a rejection not only of the liturgical reform, but of the Vatican Council II itself, claiming, with unfounded and unsustainable assertions, that it betrayed the Tradition and the "true Church". The path of the Church must be seen within the dynamic of Tradition "which originates from the Apostles and progresses in the Church with the assistance of the Holy Spirit" (DV 8). A recent stage of this dynamic was constituted by Vatican Council II where the Catholic episcopate came together to listen and to discern the path for the Church indicated by the Holy Spirit. **To doubt the Council is to doubt the intentions of those very Fathers who exercised their collegial power in a solemn manner cum Petro et sub Petro in an ecumenical council, and, in the final analysis, to doubt the Holy Spirit himself who guides the Church.**"

Context: Francis is explaining why he restricted the 1962 Missal. Later in the letter he names the "rejection of the Church and her institutions in the name of what is called the 'true Church'" as a reason for his decision.

> **Leo XIV**, General Audience on the sixtieth anniversary of *Nostra Aetate*, 29 October 2025 (vatican.va English):
> "Sixty years ago, on 28 October 1965, Vatican Council II, with the promulgation of the Declaration Nostra Aetate, opened up a new horizon of encounter, respect and spiritual hospitality. **This luminous Document teaches us to meet the followers of other religions not as outsiders, but as travelling companions on the path of truth**; to honour differences affirming our common humanity; and to discern, in every sincere religious search, a reflection of the one divine Mystery that embraces all creation. … **For the first time in the history of the Church, a doctrinal treatise on the Jewish roots of Christianity was to take shape, which on a biblical and theological level would represent a point of no return.**"
>
> *Context:* the audience opens with Christ's words to the Samaritan woman, "those who worship him must worship in spirit and truth" (John 4:24). Representatives of other religions were present. More of the same audience is set out in 8.3.

From 1964 to 2025, then, Rome has required the same thing. The faithful must give the Council's teaching an inward assent ("religious submission of mind and will", "not simply exterior or disciplinary"). The assent covers "each of its documents" in their "obvious sense". It is given because the Council is "the solemn Magisterium of the Church". The dogmatic/pastoral distinction does not excuse anyone from it.

8.2 What *Nostra Aetate* teaches, with its qualifiers

The declaration has five paragraphs (vatican.va English). Its key sentences are given here with the qualifiers that defenders rely on, which are also in **bold**.

Nostra Aetate §2 (Hindus, Buddhists, "other religions"):
"Likewise, other religions found everywhere try to counter the restlessness of the human heart, each in its own manner, by proposing "ways," comprising teachings, rules of life, and sacred rites. The Catholic Church rejects nothing that is true and holy in these religions. She regards with sincere reverence those ways of conduct and of life, those precepts and teachings which, though differing in many aspects from the ones she holds and sets forth, nonetheless often reflect a ray of that Truth which enlightens all men. **Indeed, she proclaims, and ever must proclaim Christ "the way, the truth, and the life" (John 14:6), in whom men may find the fullness of religious life, in whom God has reconciled all things to Himself.**"

Nostra Aetate §3 (Muslims):
"The Church regards with esteem also the Moslems. They adore the one God, living and subsisting in Himself; merciful and all- powerful, the Creator of heaven and earth,(5) who has spoken to men … **Though they do not acknowledge Jesus as God, they revere Him as a prophet.** … Since in the course of centuries not a few quarrels and hostilities have arisen between Christians and Moslems, this sacred synod urges all to forget the past and to work sincerely for mutual understanding …"

Nostra Aetate §4 (the Jews):
"As Holy Scripture testifies, **Jerusalem did not recognize the time of her visitation,(9) nor did the Jews in large number, accept the Gospel; indeed not a few opposed its spreading.(10)** Nevertheless, God holds the Jews most dear for the sake of their Fathers; He does not repent of the gifts He makes or of the calls He issues-such is the witness of the Apostle.(11) In company with the Prophets and the same Apostle, the Church awaits that day, known to God alone, on which all peoples will address the Lord in a single voice and "serve him shoulder to shoulder" (Soph. 3:9).(12) … True, the Jewish authorities and those who followed their lead pressed for the death of Christ;(13) still, what happened in His passion cannot be charged against all the Jews, without distinction, then alive, nor against the Jews of today. **Although the Church is the new people of God**, the Jews should not be presented as rejected or accursed by God, as if this followed from the Holy Scriptures. … **It is, therefore, the burden of the Church's preaching to proclaim the cross of Christ as the sign of God's all-embracing love and as the fountain from which every grace flows.**"

Context: the "(5)" note cites Gregory VII's letter to the Muslim king Anzir of Mauritania. The "(12)" note cites Isaiah 66:23, Psalm 65:4 and Romans 11:11–32, Paul's passage on the final conversion of Israel. §1 says that God's "saving design extend[s] to all men, until that time when the elect will be united in the Holy City". §5 condemns discrimination "because of their race, color, condition of life, or religion".

Three passages draw no charge in this paper:

- the refusal to charge Christ's death "against all the Jews, without distinction": §4 itself grounds it in the Church's teaching that Christ died "because of the sins of men";
- the exhortation to "forget the past" with Muslims, which is an exhortation, not a doctrine;
- §5 on discrimination by race and condition (the words "or religion" are taken up in the dissection named below).

The §2 sentences on other religions are already set against *Mortalium Animos* in 4.5. That section concludes that Pius XI's condemnation is not aimed at the text of §2 itself. What remains is the Muslim sentence, the Jewish sentences, and the way Rome now reads the whole. Every one of the declaration's forty-one sentences, including the Hindu and Buddhist sentences that 4.5 does not examine, is graded separately on the companion page *Nostra Aetate* dissected, with the drafting history from the *Acta Synodalia*.

8.3 Where the declaration meets the dogma

Muslims "adore the one God"

TEACHING · Athanasian Creed (*Quicumque vult*), Catholic Encyclopedia text; 1 John 2:22–23 (Douay-Rheims):
"Whosoever will be saved, before all things it is necessary that he hold the Catholic Faith. Which Faith except everyone do keep whole and undefiled, without doubt he shall perish everlastingly. **And the Catholic Faith is this, that we worship one God in Trinity and Trinity in Unity.** Neither confounding the Persons, nor dividing the Substance. … So that in all things, as is aforesaid, the Unity in Trinity, and the Trinity in Unity, is to be worshipped. He therefore that will be saved, must thus think of the Trinity."
"Who is a liar, but he who denieth that Jesus is the Christ? This is Antichrist, who denieth the Father, and the Son. **Whosoever denieth the Son, the same hath not the Father.** He that confesseth the Son, hath the Father also."

Context: the Catholic Encyclopedia describes the Creed as "one of the symbols of the Faith approved by the Church and given a place in her liturgy". It adds that the damnatory clauses "apply, as is evident, only to the culpable and wilful rejection of Christ's words and teachings". St Thomas writes that unbelievers "do not believe that God exists under the conditions that faith determines; hence they do not truly believe in a God" (*Summa* II-II q. 2 a. 2 ad 3). He is speaking of the act of faith, not of worship.

SAID · Vatican II, *Nostra Aetate* §3, 28 October 1965; *Lumen Gentium* §16, 21 November 1964 (vatican.va English and Latin):
"The Church regards with esteem also the Moslems. **They adore the one God**, living and subsisting in Himself; merciful and all- powerful, the Creator of heaven and earth,(5) who has spoken to men; they take pains to submit wholeheartedly to even His inscrutable decrees, just as Abraham, with whom the faith of Islam takes pleasure in linking itself, submitted to God. Though they do not acknowledge Jesus as God, they revere Him as a prophet." *Lumen Gentium* §16: "But the plan of salvation also includes those who acknowledge the Creator. In the first place amongst these there are the Muslims, who, professing to hold the faith of Abraham, **along with us adore the one and merciful God**, who on the last day will judge mankind."
(Latin: NA §3 "qui unicum Deum adorant"; LG §16 "nobiscum Deum adorant unicum, misericordem".)

Context: in *Lumen Gentium* the sentence stands among those who "have not yet received the Gospel" and are "related in various ways to the people of God". The same paragraph ends: "often men, deceived by the Evil One, have become vain in their reasonings … Wherefore … the Church fosters the missions with care and attention."

The contradiction: the Creed says that the Catholic faith "is this, that we worship one God in Trinity". St John says that "whosoever denieth the Son, the same hath not the Father". The Council says that Muslims, who deny the Son, "adore the one God", and *Lumen Gentium* says they do so "along with us" (*nobiscum*). It sets their worship beside the Church's and does not say that it falls short.

> **Objection:** the Council is speaking of the object, not the adequacy, of Muslim worship. There is only one God, the Creator, and Muslims mean Him and no other, though they know Him defectively. The Council states their error in the next sentence ("they do not acknowledge Jesus as God"). Its footnote appeals to Gregory VII, a pope who wrote to a Muslim ruler on this basis. St Paul told the Athenians, "What therefore you worship, without knowing it, that I preach to you" (Acts 17:23).

> **Answer:** the defence has force. The Creed defines what the *Catholic* faith is. It does not define that non-Christians intend no true God at all. St Thomas's "they do not truly believe in a God" concerns the act of faith, not the object a man intends. What remains is the word *nobiscum*. To say that Muslims adore God "along with us" sets their worship beside the Church's worship of the Trinity as if it were the same act. The Creed's "we worship one God in Trinity" is meant to exclude exactly that.

Weight: ambiguous: an orthodox reading exists. The Council says nothing that a defined text denies, though *nobiscum* is hard to square with the Creed's account of Catholic worship.

The Jews: “most dear” and “not rejected”

TEACHING · Council of Florence, Bull of union with the Copts (*Cantate Domino*), Session 11, 4 February 1442 (Tanner translation, papalencyclicals.net); Romans 11:20, 28–29 (Douay-Rheims):
“It firmly believes, professes and preaches that **all those who are outside the catholic church, not only pagans but also Jews or heretics and schismatics, cannot share in eternal life and will go into the everlasting fire** which was prepared for the devil and his angels, unless they are joined to the catholic church before the end of their lives; that the unity of the ecclesiastical body is of such importance that only for those who abide in it do the church’s sacraments contribute to salvation …”
“It firmly believes, professes and teaches that the legal prescriptions of the old Testament or the Mosaic law, which are divided into ceremonies, holy sacrifices and sacraments, because they were instituted to signify something in the future, although they were adequate for the divine cult of that age, **once our lord Jesus Christ who was signified by them had come, came to an end** and the sacraments of the new Testament had their beginning. … But it asserts that **after the promulgation of the gospel they cannot be observed without loss of eternal salvation.**”
Romans 11: “**Well: because of unbelief they were broken off.** But thou standest by faith: be not highminded, but fear. … **As concerning the gospel, indeed, they are enemies for your sake: but as touching the election, they are most dear for the sake of the fathers.** For the gifts and the calling of God are without repentance.”

Context: the Florentine decree is a profession of faith that the Copts were required to accept. The words omitted from the second passage say that whoever puts his hope in the legal prescriptions after the Passion, “as if faith in Christ without them could not save, sins mortally”. They also allow that the prescriptions could be kept between the Passion and the promulgation of the Gospel, “provided they were in no way believed to be necessary for salvation”. Pius XII taught the same of the Old Law in 1943: “by the death of our Redeemer, the New Testament took the place of the Old Law which had been abolished” (*Mystici Corporis* §29). In Romans 11:1–2 St Paul also writes: “Hath God cast away his people? God forbid. … God hath not cast away his people, which he foreknew.”

SAID · Vatican II, *Nostra Aetate* §4, 28 October 1965 (vatican.va English and Latin):
"As Holy Scripture testifies, Jerusalem did not recognize the time of her visitation,(9) nor did the Jews in large number, accept the Gospel; indeed not a few opposed its spreading.(10) **Nevertheless, God holds the Jews most dear for the sake of their Fathers; He does not repent of the gifts He makes or of the calls He issues**-such is the witness of the Apostle.(11) … Although the Church is the new people of God, **the Jews should not be presented as rejected or accursed by God, as if this followed from the Holy Scriptures.**"
(Latin: "Nihilominus, secundum Apostolum, Iudaei Deo, cuius dona et vocatio sine paenitentia sunt, **adhuc carissimi manent** propter Patres (11)." … "Licet autem Ecclesia sit novus populus Dei, Iudaei tamen **neque ut a Deo reprobati neque ut maledicti** exhibeantur, quasi hoc ex Sacris Litteris sequatur.")

Context: note 11 cites Romans 11:28–29 and *Lumen Gentium* §16. The Latin *adhuc carissimi manent* means "still remain most dear"; the vatican.va English drops "still". *Lumen Gentium* §16 had kept St Paul's qualifier: "populus secundum electionem carissimus propter patres" (a people most dear *according to the election* for the sake of the fathers). *Nostra Aetate* drops it.

The contradiction: *Nostra Aetate* denies none of Florence's propositions. The tension lies in what it selects. It quotes the second half of Romans 11:28 ("most dear for the sake of the fathers") and leaves out the first half ("enemies for your sake"). It drops "according to the election", which *Lumen Gentium* had kept. It forbids presenting the Jews as "rejected" (*reprobati*) without recalling that St Paul says "because of unbelief they were broken off". On the need of the Jews to believe in Christ, and on the end of the Mosaic observances, it says nothing at all.

> **Objection:** "God hath not cast away his people" is St Paul's own sentence (Romans 11:1–2). The Council forbids presenting the Jewish *people* as rejected or accursed, "as if this followed from the Holy Scriptures". It does not say that individual Jews are saved without Christ. In the same paragraph it says that "the Church is the new people of God". It says that the Church "awaits that day" of Israel's conversion, citing Romans 11:11–32, and that Christ's cross is "the fountain from which every grace flows".

> **Answer:** on the words, the defence is good. St Paul says both "not cast away" and "broken off", and the Council's sentence can be read with both. "The Church is the new people of God" and "the fountain from which every grace flows" are real qualifiers, and they exclude reading the paragraph as a doctrine of two covenants. A sedevacantist can still object that the paragraph quotes only one side of Paul. But a statement that keeps silent about a dogma is not a denial of it.

Weight: ambiguous: an orthodox reading exists. The paragraph is selective. It does not contradict Florence or *Mystici Corporis*, and its own qualifiers point the other way. The *Acta Synodalia*, however, record why "enemies" was left out: the drafters held that the word "numquam ad posteriores generationes applicare potest" (can never be applied to later generations), while "most dear" holds for all ages (*AS* IV/IV 709). Read in that sense, the "most dear" sentence is captious (see *Nostra Aetate* dissected, 4.9).

“All religions can reflect a ray”: the claimant’s reading

TEACHING · John 14:6; Acts 4:12 (Douay-Rheims); Pius XI, *Mortalium Animos* §2, 6 January 1928 (vatican.va English):

“Jesus saith to him: **I am the way, and the truth, and the life. No man cometh to the Father, but by me.**”

“**Neither is there salvation in any other. For there is no other name under heaven given to men, whereby we must be saved.**”

“Certainly such attempts can nowise be approved by Catholics, founded as they are on **that false opinion which considers all religions to be more or less good and praiseworthy, since they all in different ways manifest and signify that sense which is inborn in us all, and by which we are led to God** and to the obedient acknowledgment of His rule. Not only are those who hold this opinion in error and deceived, but also in distorting the idea of true religion they reject it, and little by little. turn aside to naturalism and atheism, as it is called; from which it clearly follows that one who supports those who hold these theories and attempt to realize them, is altogether abandoning the divinely revealed religion.”

Context: Peter speaks in Acts 4 before the Sanhedrin of “the name of our Lord Jesus Christ of Nazareth, whom you crucified”. Pius XI is describing meetings at which “infidels of every kind” and Christians are invited to agree on “a common basis of the spiritual life”. The stray full stop after “little” is in the vatican.va text.

SAID · Leo XIV, General Audience on the sixtieth anniversary of *Nostra Aetate*, 29 October 2025 (vatican.va English):

“The spirit of Nostra Aetate continues to illuminate the path of the Church. **She recognizes that all religions can reflect “a ray of that Truth which enlightens all men” (NA, 2)** and seek answers to the great mysteries of human existence, so that dialogue must never be solely intellectual, but profoundly spiritual. … Therefore, dear brothers and sisters, sixty years after Nostra Aetate, we can ask ourselves: what can we do together? The answer is simple: we can act together. More than ever, our world needs our unity, our friendship and our collaboration. Each one of our religions can contribute to alleviating human suffering and taking care of our common home, our planet Earth. **Our respective traditions teach truth, compassion, reconciliation, justice and peace.**”

Summary given by the Holy See in the same text: “Indeed, **Nostra Aetate invites us to view every religion as a quest for truth** and to see every sincere seeker of God as one who reflects his divine mystery.”

Context: Leo XIV is addressing an audience that includes “the leaders and representatives of non-Christian religions”. He also says: “Together, we must be vigilant against the abuse of the name of God, of religion, and of dialogue itself”. Nowhere in the audience does he say that the religions save, and he does not mention the proclaiming of Christ that *Nostra Aetate* §2 requires.

The contradiction: *Nostra Aetate* said that the precepts and teachings of other religions "often" (*haud raro*) reflect a ray of the Truth, and it added at once that the Church "ever must proclaim Christ". On its sixtieth anniversary the claimant says that "all religions can reflect" that ray. He also says that "our respective traditions teach truth", and the Holy See's summary of his words invites the faithful "to view every religion as a quest for truth". This comes close to the opinion Pius XI condemned: that all religions "in different ways manifest and signify that sense … by which we are led to God". The qualifier that made §2 defensible is missing.

> **Objection:** Leo XIV does not call the religions "good and praiseworthy" or say that they save. "Can reflect" is not "do reflect". He was giving a pastoral audience, not defining. Partial truths are found among non-Christians; the Church has always admitted that.

> **Answer:** each point is true, and the defence holds against a charge of heresy. "Can reflect" and "teach truth" can be read as partial truths, which the Church has always admitted, and Leo XIV does not affirm the full proposition Pius XI condemned. What the passage shows is the direction in which the claimant reads *Nostra Aetate*. It drops the qualifiers ("often", "ever must proclaim Christ") and keeps the praise. *Lumen Gentium* §25 says a pope's "authentic magisterium" is known "from his frequent repetition of the same doctrine, or from his manner of speaking", and it requires religious submission to that magisterium. Since 1965 the claimants have repeated this reading: see John Paul II's 1998 audience in 4.5 and Leo XIV here. A Catholic in union with them is asked to receive the declaration in this sense.

Weight: ambiguous: an orthodox reading exists. Taken as partial truths, the words are defensible, though they lean further towards the opinion condemned in *Mortalium Animos* §2 than *Nostra Aetate* itself does. (Section 9 grades Leo XIV's address of 28 October 2025 on the same subject as ambiguous too.)

8.4 Why the assent cannot be given

The faith to which every other assent is subject:

> **DEFINED** · Vatican I, *Dei Filius* ch. 3, 24 April 1870 (Tanner translation, papalencyclicals.net): "Wherefore, **by divine and catholic faith all those things are to be believed which are contained in the word of God as found in scripture and tradition, and which are proposed by the church as matters to be believed as divinely revealed, whether by her solemn judgment or in her ordinary and universal magisterium.** Since, then, without faith it is impossible to please God [21] and reach the fellowship of his sons and daughters, it follows that no one can ever achieve justification without it, neither can anyone attain eternal life unless he or she perseveres in it to the end."

DEFINED · Vatican I, *Pastor Aeternus* ch. 4 §6, 18 July 1870 (Tanner translation, papalencyclicals.net):
"For the holy Spirit was promised to the successors of Peter **not so that they might, by his revelation, make known some new doctrine, but that, by his assistance, they might religiously guard and faithfully expound the revelation or deposit of faith transmitted by the apostles.**"

Context: this is the preamble to the definition of infallibility (see Principle 1). It states what the papal office is for. It is not itself the defined proposition.

ANATHEMA · St Paul, Galatians 1:6–9 (Douay-Rheims):
"I wonder that you are so soon removed from him that called you into the grace of Christ, unto another gospel. Which is not another, only there are some that trouble you, and would pervert the gospel of Christ. **But though we, or an angel from heaven, preach a gospel to you besides that which we have preached to you, let him be anathema.** As we said before, so now I say again: **If any one preach to you a gospel, besides that which you have received, let him be anathema.**"

Context: this is Scripture's own anathema. Paul makes the Gospel already received the measure of every later preacher, himself and the angels included.

The argument runs in five steps.

1. **Rome requires an inward assent, not silence.** "Religious submission of mind and will" (*Lumen Gentium* §25) is "not simply exterior or disciplinary" (*Donum Veritatis* §23). It is owed to the Council as "the solemn Magisterium of the Church", to "each of its documents" "in their obvious sense", and the dogmatic/pastoral distinction does not excuse anyone from it (Paul VI, 1976). Those who take office swear it (Profession of Faith, 1989).
2. **The assent of religious submission is subordinate to divine faith.** No one can, with religious submission, judge a teaching true while holding its contradictory by divine and catholic faith (*Dei Filius* ch. 3). Where a teaching truly contradicts revealed truth, the faith wins (Galatians 1:8–9), and the "submission" demanded becomes impossible.
3. **Rome stakes the Church's authority on the Council's orthodoxy.** Paul VI made himself guarantor, "by virtue of his office", that the Council contains nothing opposed to the Church's Tradition "as regards the things that are fundamental and immutable". Francis says that "to doubt the Council is … to doubt the Holy Spirit himself". Rome does not offer the Council as a fallible opinion that may be set aside. It offers it as the voice of the assisted magisterium.

4. **So the choice is the one put in Principle 1.** If the Council and its authentic interpretation teach what the Church has condemned, then the authority that imposes them cannot be the Church's, for the Church cannot impose error on all the faithful. If they teach nothing of the kind, then the assent is owed and must be given. One cannot both call the Council error and treat its author as the Church's magisterium. Paul VI forbade that middle course in 1976.
5. **The *una cum* is this communion made explicit.** Section 5 showed that naming a man as "our Pope" in the Canon is, on Benedict XIV's account, a profession of communion with him as head of the Church. The man named is the one who requires adherence to the Council as the act of the supreme magisterium. Leo XIV, for instance, calls *Nostra Aetate* a "luminous Document", and its teaching on the Jews "a point of no return". To name him is to profess communion with the authority that imposes the Council and its reading.

Applied honestly, step 2 cuts both ways. Where a conciliar sentence admits an orthodox reading, a Catholic can assent to it in that sense, and 8.3 found that most of *Nostra Aetate* does admit one. The argument against union therefore does not rest on *Nostra Aetate*'s sentences taken alone. It rests on three things:

- the obligation to adhere to *every* document of the Council, including *Dignitatis Humanae*, where §3 found the sharpest conflict;
- the reading of *Nostra Aetate* that the claimants have repeated with all the weight of their "authentic magisterium", which drops its qualifiers, though no single sentence of it has been shown to be heretical;
- Rome's own claim that the Council is the teaching of the Church's assisted magisterium, so that it cannot be set aside as a private error.

8.5 Objections

> **Objection:** *Nostra Aetate* does not say that other religions save. It says the Church "ever must proclaim Christ 'the way, the truth, and the life'". *Lumen Gentium* §14, promulgated by the same Council, teaches that the Church "is necessary for salvation" and that "whosoever, therefore, knowing that the Catholic Church was made necessary by Christ, would refuse to enter or to remain in it, could not be saved."

> **Answer:** this is the strongest defence, and it is correct about the text. *Lumen Gentium* §14 repeats the necessity of the Church, though with the qualifier "knowing that". *Nostra Aetate* §2 keeps the duty to proclaim Christ. This is why 8.3 grades the declaration's own sentences as ambiguous rather than heretical. The charge against union does not need the declaration to deny the dogma in so many words. It needs Rome to require assent to the Council as a whole and to an official reading of it that leaves the qualifiers behind. Rome does both (8.1 and 8.3).

> **Objection:** *Nostra Aetate* §4 itself says "the Church is the new people of God". It cannot be accused of teaching that the Old Covenant still saves.

> **Answer:** granted. The qualifier is there, and the text should not be charged with a doctrine of two covenants. The criticism of §4 is limited to the selective use of Romans 11 shown in 8.3.

Objection (the position of the Society of St Pius X): the Council defined nothing. Its own Doctrinal Commission said it "defines as binding on the Church only those things … which it shall openly declare to be binding". Non-definitive teaching is not infallible and may contain errors, and a Catholic may withhold assent from those errors while recognising the pope. Archbishop Lefebvre stated the Society's stance in his Declaration of 21 November 1974: "We refuse, on the other hand, and have always refused to follow the Rome of neo-Modernist and neo-Protestant tendencies which were clearly evident in the Second Vatican Council and, after the Council, in all the reforms which derived from it." Rome itself allows that a theologian "might have serious difficulties, for reasons which appear to him wellfounded, in accepting a non-irreformable magisterial teaching", and it tells him to put them to the authorities (*Donum Veritatis* §§28–31).

> **Answer:** the premise is right: the Council defined no new dogma, and Paul VI said so himself in 1966. Three things block the conclusion.

- The same Commission note and the same audience say that the rest must be "accepted and embraced by each and every one" as the teaching of the supreme magisterium. Paul VI rejected Lefebvre's very distinction by name in 1976.
- *Donum Veritatis* allows a theologian with a particular difficulty to submit it to the authorities and to "suffer for the truth, in silence and prayer". It does not allow the faithful as a body to reject an ecumenical council's teaching on religious liberty, ecumenism and the liturgy for decades, while receiving the sacraments from and naming in the Canon the authority that imposes it.
- Principle 1 holds that the Church's authority cannot give the whole Church error and harmful discipline. The more errors the Society finds in the Council, the stronger the case that the authority imposing it is not the Church's. Section 10 develops this answer.

Objection (the hermeneutic of continuity): Rome itself denies any break. The CDF (2007) answers that "The Second Vatican Council neither changed nor intended to change this doctrine, rather it developed, deepened and more fully explained it". Benedict XVI (2009) says that "Vatican II embraces the entire doctrinal history of the Church". *Ecclesia Dei* asks theologians to show "the Council's continuity with Tradition".

> **Answer:** a sedevacantist can accept, as a rule of interpretation, that an ambiguous text is to be read in the light of earlier dogma. 8.3 applies exactly that rule. But the rule cannot reconcile a statement that, in its obvious sense, says the contrary of an earlier one. Its defenders also concede more than continuity:

- Benedict XVI granted in 2005 that "a discontinuity had been revealed" (see §10);
- *Ecclesia Dei* speaks of "points of doctrine which, perhaps because they are new, have not yet been well understood";
- Paul VI restricted his guarantee to what is "fundamental and immutable";

- Leo XIV calls the declaration's teaching on the Jews "a point of no return".

Each such admission is evidence that something changed. The rule of continuity cannot settle whether it is doctrine; that has to be tested text by text, as §§3–4 do.

8.6 Weight

Weight: what is strictly proven is narrow but firm. First, Rome requires every Catholic to give the Council an inward assent of mind and will. The assent covers each document in its obvious sense, as the act of the supreme magisterium, and the "pastoral" distinction does not excuse anyone. The Council itself, Paul VI, the CDF, John Paul II, Benedict XVI and Francis say so in their own words. Second, that assent cannot be given to any statement that contradicts what is held by divine and catholic faith. Third, naming a claimant in the Canon professes communion with the authority that imposes the Council. What is argued, not proven, is that *Nostra Aetate* in particular contains such a contradiction. Read with its qualifiers, it contradicts no defined dogma: the Muslim and Jewish sentences are ambiguous (the "most dear" sentence captious in its drafters' sense), and of §2's sentences the Buddhism sentence, the gravest in the declaration, is suspect of heresy but denies no dogma as it stands. The claimants' reading of it, as at 29 October 2025, drops the qualifiers and leans towards the opinion condemned in *Mortalium Animos* §2, but it too admits an orthodox reading. The strict case against union with the Council therefore rests on its other documents, above all *Dignitatis Humanae* (§3). *Nostra Aetate* shows the direction of the Council and of those who impose it; it does not, on its own, prove a contradiction of dogma.

9. The claimants one by one

This section takes each man who has claimed the papacy since 1958 and sets his own words beside the teaching they are said to contradict. It is written to be checked, so it states plainly what each text proves and what it does not.

What counts as heresy

The 1917 Code defines a heretic as one who, keeping the name of Christian, "pertinaciter aliquam ex veritatibus fide divina et catholica credendis denegat aut de ea dubitat" (pertinaciously denies or doubts one of the truths to be believed by divine and catholic faith) (canon 1325 §2). Two things are therefore needed: a truth of divine and catholic faith, and pertinacity. On the second, the Code sets a presumption in the external forum:

> **DEFINED** · Code of Canon Law (1917), canon 2200:
> "§1. Dolus heic est deliberata voluntas violandi legem, eique opponitur ex parte intellectus defectus cognitionis et ex parte voluntatis defectus libertatis. §2. **Posita externa legis violatione, dolus in foro externo praesumitur, donec contrarium probetur.**"
> (§1. Malice here is the deliberate will to violate the law; opposed to it, on the side of the intellect, is a lack of knowledge, and on the side of the will, a lack of freedom. §2. **Once an external violation of the law is established, malice is presumed in the external forum until the contrary is proved.** Author's translation.)
>
> *Context:* the canon opens the Code's treatment of delicts and their imputability. It is a rule of evidence for the Church's courts, not a judgment about anyone's soul. Its application to a pope's public teaching is this paper's argument, not a ruling of the Church.

Each charge below is graded on a four-point scale, and the grade is stated even where it weakens the case:

- **contradicts a defined dogma**: the strongest grade. Heresy in the strict sense of canon 1325, if pertinacious.
- **contrary to the Church's constant teaching, but not a defined dogma**: grave error against what the Church taught before, short of strict heresy.
- **ambiguous: an orthodox reading exists**: the words can bear a Catholic sense, and must be given it.

- **act or gesture**: evidence of mind, not a doctrinal statement.

The result, stated in advance

CLAIMANT	ITEMS EXAMINED	STRONGEST GRADE REACHED
John XXIII (1958–1963)	*Pacem in Terris* §14; *Gaudet Mater Ecclesia*	Ambiguous: no charge stands on his own words
Paul VI (1963–1978)	Promulgation of *Dignitatis Humanae*; also §§3–4, 6, 7.3, 7.5	Contrary to constant teaching (and promulgator of every conciliar text in §§3–4 and of the rites in §§6–7)
John Paul I (1978)	"Our mother"; pledge to the Council	Ambiguous: no charge stands on his own words
John Paul II (1978–2005)	Old Covenant "never revoked"; "the same God"; martyrs of all communities; *Redemptor Hominis*	Contrary to constant teaching; the *Joint Declaration* on Trent's anathemas (4.6) was also signed in the Church's name during his pontificate
Benedict XVI (2005–2013)	"Ecumenism of the return"; dialogue and conversion; the primacy "in the first millennium"	Contrary to constant teaching
Francis (2013–2025)	Abu Dhabi; Singapore; the death penalty; *Amoris Laetitia*; *Fiducia Supplicans*	Contrary to constant teaching
Leo XIV (2025–)	*Nostra Aetate* anniversary; *In unitate fidei*; dogmatic formulas "provisional"	Ambiguous

No single sentence examined here reaches the first grade on its own. The honest form of the charge is therefore cumulative, and it has three parts.

1. **The documents.** Paul VI promulgated, "by the apostolic power handed down to Us by Christ", the conciliar teaching set against the earlier magisterium in sections 3 and 4. Each successor has required adherence to it (section 8).

2. **The pattern.** Over sixty years the claimants have repeatedly said, as their own teaching, things the Church before them condemned or excluded. *Lumen Gentium* §25 itself says a pope's mind is known "from his frequent repetition of the same doctrine".
3. **The presumption.** These are public acts of men trained in theology, repeated after objection. Canon 2200 §2 presumes malice in such a case until the contrary is proved.

Whether that amounts to the public defection from the faith of canon 188, 4º is the judgment the reader must make. The texts follow.

9.1 John XXIII (1958–1963)

Angelo Roncalli was elected in October 1958, convoked the Council and opened it on 11 October 1962, and died in June 1963. He promulgated none of its documents: the first, *Sacrosanctum Concilium*, was promulgated by Paul VI on 4 December 1963. Sedevacantists differ over him. The Most Holy Family Monastery holds that he "was not a valid pope". The Congregation of Mary Immaculate Queen (CMRI) says in its position statement that "with the death of Pope Pius XII and with the convocation of the Second Vatican Council, an unprecedented situation has befallen the Church". Yet the first claimant it names as no longer representing the Church's authority is Paul VI, "the one who confirmed, approved, decreed, and implemented these heretical teachings". Its Bishop Mark Pivarunas likewise writes that "we necessarily must reject Paul VI, John Paul II and Benedict XVI as legitimate Popes". This paper does not need to settle the question. The two texts most often cited against John XXIII are examined below. Read in full, neither contradicts a defined dogma.

A right to worship God according to conscience

TEACHING · Pius IX, *Quanta Cura* §3, 8 December 1864; Leo XIII, *Libertas* §42, 20 June 1888:
"And, against the doctrine of Scripture, of the Church, and of the Holy Fathers, they do not hesitate to assert that 'that is the best condition of civil society, in which no duty is recognized, as attached to the civil power, of restraining by enacted penalties, offenders against the Catholic religion, except so far as public peace may require.' From which totally false idea of social government they do not fear to foster that erroneous opinion, most fatal in its effects on the Catholic Church and the salvation of souls, called by Our Predecessor, Gregory XVI, an 'insanity,' viz., that '**liberty of conscience and worship is each man's personal right**, which ought to be legally proclaimed and asserted in every rightly constituted society …'" *Libertas* §42 (vatican.va English): "From what has been said it follows that it is quite unlawful to demand, to defend, or to grant unconditional freedom of thought, of speech, or writing, or of worship, **as if these were so many rights given by nature to man**. For, if nature had really granted them, it would be lawful to refuse obedience to God, and there would be no restraint on human liberty."

Context: Pius IX is listing the opinions of those who apply "naturalism" to civil society, and in §6 he condemns them "by our Apostolic authority" (see 3.1 and 3.6). In §30 of the same encyclical Leo XIII approves another sense of "liberty of conscience" (see the Objection).

SAID · John XXIII, *Pacem in Terris* §14, 11 April 1963 (vatican.va English):
"Also among man's rights is that of being able to **worship God in accordance with the right dictates of his own conscience, and to profess his religion both in private and in public**. According to the clear teaching of Lactantius, 'this is the very condition of our birth, that we render to the God who made us that just homage which is His due; that we acknowledge Him alone as God, and follow Him. It is from this ligature of piety, which binds us and joins us to God, that religion derives its name.' Hence, too, Pope Leo XIII declared that 'true freedom, freedom worthy of the sons of God, is that freedom which most truly safeguards the dignity of the human person. It is stronger than any violence or injustice. Such is the freedom which has always been desired by the Church, and which she holds most dear. …'"
Official Latin: "In hominis iuribus hoc quoque numerandum est, ut et Deum, **ad rectam conscientiae suae normam**, venerari possit, et religionem privatim publice profiteri." (Among man's rights this too must be counted: that he may worship God **according to the right norm of his conscience**, and profess religion in private and in public. Author's translation.)

Context: §9 says that every man "has rights and duties, which together flow as a direct consequence from his nature. These rights and duties are universal and inviolable". The words of Leo XIII come from *Libertas* (note 11: *Acta Leonis XIII* VIII, pp. 237–238).

The contradiction: Pius IX condemned the opinion that "liberty of conscience and worship is each man's personal right". Leo XIII denied that freedom of worship is a right "given by nature". *Pacem in Terris* lists, among the rights that flow from man's nature, a right to worship God according to conscience and to profess religion in public. Two years later *Dignitatis Humanae* (§2, note 2) cited *Pacem in Terris*, together with the same pages of *Libertas*, for its claim that the right to religious freedom is founded in the dignity of the person.

> **Objection:** the encyclical grants no right to any worship whatever. It speaks of worshipping *God* according to a *right* conscience (*recta*), and it explains the right from Lactantius ("that we acknowledge Him alone as God") and from Leo XIII. The passage of Leo XIII it quotes is *Libertas* §30, which distinguishes two meanings of "liberty of conscience":

> Leo XIII, *Libertas* §30 (vatican.va English):
> "Another liberty is widely advocated, namely, liberty of conscience. If by this is meant that everyone may, as he chooses, worship God or not, it is sufficiently refuted by the arguments already adduced. But it may also be taken to mean that **every man in the State may follow the will of God and, from a consciousness of duty and free from every obstacle, obey His commands. This, indeed, is true liberty, a liberty worthy of the sons of God**, which nobly maintains the dignity of man and is stronger than all violence or wrong - a liberty which the Church has always desired and held most dear."

On this reading §14 states the liberty Leo XIII approved, not the one Pius IX condemned.

> **Answer:** the defence is good, and the text supports it. Both authorities quoted to explain the right speak of the worship due to the one true God. The text does leave one point open: it does not say whether a "right" conscience is one that judges truly or one that is merely sincere. The English also adds "his" religion where the Latin has only *religionem*. Neither point amounts to a denial of Catholic teaching. The Council later went further than this sentence. *Dignitatis Humanae* §2 says the right "has its foundation not in the subjective disposition of the person, but in his very nature", and that it "continues to exist even in those who do not live up to their obligation of seeking the truth and adhering to it". *Pacem in Terris* does not say that. The charge belongs to the conciliar declaration and the man who promulgated it (9.2), not to §14 on its own words.

Weight: ambiguous: an orthodox reading exists. *Ad rectam conscientiae suae normam*, and the passage of *Libertas* §30 quoted with it, allow §14 to mean the "true liberty" Leo XIII approved.

The deposit of faith and the way it is presented

TEACHING · Vatican I, *Dei Filius* ch. 4, 24 April 1870 (papalencyclicals.net English):
"For the doctrine of the faith which God has revealed is put forward not as some philosophical discovery capable of being perfected by human intelligence, but as a divine deposit committed to the spouse of Christ to be faithfully protected and infallibly promulgated. Hence, too, **that meaning of the sacred dogmas is ever to be maintained which has once been declared by holy mother church**, and there must never be any abandonment of this sense under the pretext or in the name of a more profound understanding. May understanding, knowledge and wisdom increase as ages and centuries roll along, and greatly and vigorously flourish, in each and all, in the individual and the whole church: but this only in its own proper kind, that is to say, **in the same doctrine, the same sense, and the same understanding**."
Latin of the last clause (vatican.va): "in eodem scilicet dogmate, **eodem sensu, eademque sententia**".

Context: the closing words are from St Vincent of Lérins, *Commonitorium* 28. Canon 3 of the chapter anathematises anyone who says that "a sense may be assigned to the dogmas propounded by the church which is different from that which the church has understood and understands".

SAID · John XXIII, opening address of Vatican II, *Gaudet Mater Ecclesia* §6 (Latin numbering), 11 October 1962, in the familiar English translation:
"… the Christian, Catholic, and apostolic spirit of the whole world expects a step forward toward a doctrinal penetration and a formation of consciousness in faithful and perfect conformity to the authentic doctrine, which, however, should be studied and expounded through the methods of research and through the literary forms of modern thought. **The substance of the ancient doctrine of the deposit of faith is one thing, and the way in which it is presented is another.** And it is the latter that must be taken into great consideration with patience if necessary, everything being measured in the forms and proportions of a magisterium which is predominantly pastoral in character."
Official Latin (vatican.va): "… oportet ut haec doctrina certa et immutabilis, cui fidele obsequium est praestandum, ea ratione pervestigetur et exponatur, quam tempora postulant nostra. Est enim aliud ipsum depositum Fidei, seu veritates, quae veneranda doctrina nostra continentur, aliud modus, quo eaedem enuntiantur, **eodem tamen sensu eademque sententia**." (… this certain and unchangeable doctrine, to which faithful assent must be given, should be studied and set forth in the way our times require. For the deposit of faith itself, that is, the truths contained in our venerable doctrine, is one thing, and the manner in which they are expressed is another, **yet with the same sense and the same meaning**. Author's translation.)

Context: the pope has just said that the whole of Christian doctrine is to be received anew "nulla parte inde detracta" (with no part of it taken away). The vatican.va Italian also has the qualifier: "sempre però nello stesso senso e nella stessa accezione". When Benedict XVI quoted the familiar English in 2005, he added outside his quotation marks: "retaining the same meaning and message".

The contradiction: in the familiar English, the sentence separates the "substance" of doctrine from its "presentation" and says nothing to protect the meaning. That is the gap the modernists exploited (see 7.1–7.2). *Dei Filius* allows growth only "in the same doctrine, the same sense, and the same understanding".

> **Objection:** the official text is the Latin, and it closes the gap with the very words of *Dei Filius* and St Vincent: "eodem tamen sensu eademque sententia". In the sentence just before, John XXIII calls the doctrine "certa et immutabilis" (certain and unchangeable).

> **Answer:** the objection is right. In the official Latin and in the vatican.va Italian, John XXIII restates *Dei Filius*; he does not contradict it. The familiar English has nothing for the qualifier, and it should not be quoted against him without saying so. What remains is a programme: to express unchanged doctrine in new ways, under a magisterium "praesertim pastoralis" (chiefly pastoral). Whether the Council's documents kept "the same sense" is the question sections 3, 4 and 8 put to them. This sentence does not answer it either way.

Weight: ambiguous: an orthodox reading exists. The official text affirms the dogma in its own words, and the charge rests only on a translation that leaves out the qualifier.

Acts often cited (not doctrinal statements): in the same address (§7) John XXIII announced a policy. He first recalled: "Quibus erroribus Ecclesia nullo non tempore obstitit, eos saepe etiam damnavit, et quidem severitate firmissima" (The Church has at every time opposed these errors, and has often condemned them too, and with the firmest severity). He went on: "Ad praesens tempus quod attinet, Christi Sponsae placet **misericordiae medicinam adhibere, potius quam severitatis arma suscipere**; magis quam damnando, suae doctrinae vim uberius explicando putat hodiernis necessitatibus esse consulendum. Non quod desint fallaces doctrinae, opinationes, pericula praecavenda atque dissipanda …" (As for the present time, the Bride of Christ is pleased **to use the medicine of mercy rather than take up the arms of severity**; she judges that today's needs are better met by setting out the force of her teaching more fully than by condemning. Not that there is any lack of false doctrines, opinions and dangers to be guarded against and dispelled … Author's translation; the familiar English has "the medicine of mercy rather than that of severity".) This is a decision about method. It does not deny that the Church may condemn errors. It does show the course the Council took, which Paul VI summed up at its close as no "anathema" (see 7.3).

9.2 Paul VI (1963–1978)

Giovanni Battista Montini was elected in June 1963. He promulgated every document of the Council, from *Sacrosanctum Concilium* (4 December 1963) to *Dignitatis Humanae* (7 December 1965), as well as the new Mass (7.5) and the new rite for consecrating bishops (section 6). He also wrote plainly orthodox things, and a fair account must show them. In *Ecclesiam Suam* §107 (1964), the encyclical usually cited for "dialogue", he wrote: "Obviously we cannot agree with these various forms of religion, nor can we adopt an indifferent or uncritical attitude toward them on the assumption that they are all to be

regarded as on an equal footing … Indeed, honesty compels us to declare openly our conviction that **the Christian religion is the one and only true religion**, and it is our hope that it will be acknowledged as such by all who look for God and worship Him." The charge against him is not one sentence but the conciliar teaching he made his own.

Religious liberty approved "by the apostolic power given Us by Christ"

TEACHING · Pius IX, *Quanta Cura* §§3 and 6, 8 December 1864:
"… they do not fear to foster that erroneous opinion, most fatal in its effects on the Catholic Church and the salvation of souls, called by Our Predecessor, Gregory XVI, an 'insanity,' viz., that '**liberty of conscience and worship is each man's personal right, which ought to be legally proclaimed and asserted in every rightly constituted society**; …' … Therefore, **by our Apostolic authority, we reprobate, proscribe, and condemn all the singular and evil opinions and doctrines severally mentioned in this letter**, and will and command that they be thoroughly held by all children of the Catholic Church as reprobated, proscribed and condemned."

Context: the full passage, including the "public peace" limit that the condemned opinion already admitted, is at 3.1 and 3.6.

SAID · Paul VI with Vatican II, *Dignitatis Humanae* §2 and closing formula, 7 December 1965:
"This Vatican Council declares that **the human person has a right to religious freedom**. … **This right of the human person to religious freedom is to be recognized in the constitutional law whereby society is governed and thus it is to become a civil right.**" (vatican.va English)
Closing formula (official Latin; the same words close *Nostra Aetate*): "Haec omnia et singula quae in hac Declaratione edicta sunt, placuerunt Sacrosancti Concilii Patribus. **Et Nos, Apostolica a Christo Nobis tradita potestate, illa, una cum Venerabilibus Patribus, in Spiritu Sancto approbamus, decernimus ac statuimus** et quae ita synodaliter statuta sunt ad Dei gloriam promulgari iubemus." It is signed "Ego PAULUS Catholicae Ecclesiae Episcopus".
The vatican.va English of the same formula, as it closes *Lumen Gentium*: "Each and all these items which are set forth in this dogmatic Constitution have met with the approval of the Council Fathers. And **We by the apostolic power given Us by Christ together with the Venerable Fathers in the Holy Spirit, approve, decree and establish it** and command that what has thus been decided in the Council be promulgated for the glory of God."

Context: the vatican.va English texts of *Dignitatis Humanae* and *Nostra Aetate* leave out the closing formula. The Latin texts carry it, followed by Paul VI's signature and those of the Fathers.

The contradiction: Pius IX used his apostolic authority to condemn the opinion that liberty of worship is a personal right to be written into the law of every society. Paul VI used his apostolic authority to "approve, decree and establish" a declaration that the person has a right to religious freedom, to be recognised in constitutional law as a civil right. Whether the two rights are the same is argued in section 3. This item adds one thing: *Dignitatis Humanae* is not the work of the Council Fathers alone. Paul VI made it his own act as head of the Church, in the formula he attached to every conciliar document.

> **Objection:** the formula approves and promulgates; it does not define. The Council's Theological Commission, in a declaration printed with *Lumen Gentium*, said: "Taking conciliar custom into consideration and also the pastoral purpose of the present Council, **the sacred Council defines as binding on the Church only those things in matters of faith and morals which it shall openly declare to be binding.**" *Dignitatis Humanae* declares nothing binding in that sense. It is therefore not an infallible definition, and the conflict is between two non-definitive texts.

> **Answer:** this is true as far as it goes. *Dignitatis Humanae* is not an *ex cathedra* definition, and this paper does not claim it is. But the Commission's statement continues: "The rest of the things which the sacred Council sets forth, **inasmuch as they are the teaching of the Church's supreme magisterium, ought to be accepted and embraced by each and every one of Christ's faithful** according to the mind of the sacred Council." On the Commission's own account, then, *Dignitatis Humanae* is supreme magisterium that every Catholic must embrace, and Principle 1 holds that the Church cannot give such teaching if it is false. The defence removes the document from the sphere of definitions, but it remains binding on every Catholic.

Weight: contrary to the Church's constant teaching, but not a defined dogma. *Quanta Cura* condemns by apostolic authority but contains no definition, and whether the Council's limited right falls under that condemnation is the disputed question of section 3. What this item establishes is that Paul VI promulgated the declaration as his own.

Other charges against Paul VI in this paper: *Nostra Aetate*, promulgated on 28 October 1965 with the same formula (section 8); the closing address of 7 December 1965 (7.3); article 7 of the 1969 *Institutio Generalis* and his audiences on the "grave change" of the Mass (7.5); and the 1968 rite for consecrating bishops (section 6). Beyond these, no further doctrinal statement of his was found that is clear enough to set beside a dogma.

Acts often cited (not doctrinal statements): on 7 December 1965 Paul VI and Patriarch Athenagoras declared that "they likewise regret and remove both from memory and from the midst of the Church the sentences of excommunication" of 1054, "and they commit these excommunications to oblivion" (joint Catholic-Orthodox declaration, vatican.va English). On 23 March 1966 he welcomed Archbishop Michael Ramsey of Canterbury, describing their meeting as one of "Ecclesia Catholica Romana atque Ecclesia Anglicana et Ecclesiae Communionis Anglicanae" (the Roman Catholic Church and the Church of England and the Churches of the Anglican Communion), and told him: "Te non in domum extraneam ingredi, sed in domum, quam semper vigente titulo, etiam Tuam potes appellare" (you are not entering

a stranger's house, but a house that you can call your own too, by a title that is always in force. Author's translation). In the same address he said: "In iis, quae ad doctrinam legesque ecclesiasticas pertinent, inter nos adhuc differimus atque distamus" (in what concerns doctrine and church law, we still differ and stand apart). In their *Common Declaration* of 24 March 1966 the two men announced "a serious dialogue which, founded on the Gospels and on the ancient common traditions, may lead to that unity in truth, for which Christ prayed", and acknowledged "serious obstacles" to "a restoration of complete communion of faith and sacramental life". These are gestures. They presuppose the conciliar ecumenism of section 4; they add no separate doctrinal statement.

9.3 John Paul I (1978)

Albino Luciani was elected on 26 August 1978 and died thirty-three days later. Two texts are cited against him. One is a phrase about God in an Angelus address. The other is the programme he announced the day after his election.

God "our mother"

TEACHING · First Council of Constantinople, Creed, 381 (papalencyclicals.net English):
"We believe in one God **the Father all-powerful**, maker of heaven and of earth, and of all things both seen and unseen. And in one Lord Jesus Christ, the only-begotten Son of God, **begotten from the Father before all the ages**, light from light, true God from true God, begotten not made, consubstantial with the Father …"

Context: the Creed confesses God as Father, and the First Person as the Father of the only-begotten Son.

SAID · John Paul I, Angelus, 10 September 1978 (vatican.va English):
"And Premier Begin recalls that the Jewish people once passed difficult moments and addressed the Lord complaining and saying: 'You have forsaken us, you have forgotten us!' 'No!'—He replied through Isaiah the Prophet—'can a mother forget her own child? But even if it should happen, God will never forget his people'. Also we who are here have the same sentiments; we are the objects of undying love on the part of God. We know: he has always his eyes open on us, even when it seems to be dark. **He is our father; even more he is our mother.** He does not want to hurt us, He wants only to do good to us, to all of us. If children are ill, they have additional claim to be loved by their mother."
Italian: **"E' papà; più ancora è madre."**

Context: the pope is speaking of the Camp David talks between Carter, Sadat and Begin, and of the hope in God that each of the three expressed.

The contradiction: critics read the sentence as ranking a "mother" God above the Father whom the Creed confesses.

> **Objection:** the sentence compares God's love with a mother's, taken from the verse he has just paraphrased. Isaiah 49:15 (Douay-Rheims): "Can a woman forget her infant, so as not to have pity on the son of her womb? and if she should forget, yet will not I forget thee." Isaiah 66:13 uses the same image: "As one whom the mother caresseth, so will I comfort you."

> **Answer:** the defence is good. He calls God "father" first and says nothing about the divine Persons. The next sentence ("If children are ill, they have additional claim to be loved by their mother") shows that he is speaking, as Isaiah does, of the tenderness of God's love. The phrase is loose for a pope, but it denies no article of faith, and it should not be used against him.

Weight: ambiguous: an orthodox reading exists. That reading is in fact the natural one: a scriptural metaphor for God's love, not a statement about the Trinity.

A pledge to carry out the Council and its ecumenism

TEACHING · Pius XI, *Mortalium Animos* §10, 6 January 1928 (vatican.va English):
"So, Venerable Brethren, it is clear why this Apostolic See has never allowed its subjects to take part in the assemblies of non-Catholics: for **the union of Christians can only be promoted by promoting the return to the one true Church of Christ of those who are separated from it**, for in the past they have unhappily left it. To the one true Church of Christ, we say, which is visible to all, and which is to remain, according to the will of its Author, exactly the same as He instituted it. … For since the mystical body of Christ, in the same manner as His physical body, is one, compacted and fitly joined together, it were foolish and out of place to say that the mystical body is made up of members which are disunited and scattered abroad: **whosoever therefore is not united with the body is no member of it, neither is he in communion with Christ its head.**"

Context: Pius XI is explaining why Catholics may not take part in the pan-Christian congresses (see 4.3).

SAID · John Paul I, radio message *Urbi et Orbi*, 27 August 1978 (official Latin):
"… scilicet **volumus sine intermissione persequi hereditatem Concilii Vaticani II**, cuius sapientes normae adhuc ad effectum dirigantur oportet, qua in re invigilandum est, ne incitatio quaedam, fortasse ex animo generoso profecta sed improvida, illius doctrinam et sensum deformet … **intendimus pergere nisum circa rem oecumenicam**, quam habemus veluti extremam voluntatem proximorum Decessorum Nostrorum … mutuae relationes **inter Ecclesias, variis nominibus appellatas**, progressae sunt modo constanti et eximio … quam ob rem considerate attendemus omnibus rebus, quae unitatem foveant, **nihil quidem detrahentes de doctrina**, sed etiam nequaquam haesitantes."
(… namely, **we wish to carry on without interruption the heritage of the Second Vatican Council**, whose wise norms must still be brought into effect; and here we must take care that no impulse, generous perhaps but rash, should distort its teaching and meaning … **we intend to continue the ecumenical effort**, which we hold as the last will of our immediate Predecessors … the mutual relations **between the Churches called by various names** have advanced steadily and remarkably … and so we shall give careful attention to everything that fosters unity, **taking nothing away from doctrine**, but also without any hesitation. Author's translation.)

Context: these are points in the programme he set out the day after his election, walking "in illo veluti sulco" (in the furrow, as it were) that John XXIII "patefecit" (opened). The vatican.va English adds to an earlier sentence a parenthesis that is absent from the Latin and Italian, in which he commits "our total ministry" to the Council's teachings. It is not relied on here.

The contradiction: Pius XI taught that Christian unity comes only by the return of the separated to the one Church, and that those not united with her body are not its members. John Paul I called the separated bodies "Churches", welcomed the progress of relations among them, and took up the ecumenical programme of Vatican II as the "last will" of his predecessors.

> **Objection:** he promised to seek unity "nihil quidem detrahentes de doctrina" (taking nothing away from doctrine), and he warned against distorting the Council's "teaching and meaning". *Variis nominibus appellatas* ("called by various names") can be read as describing what these bodies are called, not conceding what they are. Nothing in the message denies that the Catholic Church is the one Church of Christ.

> **Answer:** the objection is fair to the words: nothing here denies a dogma. The difficulty is the programme. He binds his pontificate, without qualification, to "the heritage of the Second Vatican Council" and to its ecumenism, and those are the teachings examined in sections 4 and 8. If they contradict the Church's teaching, his public adherence to them is the ground of the case against him. If they do not, nothing in this message adds to it.

Weight: ambiguous: an orthodox reading exists. The words deny no dogma; the charge depends wholly on the conciliar teaching he pledged to carry out (section 8).

No statement of John Paul I examined here contradicts a defined dogma. The case against him rests on his public adherence to the Council and its ecumenism (section 8), not on heresy in his own words.

9.4 John Paul II (1978–2005)

Karol Wojtyła was elected on 16 October 1978 and died on 2 April 2005. Several of his texts are already quoted in this paper: *Ut Unum Sint* §11 on "imperfect communion" (§4.1), *Ut Unum Sint* §24 on common worship (§4.4), the audience of 9 September 1998 on Assisi (§4.5) and *Ecclesia de Eucharistia* §46 (§5.2). The *Catechism*'s paragraph on Muslims (§841) is a quotation of *Lumen Gentium* §16 and belongs with the Council's texts in §8. The four items below are new. Read in context, none of them denies a defined dogma in so many words. Three are contrary to the Church's constant teaching; the fourth, often charged as universalism, has an orthodox reading.

The Old Covenant “never revoked”

TEACHING · Council of Florence, *Cantate Domino* (Bull of union with the Copts, 4 February 1442): “All the holy sacrifices sacraments and ceremonies of the old Testament had prefigured that he would come at some time. It firmly believes, professes and teaches that **the legal prescriptions of the old Testament or the Mosaic law**, which are divided into ceremonies, holy sacrifices and sacraments, because they were instituted to signify something in the future, although they were adequate for the divine cult of that age, **once our lord Jesus Christ who was signified by them had come, came to an end and the sacraments of the new Testament had their beginning.** Whoever, after the passion, places his hope in the legal prescriptions and submits himself to them as necessary for salvation and as if faith in Christ without them could not save, sins mortally. It does not deny that from Christ’s passion until the promulgation of the gospel they could have been retained, provided they were in no way believed to be necessary for salvation. But it asserts that **after the promulgation of the gospel they cannot be observed without loss of eternal salvation.**”

Context: the decree goes on to denounce “all who after that time observe circumcision, the sabbath and other legal prescriptions as strangers to the faith of Christ”. It is a profession of faith (“firmly believes, professes and teaches”). Its subject is the *legal prescriptions* of the Mosaic law; it does not use the word “covenant”.

SAID · John Paul II, address to representatives of the Jewish community, Mainz, 17 November 1980 (German original; author's translation):

"In this it is a matter not only of correcting a false religious view of the Jewish people, which in part helped to cause the misunderstandings and persecutions in the course of history, but above all of the dialogue between the two religions which, with Islam, were granted to give the world faith in the one, ineffable God who addresses us, and which wish to serve him on behalf of the whole world. **The first dimension of this dialogue, namely the meeting between the people of God of the Old Covenant, never revoked by God, and that of the New Covenant, is at the same time a dialogue within our Church**, as it were between the first and the second part of her Bible. On this the Guidelines for implementing the conciliar declaration *Nostra Aetate* say: 'An effort must be made to understand better what in the Old Testament is of its own and permanent value … since this is not devalued by the later interpretation in the light of the New Testament, which gives it its full meaning …' A second dimension of our dialogue, the real and central one, is **the meeting between the Christian Churches of today and the people of today of the covenant concluded with Moses**."

Catechism of the Catholic Church §121 (1992), promulgated by John Paul II: "The Old Testament is an indispensable part of Sacred Scripture. Its books are divinely inspired and retain a permanent value, **for the Old Covenant has never been revoked**."

Context: the address opens by adopting the German bishops' statement of April 1980, "Whoever meets Jesus Christ meets Judaism". The *Catechism* sentence stands in the article on Sacred Scripture, under "The Old Testament". Two paragraphs later (§123) it says that the Church has always opposed "the idea of rejecting the Old Testament under the pretext that the New has rendered it void (Marcionism)".

The contradiction: Florence professes that the Mosaic law "came to an end" with Christ and cannot be kept after the gospel without loss of salvation. Pius XII says the same of the Old Law as a whole: "by the death of our Redeemer, the New Testament took the place of the Old Law which had been abolished" and "On the Cross then the Old Law died, soon to be buried and to be a bearer of death" (*Mystici Corporis* §§29–30, 1943). Hebrews names the covenant in question, "the testament which I made to their fathers, on the day when I took them by the hand to lead them out of the land of Egypt" (8:9), and says of it: "Now in saying a new, he hath made the former old. And that which decayeth and groweth old, is near its end" (8:13, Douay). At Mainz the Old Covenant is "never revoked by God", and its present-day people are "the people of the covenant concluded with Moses", the partner in the "real and central" dialogue.

> **Objection:** St Paul says of the Jews: "as touching the election, they are most dear for the sake of the fathers. For the gifts and the calling of God are without repentance" (Romans 11:28–29, Douay). The *Catechism* cites this text at §839. Defenders distinguish God's promises and election, which are irrevocable, from the ceremonial law, which ended. John Paul II never says that the ceremonies still bind or that they save. *Catechism* §121 is about the Old Testament books keeping their value against Marcion, which the Church has always taught. The Mainz address itself calls the "first dimension" a dialogue

> "between the first and the second part of her Bible" and says that the New Testament gives the Old "its full meaning".

> **Answer:** For *Catechism* §121, read in its place, the defence is good. It is weaker for Mainz. Romans 11 speaks of God's gifts and calling, and of a future in which "all Israel should be saved" when ungodliness is turned away from Jacob (11:26). It does not say that the Sinai covenant remains in force. Mainz goes further. It names "the covenant concluded with Moses" and its present-day people. It treats Judaism as a religion that, "with Islam", gives the world faith in God. In its natural sense, "never revoked" contradicts Pius XII's "the Old Law died" and Hebrews' "near its end". But what Florence defines is the end of the legal observances, and John Paul II does not say they still bind.

Weight: contrary to the Church's constant teaching, but not a defined dogma. The Mainz phrase runs against Hebrews 8 and *Mystici Corporis* §§29–30, but it does not assert what Florence condemns, namely that the Mosaic observances may still be kept or are necessary for salvation.

“We believe in the same God”

TEACHING · Council of Florence, Bull of union with the Armenians (*Exultate Deo*), 22 November 1439, giving the Armenians “a compendious rule of the faith of most blessed Athanasius”:
“Whoever wills to be saved, before all things it is necessary that he holds the catholic faith. Unless a person keeps this faith whole and undefiled, without doubt he shall perish eternally. **The catholic faith is this, that we worship one God in the Trinity, and the Trinity in unity, neither confounding the persons nor dividing the substance.** … This is the catholic faith. Unless a person believes it faithfully and firmly, he cannot be saved.”

Context: the decree gives the Athanasian Creed in full as one of the texts the Armenians are to receive. In the decree for the Copts (1442) the council professes “one true God, almighty, immutable and eternal, Father, Son and holy Spirit; one in essence, three in persons”. It “condemns, reproves, anathematizes and declares to be outside the body of Christ, which is the church, whoever holds opposing or contrary views”.

SAID · John Paul II, address to young Muslims, Casablanca, §§1 and 10, 19 August 1985 (vatican.va English; French original “Nous croyons au même Dieu”):
“Christians and Muslims, we have many things in common, as believers and as human beings. … For us, Abraham is a very model of faith in God, of submission to his will and of confidence in his goodness. **We believe in the same God, the one God, the living God, the God who created the world and brings his creatures to their perfection.** It is therefore towards this God that my thought goes and that my heart rises: it is of God himself that, above all, I wish to speak with you; of him, **because it is in him that we believe, you Muslims and we Catholics.** … [§10] Loyalty demands also that we should recognize and respect our differences. Obviously the most fundamental is the view that we hold on the person and work of Jesus of Nazareth. You know that, for the Christians, this Jesus causes them to enter into an intimate knowledge of the mystery of God and into a filial communion by his gifts, so that they recognize him and proclaim him Lord and Saviour. Those are important differences, which we can accept with humility and respect, in mutual tolerance; **there is a mystery there on which, I am certain, God will one day enlighten us.**”

Context: the Pope came at the invitation of King Hassan II and says: “it is as a believer that I come to you today”. He calls the difference over Jesus “the most fundamental”. The address closes with a prayer to “God, … the One Alone to whom we make our adoration”, which names neither Christ nor the Trinity.

The contradiction: the Catholic faith "is this, that we worship one God in the Trinity", and without it a man "cannot be saved". Islam denies the Trinity and the divinity of the Son. St John says: "Whosoever denieth the Son, the same hath not the Father" (1 John 2:23, Douay). St Thomas writes: "Unbelievers cannot be said 'to believe in a God' as we understand it in relation to the act of faith. For they do not believe that God exists under the conditions that faith determines; hence they do not truly believe in a God" (*Summa* II-II q.2 a.2 ad 3). John Paul II tells Muslims that "it is in him that we believe, you Muslims and we Catholics". He presents the divinity of Christ, the truth on which the Creed makes salvation depend, as a difference to be accepted "in mutual tolerance" until "God will one day enlighten us".

> **Objection:** the Council teaches that Muslims "along with us adore the one and merciful God" (*Lumen Gentium* §16, repeated in *Catechism* §841). *Nostra Aetate* §3, note 5, cites the letter of St Gregory VII to "Anzir (Nacir), King of Mauritania" in 1076: "We and you must show in a special way to the other nations an example of this charity, for **we believe and confess one God, although in different ways**, and praise and worship Him daily as the creator of all ages and the ruler of this world" (Neuner–Dupuis translation; Latin, PL 148, 451A: "qui unum Deum, licet diverso modo, credimus et confitemur"). There is only one God. Muslims mean the Creator who spoke to Abraham, though they err about him. On this view "the same God" is a statement about the God they intend, not a claim that their faith is the Catholic faith. In the same address John Paul II says that Christians "recognize him and proclaim him Lord and Saviour".

> **Answer:** Gregory VII wrote "one God, although in different ways", not "the same God". The qualifier is the very thing the Casablanca sentence omits. His letter is a courteous answer to a ruler who had freed captives. In his study of the letter, Jaroslav Franc notes that elsewhere in his register Gregory speaks of Saracens and pagans as *Deum ignorantes* ("ignorant of God"). St Thomas denies only that unbelievers believe in God "as we understand it in relation to the act of faith". That leaves room to say that they intend the one God, but he concludes that "they do not truly believe in a God". So "the same God", taken as a statement about the God intended, can be defended. Gregory has no parallel to the second passage, however: before a Muslim audience, the Pope sets aside the divinity of Christ as a "mystery" to be borne in tolerance. He does not deny the Trinity. He presents it as what Christians hold, and declines to propose it to Muslims as necessary. That is an omission, not a denial.

Weight: contrary to the Church's constant teaching, but not a defined dogma. The Creed defines what the Catholic faith is, and John Paul II does not deny it. But he declares a shared belief in God with those who reject the Trinity, which St John and St Thomas exclude.

Martyrs and saints "from all the Churches and Ecclesial Communities"

TEACHING · Council of Florence, *Cantate Domino* (Bull of union with the Copts, 4 February 1442):
"… that the unity of the ecclesiastical body is of such importance that only for those who abide in it do the church's sacraments contribute to salvation and do fasts, almsgiving and other works of piety and practices of the Christian militia produce eternal rewards; and that **nobody can be saved, no matter how much he has given away in alms and even if he has shed his blood in the name of Christ, unless he has persevered in the bosom and the unity of the catholic church.**"

Context: the start of this sentence ("all those who are outside the catholic church … cannot share in eternal life") is quoted at §4.3. The clause on shedding blood addresses the case of a martyr outside the Church.

SAID · John Paul II, *Ut Unum Sint* §84 (25 May 1995):
"In a theocentric vision, **we Christians already have a common Martyrology**. This also includes the martyrs of our own century, more numerous than one might think, and it shows how, at a profound level, God preserves communion among the baptized in the supreme demand of faith, manifested in the sacrifice of life itself. … I now add that **this communion is already perfect in what we all consider the highest point of the life of grace, martyria unto death**, the truest communion possible with Christ who shed his Blood … Albeit in an invisible way, the communion between our Communities, even if still incomplete, is truly and solidly grounded in the full communion of the Saints—those who, at the end of a life faithful to grace, are in communion with Christ in glory. **These Saints come from all the Churches and Ecclesial Communities which gave them entrance into the communion of salvation.**"

Context: in §83 John Paul II says that all Christian communities "have martyrs for the Christian faith". "Despite the tragedy of our divisions", these martyrs kept "an attachment to Christ and to the Father so radical and absolute as to lead even to the shedding of blood". §84 ends with the hope that God "will lead Communities … to the visible koinonia": full visible unity is still sought.

The contradiction: Florence professes that nobody is saved "even if he has shed his blood in the name of Christ" unless he persevered "in the bosom and the unity of the catholic church". *Ut Unum Sint* gives the separated communities martyrs and saints and calls communion with them "already perfect" in martyrdom. It names those communities, not the Catholic Church, as the ones that "gave them entrance into the communion of salvation".

> **Objection:** Florence speaks of those who die knowingly outside the Church. Pius IX condemned the opinion that one can be saved "although living in error and alienated from the true faith and Catholic unity". In the same paragraph he taught that "those who are struggling with invincible ignorance about our most holy religion" and who keep the natural law "are able to attain eternal life by the efficacious virtue of divine light and grace" (*Quanto Conficiamur Moerore* §7, 1863). A baptised Protestant in good faith may be joined to the Church invisibly and die a true martyr. Baptism given by heretics is still the

> Church's baptism. On this reading, the "entrance" these communities gave was baptism, which belongs to the Church wherever it is given.

> **Answer:** that reading is available, and it can account for the salvation of individuals; it is the defence already met in §4.3. But *Ut Unum Sint* does not say that these saints were saved *despite* their communities, by an invisible union with the Catholic Church. It says that the communities "gave them entrance", and that in their martyrs the communion between the communities is "already perfect". Pius IX made his exception for persons, on the ground of ignorance. In the next paragraph (§8) he repeats that "eternal salvation cannot be obtained by those who … are stubbornly separated from the unity of the Church". He never credits the separated body with giving salvation.

Weight: contrary to the Church's constant teaching, but not a defined dogma. The text does not say that anyone is saved outside the Church, and the doctrine of invincible ignorance gives an orthodox account of the individuals. What breaks with Florence's teaching is that it credits the separated communities, as such, with giving entrance to salvation.

Christ "united with each man"

TEACHING · Council of Trent, Session 6 (13 January 1547), chs. 2–3:
"Him God hath proposed as a propitiator, through faith in his blood, for our sins, and not for our sins only, but also for those of the whole world. CHAPTER III. Who are justified through Christ. **But, though He died for all, yet do not all receive the benefit of His death, but those only unto whom the merit of His passion is communicated.** For as in truth men, if they were not born propagated of the seed of Adam, would not be born unjust, … so, if they were not born again in Christ, they never would be justified; seeing that, in that new birth, there is bestowed upon them, through the merit of His passion, the grace whereby they are made just."

Context: Trent sets two truths side by side: Christ died for all, and not all receive the benefit of his death. Justification comes by rebirth in Christ.

SAID · John Paul II, *Redemptor Hominis* §§13–14 (4 March 1979):
"Christ the Lord indicated this way especially, when, as the Council teaches, '**by his Incarnation, he, the Son of God, in a certain way united himself with each man**'. The Church therefore sees its fundamental task in enabling that union to be brought about and renewed continually. … We are dealing with 'each' man, for each one is included in the mystery of the Redemption and with each one Christ has united himself for ever through this mystery. … [§14] This man is the way for the Church … because man—every man without any exception whatever—has been redeemed by Christ, and because **with man—with each man without any exception whatever—Christ is in a way united, even when man is unaware of it**: 'Christ, who died and was raised up for all, provides man'—each man and every man—'with the light and the strength to measure up to his supreme calling'."

Context: the inner quotations are from *Gaudium et Spes* §§22 and 10. §14 opens: "The Church cannot abandon man, for his 'destiny', that is to say his election, calling, birth and death, salvation or perdition, is so closely and unbreakably linked with Christ." In §13 the Church's task is to enable "that union to be brought about", which implies that it is not already complete in everyone.

The contradiction: the charge is universalism. If Christ is "united for ever" with every man, "even when man is unaware of it", then the benefit of the Passion seems to be given to all, whereas Trent says "do not all receive the benefit of His death".

> **Objection:** Trent itself says "He died for all". Innocent X condemned this proposition of Jansenius: "It is Semipelagian to say that Christ died or shed His blood for all men without exception". He declared it "false, rash, scandalous", and, "understood in this sense, that Christ died for the salvation of the predestined", heretical (*Cum occasione*, 31 May 1653; Denzinger 1096). So "redeemed … without any exception" is Catholic doctrine in the sense of objective redemption. The union is "in a certain way" and "in a way": by the Incarnation the Son took the nature that every man shares. §14 keeps "salvation or perdition" open. §13 makes the Church's task the bringing about of the union, which would be pointless if the union already saved.

> **Answer:** the defence is good. The wording is new and loose, and "even when man is unaware of it" invites a universalist reading. But the text does not say that all are justified or saved, and §14 expressly keeps perdition possible. Read with its context, the passage states the redemption that Trent and Innocent X affirm. It does not state the universal application of that redemption, which Trent denies.

Weight: ambiguous: an orthodox reading exists. The union "in a certain way" can be read as objective redemption and the Incarnation's bond with the nature all men share, and the encyclical itself leaves "salvation or perdition" open.

Acts often cited (not doctrinal statements): on 27 October 1986 John Paul II gathered the "Heads and Representatives of the Christian Churches and Ecclesial Communities and of the World Religions" at Assisi for a World Day of Prayer for Peace, thanking them for accepting "my invitation to pray at Assisi". In his opening address he said that the meeting "does not imply any intention of seeking a religious consensus among ourselves or of negotiating our faith convictions", and: "Nor is it a concession to relativism in religious beliefs". His later account of the day as "an eloquent manifestation" of the Spirit's work in prayer is quoted at §4.5. On 14 May 1999 he received a Muslim delegation in the Vatican, which included Raphael I Bidawid. The Catholic news site katholisch.de reports: "The Polish church leader received a copy of the Koran as a gift from the Muslim visitors. As a sign of respect, John Paul II kissed the book, which is sacred to Muslims." The Jesuit Islam scholar Felix Körner, interviewed there, defends the gesture as "completely in line with the Second Vatican Council". On 6 May 2001 he visited the Umayyad Mosque in Damascus. There he said that he was "deeply moved to be your guest here in the great Umayyad Mosque", and that "Both Muslims and Christians prize their places of prayer, as oases where they meet the All Merciful God on the journey to eternal life".

9.5 Benedict XVI (2005–2013)

Joseph Ratzinger was elected on 19 April 2005. He renounced the papacy "as from 28 February 2013, at 20:00 hours". Two of his texts are already quoted in this paper: the address to the Roman Curia of 22 December 2005, which grants "a discontinuity" (§3 and §10), and *Summorum Pontificum* (2007), by which he restored the 1962 Missal (§7.6). His 2000 lecture on *subsistit in*, given as Cardinal Ratzinger, is quoted at §4.1 and §10. Two further acts count in his favour. As prefect of the Congregation for the Doctrine of the Faith he signed *Dominus Iesus* (6 August 2000). It says that followers of other religions, "objectively speaking", are "in a gravely deficient situation in comparison with those who, in the Church, have the fullness of the means of salvation" (§22). In 2008 he replaced the Good Friday prayer for the Jews in the 1962 Missal with one asking "ut agnoscant Iesum Christum salvatorem omnium hominum" ("that they may acknowledge Jesus Christ the Saviour of all men"). His addresses at the synagogues of Cologne (19 August 2005) and Rome (17 January 2010) are not charged here. The first cites Romans 11:29, "the gifts and the call of God are irrevocable"; the second speaks of "the people of the Covenant of Moses" and says that Christians and Jews "pray to the same Lord". Neither says that the Old Covenant is still in force. Three items follow. The first two have an orthodox reading. The third was written before his election and is contrary to the Church's constant teaching.

Unity, but not "ecumenism of the return"

TEACHING · Pius XI, *Mortalium Animos* §§10–12 (6 January 1928):
"So, Venerable Brethren, it is clear why this Apostolic See has never allowed its subjects to take part in the assemblies of non-Catholics: for **the union of Christians can only be promoted by promoting the return to the one true Church of Christ of those who are separated from it**, for in the past they have unhappily left it. … [§11] Furthermore, in this one Church of Christ no man can be or remain who does not accept, recognize and obey the authority and supremacy of Peter and his legitimate successors. … **Let them therefore return to their common Father**, who, forgetting the insults previously heaped on the Apostolic See, will receive them in the most loving fashion. … [§12] Let, therefore, the separated children draw nigh to the Apostolic See … not with the intention and the hope that 'the Church of the living God, the pillar and ground of the truth' will cast aside the integrity of the faith and tolerate their errors, but, on the contrary, **that they themselves submit to its teaching and government.**"

Context: §10 is also quoted at §4.3. This is an encyclical, not a definition. Pius XI gives the reason why Catholics may not take part in pan-Christian assemblies, and he names the only way to union: the return of the separated to the Church and their submission to the Holy See.

SAID · Benedict XVI, ecumenical meeting, Archbishop's House, Cologne, 19 August 2005 (vatican.va English; spoken in German):
"We all know there are numerous models of unity and you know that the Catholic Church also has as her goal the full visible unity of the disciples of Christ, as defined by the Second Vatican Ecumenical Council in its various Documents (cf. Lumen Gentium, nn. 8, 13; Unitatis Redintegratio, nn. 2, 4, etc.). **This unity, we are convinced, indeed subsists in the Catholic Church, without the possibility of ever being lost** (cf. Unitatis Redintegratio, n. 4); the Church in fact has not totally disappeared from the world. On the other hand, **this unity does not mean what could be called ecumenism of the return: that is, to deny and to reject one's own faith history. Absolutely not!** It does not mean uniformity in all expressions of theology and spirituality, in liturgical forms and in discipline. … To this end, dialogue has its own contribution to make. More than an exchange of thoughts, an academic exercise, it is an exchange of gifts (cf. Ut Unum Sint, n. 28), in which **the Churches and the Ecclesial Communities can make available their own riches** (cf. Lumen Gentium, nn. 8, 15; Unitatis Redintegratio, nn. 3, 14ff.; Ut Unum Sint, nn. 10-14)."

Context: he was addressing "the Representatives of the other Churches and Ecclesial Communities" in Germany, Protestant and Orthodox. He opened by asking leave "to remain seated", adding: "This does not mean I wish to speak 'ex cathedra'". Earlier in the address he described a point of his own as "a personal opinion". The German original defines the rejected model more narrowly: "»Rückkehr-Ökumenismus« …: die eigene Glaubensgeschichte leugnen und ablegen zu müssen. Keineswegs!" ("'ecumenism of the return' …: *having to* deny and put away one's own faith history. By no means!").

The contradiction: for Pius XI, the union of Christians "can only be promoted by promoting the return" of the separated to the one Church, and they are to "submit to its teaching and government". "Ecumenism of the return" describes exactly that teaching. Benedict XVI names it and rejects it: "Absolutely not!" In its place he puts an "exchange of gifts" in which the separated communities contribute "their own riches". To the Lutherans in his audience, their "own faith history" includes the Reformation itself. Pius XI calls that history the act by which their fathers "unhappily left" the Church.

> **Objection:** Benedict XVI does not reject a return to the Church. He rejects one particular thing: *having to* deny one's whole faith history. Baptism, the Scriptures and the prayer of those communities belong to the Church, and *Mortalium Animos* does not ask that they be renounced. In the same paragraph Benedict says that unity "subsists in the Catholic Church, without the possibility of ever being lost". His own legislation shows what he meant. *Anglicanorum Coetibus* (4 November 2009) set up ordinariates "for Anglicans entering into full communion with the Catholic Church". These ordinariates keep "the liturgical, spiritual and pastoral traditions of the Anglican Communion within the Catholic Church", and their members profess the Catholic faith, with the *Catechism* as "the authoritative expression" of it (I §5).

> **Answer:** the defence is real. As Benedict XVI glossed it, especially in the German, the phrase can be read as rejecting the *loss* of a legitimate patrimony, not the return itself, and *Anglicanorum Coetibus* is a return of exactly that kind. But the gloss does not remove the label. In this address to separated Christians, unity is never said to require submission to the Pope's teaching and government, which is the one thing Pius XI makes essential (§§11–12). And "one's own faith history" is wide enough to include the separation itself.

Weight: ambiguous: an orthodox reading exists. The words reject the name of Pius XI's doctrine. The definition Benedict attaches to the name, "having to deny and put away one's own faith history", is not what Pius XI taught, and the same paragraph says that unity subsists unlosably in the Catholic Church.

Dialogue "does not aim at conversion"

TEACHING · Pius XI, *Rerum Ecclesiae* §1 (28 February 1926):
"In reviewing attentively the history of the Church, one cannot fail to notice how, from the first ages of Christianity, the especial care and solicitude of the Roman Pontiffs have been directed to the end that they, undeterred by difficulties and obstacles, might spread the light of the Gospel and the benefits of Christian culture and civilization to the peoples who 'sat in darkness and in the shadow of death.' **The Church has no other reason for existence than, by developing the Kingdom of Christ on earth, to make mankind participate in the effects of His saving Redemption.** Whoever, by Divine Commission, takes the place on earth of Jesus Christ, becomes thereby the Chief Shepherd who, far from being able to rest content with simply guiding and protecting the Lord's Flock which has been confided to him to rule, **fails in his special duty and obligations if he does not strive by might and main to win over and to join to Christ all who are still without the Fold.**"

Context: this is the opening of an encyclical on the foreign missions. It is not a definition. It states the purpose of the Church and the duty of the Pope toward those outside her. (The vatican.va text has the typo "beer" for "been"; it is corrected here.)

SAID · Benedict XVI, Christmas address to the Roman Curia, 21 December 2012 (vatican.va English; German original):
"In man's present situation, **the dialogue of religions is a necessary condition for peace in the world and it is therefore a duty for Christians** as well as other religious communities. This dialogue of religions has various dimensions. In the first place it is simply a dialogue of life, a dialogue of being together. **This will not involve discussing the great themes of faith – whether God is Trinitarian** or how the inspiration of the sacred Scriptures is to be understood, and so on. … Two rules are generally regarded nowadays as fundamental for interreligious dialogue: 1. **Dialogue does not aim at conversion, but at understanding.** In this respect it differs from evangelization, from mission; 2. Accordingly, both parties to the dialogue remain consciously within their identity, which the dialogue does not place in question either for themselves or for the other. **These rules are correct**, but in the way they are formulated here I still find them too superficial. **True, dialogue does not aim at conversion, but at better mutual understanding – that is correct.** But all the same, the search for knowledge and understanding always has to involve drawing closer to the truth."

Context: the second theme of the address is "the question of dialogue and proclamation", which "runs through the whole of the past year from Assisi to the Synod on the New Evangelization". After the passage quoted, he says that the Christian can "venture freely into the open sea of the truth", because "we do not possess the truth, the truth possesses us: Christ, who is the truth". He then turns to proclamation. His model for it is "Behold the Lamb of God!" (John 1:36), and the person who hears it is led "to the community of the Church, which is his body". The German reads: "Der Dialog zielt nicht auf Bekehrung, sondern auf Verstehen."

The contradiction: Pius XI says that the Church "has no other reason for existence" than to bring mankind into the Redemption. He says that the Pope "fails in his special duty" if he does not strive "to win over and to join to Christ all who are still without the Fold". Benedict XVI describes as "a duty for Christians" a standing dialogue with the other religions that does not raise "whether God is Trinitarian". He agrees, twice, that this dialogue "does not aim at conversion". Pius XI had refused any Catholic approval to meetings with "infidels of every kind" (*Mortalium Animos* §2, quoted at §4.5).

> **Objection:** Benedict XVI separates dialogue from "evangelization, from mission". He does not substitute dialogue for mission, and in the same address he goes on to proclamation. The "dialogue of life" concerns peace, justice and coexistence. The Church has long dealt with non-Catholic rulers on such questions through diplomacy, without each exchange being a sermon. He rejects the premise that *Mortalium Animos* §2 condemned, "that false opinion which considers all religions to be more or less good": a Christian who blocked the path to truth "would seem not to reckon with the possibility that religion has to do with truth". As Cardinal Ratzinger he had signed *Dominus Iesus* §22: "Inter-religious dialogue, therefore, as part of her evangelizing mission, is just one of the actions of the Church in her mission ad gentes. Equality, which is a presupposition of inter-religious dialogue, refers to the equal personal dignity of the parties in dialogue, not to doctrinal content". The same paragraph says that the Church "must be primarily committed to proclaiming to all people the truth definitively revealed by the Lord, and to announcing the necessity of conversion to Jesus Christ and of adherence to the Church through Baptism". His Good Friday prayer of 2008 asks that the Jews "acknowledge Jesus Christ the Saviour of all men".

> **Answer:** as to doctrine, the defence holds. The address does not say that conversion is unnecessary or that the other religions save, and *Dominus Iesus* says the opposite. What is new is the practice. For Pius XI the Pope's duty toward those "without the Fold" is to strive to win them. Here a standing dialogue between the religions is made a Christian "duty", with the Trinity set aside by design, and its aim is "understanding". That is the kind of meeting *Mortalium Animos* §2 refused to approve. But Pius XI refused because such meetings rested on indifferentism, and Benedict XVI expressly rejects indifferentism.

Weight: ambiguous: an orthodox reading exists. On his own terms "dialogue" is one activity among others, distinct from the mission, which he and *Dominus Iesus* keep. The break with Pius XI is in practice and emphasis, not in a proposition denied.

The primacy: no more than "in the first millennium"

TEACHING · Vatican I, *Pastor Aeternus* ch. 3 (18 July 1870; Tanner translation):
"And so, supported by the clear witness of holy scripture, and adhering to the manifest and explicit decrees both of our predecessors the Roman pontiffs and of general councils, we promulgate anew the definition of the ecumenical council of Florence, **which must be believed by all faithful Christians**, namely that the apostolic see and the Roman pontiff hold a world-wide primacy, and that the Roman pontiff is the successor of blessed Peter, the prince of the apostles, true vicar of Christ, head of the whole church and father and teacher of all christian people. To him, in blessed Peter, full power has been given by our lord Jesus Christ to tend, rule and govern the universal church. All this is to be found in the acts of the ecumenical councils and the sacred canons. … This is the teaching of the catholic truth, and **no one can depart from it without endangering his faith and salvation.** … So, then, if anyone says that the Roman pontiff has merely an office of supervision and guidance, and **not the full and supreme power of jurisdiction over the whole church**, … let him be anathema."

Context: in ch. 4 the council recalls that "with the approval of the second council of Lyons, the Greeks made the following profession" of the Roman primacy, and it quotes the definition of Florence, which stands in the decree of union with the Greeks (1439). Both councils required the East to profess the primacy as a condition of union.

SAID · Joseph Ratzinger, "The Ecumenical Situation – Orthodoxy, Catholicism and Protestantism", in *Principles of Catholic Theology* (Ignatius Press, 1987), p. 199 (first published 1977), as quoted by Cardinal Kurt Koch in *The Cambridge Companion to Joseph Ratzinger* (2023), p. 318:
Rome must not demand "**more from the East with respect to the doctrine of primacy than had been formulated and was lived in the first millennium.**"

Context: this is a short quotation from a copyrighted book, and the surrounding argument is given in summary from Koch's chapter. According to Koch, Ratzinger first proposed the formula in a lecture at Graz in 1976. Ratzinger rules out "maximum demands" on either side. On the Catholic side, the maximum would be to require the East to recognise the primacy to the full extent defined at Vatican I. In return, the East would cease to oppose as heretical the Western development of the second millennium, and each side would accept the other as orthodox and legitimate in its present form. Koch adds that, because the formula was misunderstood, Ratzinger later explained (in 1983) that it cannot mean freezing "tradition as a living, truth-giving entity at the end of the first [millennium]".

The contradiction: Vatican I says that the primacy of jurisdiction "must be believed by all faithful Christians", and that no one can depart from it "without endangering his faith and salvation". Lyons II and Florence required the Greeks to profess it before union. Pius XI says that "in this one Church of Christ no man can be or remain who does not accept, recognize and obey the authority and supremacy of Peter" (*Mortalium Animos* §11). Ratzinger proposes a reunion in which Rome would not require the East to accept the doctrine of the primacy as it was defined in 1870. The East would be asked only to stop calling the Western development heretical, not to believe it.

> **Objection:** Vatican I itself says of the primacy: "All this is to be found in the acts of the ecumenical councils and the sacred canons." If the first millennium already held the primacy that Vatican I defined, then asking for no more than the first millennium is asking for all of it. Ratzinger later explained that the formula does not freeze tradition at the end of the first millennium. The essay belongs to a private theologian writing in 1976–77. It is not an act of the magisterium, and it was written decades before his election.

> **Answer:** if the first millennium contained the whole defined doctrine, the formula would hold nothing back, and it would have no point. Cardinal Koch reads it as setting aside the requirement that the East recognise the primacy "to the full extent" of Vatican I. The only thing asked of the East is that it stop calling the Western development heretical. That is less than believing what the council says must be believed. On the other hand, Ratzinger does not deny the primacy, and his later clarification excludes a reading that would set Vatican I aside as doctrine.

Weight: contrary to the Church's constant teaching, but not a defined dogma. The formula does not deny the primacy, but it proposes a union with the East without the profession of the primacy that Lyons II, Florence and Vatican I required. It is the work of a theologian before his election, not a papal act.

Acts often cited (not doctrinal statements): on 27 October 2011, twenty-five years after the first Assisi meeting, Benedict XVI held at Assisi a "Day of Reflection, Dialogue and Prayer for Peace and Justice in the World", under the title "Pilgrims of Truth, Pilgrims of Peace". In his address he applied that title to agnostics who "are nevertheless on the lookout for truth, searching for God". Of violence "in the name of the Christian faith" he said: "We acknowledge it with great shame. But it is utterly clear that this was an abuse of the Christian faith, one that evidently contradicts its true nature." In his farewell he thanked the delegates "for having accepted my invitation to come to Assisi as pilgrims of truth and peace", and said that they had been able "to come together in silence and prayer". On 30 November 2006 he visited the Blue Mosque (Sultan Ahmet Mosque) in Istanbul. The Associated Press, as reported by NBC News, wrote: "The pope bowed his head for nearly a minute after Mustafa Cagrici, the head cleric of Istanbul, said: 'Now I'm going to pray.'" The accompanying AFP caption says that he "turned towards Mecca at the suggestion of the Muslim cleric accompanying him". The Vatican spokesman, Fr Federico Lombardi, had described the visit as a "sign of respect". Benedict XVI gave his own account at the general audience of 6 December 2006: "Pausing for a few minutes of recollection in that place of prayer, I addressed the one Lord of Heaven and earth, the Merciful Father of all humanity."

9.6 Francis (2013–2025)

Jorge Mario Bergoglio was elected on 13 March 2013. He was ordained a bishop on 27 June 1992. His official biography does not name the rite, but a Latin-rite episcopal ordination in 1992 would have used Paul VI's 1968 rite, the rite then in ordinary use (section 6). Most of the charges against him rest on occasional texts: a declaration signed jointly with a Muslim leader, an improvised talk to young people, a footnote, and a letter to a group of bishops. The more formal acts are a revision of the *Catechism* and documents of the Roman doctrinal office that he approved. Two items come close to a defined dogma: the Abu Dhabi document, against Trent's Session 6, canon 6, and *Amoris Laetitia*, against canon 18 of the same session. In each case, though, the author or the text itself offers an orthodox reading. So no item below is graded as contradicting a defined dogma. Francis's case rests on how many items run against the Church's constant teaching, and on his adherence to Vatican II (section 8).

9.6.1 Religious diversity "willed by God"

TEACHING · Council of Trent, Session 6 (1547), canon 6:
"CANON VI.-If any one saith, that it is not in man's power to make his ways evil, but that **the works that are evil God worketh as well as those that are good, not permissively only, but properly, and of Himself**, in such wise that the treason of Judas is no less His own proper work than the vocation of Paul; let him be anathema."

Context: the canon is aimed at the Reformers' teaching that God works evil as He works good. The defined point is the distinction: God wills good properly, and wills evil only by permitting it. The First Commandment forbids worshipping any but the true God.

SAID · Francis and Ahmad al-Tayyeb, Grand Imam of Al-Azhar, *Document on Human Fraternity for World Peace and Living Together*, Abu Dhabi, 4 February 2019:
"Freedom is a right of every person: each individual enjoys the freedom of belief, thought, expression and action. **The pluralism and the diversity of religions, colour, sex, race and language are willed by God in His wisdom, through which He created human beings.** This divine wisdom is the source from which **the right to freedom of belief and the freedom to be different derives**. Therefore, the fact that people are forced to adhere to a certain religion or culture must be rejected, as too the imposition of a cultural way of life that others do not accept;"

Context: this is one item in a list of principles that the document "upholds". It is a joint declaration of the two signatories, not a papal teaching document. They ask "that this Document become the object of research and reflection in all schools, universities and institutes of formation".

The contradiction: the sentence puts the diversity of religions in one list with sex and race, which God wills positively as Creator, and it derives a natural right from that will. But every religion other than the true one offers worship that the First Commandment forbids, and Trent defines that God wills evil "permissively only", not "properly". If God willed the plurality of religions in the way He wills the two sexes, He would properly will false worship.

> **Objection:** Francis explained the sentence two months later in exactly the sense Trent requires. In his general audience of 3 April 2019 he said: "why does God allow many religions? **God wanted to allow this: Scolastica theologians used to refer to God's *voluntas permissiva*.** He wanted to allow this reality: there are many religions. Some are born from culture, but they always look to heaven; they look to God." ("Scolastica" is so printed in the vatican.va English.)

> **Answer:** the gloss gives the Scholastic doctrine, and it is the right one. But it came in a catechesis on a different journey, to Morocco, and the document was never amended. It still says "willed by God in His wisdom, through which He created human beings", in the same breath as sex and race. It still derives a right from that will, and an evil that is only permitted grounds at most a claim to toleration, not a right given by nature (compare section 3.2). The gloss itself adds that the religions "always look to heaven; they look to God". That is close to the opinion Pius XI condemned: that all religions "in different ways manifest and signify that sense which is inborn in us all, and by which we are led to God" (*Mortalium Animos* §2).

Weight: contrary to the Church's constant teaching, but not a defined dogma. Taken as written, the sentence would fall under Trent's canon 6. Its signatory, however, publicly gave it the permissive sense the canon requires, and the text is a joint declaration, not a definition.

9.6.2 “All religions are paths to God”

TEACHING · Council of Florence, *Cantate Domino* (Decree for the Copts, 4 February 1442):
“**It firmly believes, professes and preaches that all those who are outside the catholic church, not only pagans but also Jews or heretics and schismatics, cannot share in eternal life** and will go into the everlasting fire which was prepared for the devil and his angels, unless they are joined to the catholic church before the end of their lives; that the unity of the ecclesiastical body is of such importance that only for those who abide in it do the church’s sacraments contribute to salvation…”

Context: the decree is a profession of faith made by the Coptic Church on its reunion with Rome. It is in the form of a profession (“firmly believes, professes and preaches”), not of a canon.

SAID · Francis, address at the interreligious meeting with young people, Catholic Junior College, Singapore, 13 September 2024 (official English):
“One of the things that has impressed me most about the young people here is your capacity for interfaith dialogue. This is very important because if you start arguing, ‘My religion is more important than yours…,’ or ‘Mine is the true one, yours is not true…,’ where does this lead? Somebody answer. [A young person answers, ‘Destruction’.] That is correct. **All religions are paths to God.** I will use an analogy, **they are like different languages that express the divine.** But God is for everyone, and therefore, we are all God’s children. ‘But my God is more important than yours!’. Is this true? There is only one God, and **religions are like languages, paths to reach God.** Some Sikh, some Muslim, some Hindu, some Christian. Understood?”

Context: Francis set his prepared text aside (“This is the speech that I had prepared, but now I will speak [spontaneously]!”). The Holy See Press Office states that he gave the address *a braccio* (off the cuff). Both vatican.va and the Press Office bulletin publish only the spoken text; the prepared text does not appear there. The Italian original, also on vatican.va, ends more strongly: “qualcuno cristiano, ma sono diversi cammini” (“some Christian, but they are different paths”).

The contradiction: Florence defines that those outside the Church “cannot share in eternal life”. Francis calls Christianity one of several “paths to reach God”, beside Sikhism, Islam and Hinduism. He also agrees that saying “Mine is the true one, yours is not true” leads to “destruction”.

> **Objection:** the talk was improvised, given to teenagers, and its theme was respect and bullying. “Reach God” need not mean “be saved”. It can mean the natural search for God that *Nostra Aetate* §2 describes, and Francis also said “There is only one God”. When Leo XIV cited this talk on 28 October 2025, he quoted only “God is for everyone, and therefore, we are all God’s children”.

> **Answer:** being improvised lowers the doctrinal weight of the talk, not its meaning. The talk sets the religions side by side as paths “to reach God”, and it treats the claim to be the true religion as a road to destruction. The Roman doctrinal office had rejected this view in 2000: “It would be contrary to the faith to consider the Church as one way of salvation alongside those constituted by the other religions, seen as complementary to the Church or substantially equivalent to her” (*Dominus Iesus* §21). It also

> rejected "that mentality of indifferentism 'characterized by a religious relativism which leads to the belief that "one religion is as good as another"'" (§22). The remark was never corrected.

Weight: contrary to the Church's constant teaching, but not a defined dogma. Florence speaks of eternal life, and "a path to reach God" is too loose to count as a formal denial of it. The remark was improvised, but it stood uncorrected, and his successor quoted the same talk with approval.

9.6.3 The death penalty "inadmissible"

> **BEFORE** · Innocent III, profession of faith prescribed for Durand of Osca and his Waldensian companions (letter to the Archbishop of Tarragona, 18 December 1208; sentence added 1210), Denzinger 425 (DS 795):
> "We do not at all censure the receiving of the flesh. Nor do we condemn an oath; on the contrary, we believe with a pure heart that with truth and judgment and justice it is permissible to swear. [In the year 1210, the following sentence was added:] **Concerning secular power we declare that without mortal sin it is possible to exercise a judgment of blood** as long as one proceeds to bring punishment not in hatred but in judgment, not incautiously but advisedly."
>
> *Context:* the profession answers Waldensian objections point by point, affirming that oaths and the civil power's "judgment of blood" are lawful. The pope required it of the converts before reconciling them. It is a papal profession of faith, not a conciliar definition. The translation is Deferrari's.

> **SAID** · Francis, address to the Pontifical Council for Promoting the New Evangelization, 11 October 2017; *Catechism* 2267 as revised by his rescript (published 2 August 2018):
> "It must be clearly stated that the death penalty is an inhumane measure that, regardless of how it is carried out, abases human dignity. **It is per se contrary to the Gospel**, because it entails the willful suppression of a human life that never ceases to be sacred in the eyes of its Creator and of which – ultimately – only God is the true judge and guarantor."
> "Consequently, the Church teaches, in the light of the Gospel, that **'the death penalty is inadmissible because it is an attack on the inviolability and dignity of the person'**, and she works with determination for its abolition worldwide."
>
> *Context:* in the 2017 address Francis asked for the *Catechism* to be revised, and said "Here we are not in any way contradicting past teaching". The Italian has "in sé stessa contraria al Vangelo" ("contrary in itself to the Gospel"). The new text of 2267 begins by granting that the death penalty "was long considered an appropriate response to the gravity of certain crimes". It also cites "more effective systems of detention". The doctrinal office's letter to the bishops, which Francis approved, calls the change "an authentic development of doctrine that is not in contradiction with the prior teachings of the Magisterium".

The contradiction: the profession says the civil power can carry out a sentence of death "without mortal sin". Francis says the death penalty is "per se contrary to the Gospel" and "an attack on the inviolability and dignity of the person". An act that is contrary in itself to the Gospel, and an attack on something inviolable, cannot be done without sin. In the same address Francis passed this judgment on the government of his own predecessors: "even in the Papal States recourse was had to this extreme and inhumane remedy". He said it "was dictated by a mentality more legalistic than Christian".

> **Objection:** the doctrinal office's letter says the earlier teachings "can be explained in the light of the primary responsibility of the public authority to protect the common good in a social context in which the penal sanctions were understood differently". On this reading "inadmissible" is a prudential judgment about today: the State can now protect its citizens without killing. *Fratelli Tutti* §263 recalls that John Paul II called the penalty "no longer necessary from that of penal justice".

> **Answer:** parts of the new text are prudential, such as the remark about detention. If the text said only that, there would be no charge. But the reason the *Catechism* gives is not tied to circumstances: the penalty is inadmissible "because it is an attack on the inviolability and dignity of the person", a dignity "not lost even after the commission of very serious crimes". That reason holds in every age. The "social context" defence can explain Innocent III's practice, but not his statement that the act can be done "without mortal sin". Nor did Francis leave the matter at prudence. In *Fratelli Tutti* he wrote "There can be no stepping back from this position" (§263), and he appealed to "Christians who remain hesitant on this point" (§270).

Weight: contrary to the Church's constant teaching, but not a defined dogma. The Waldensian profession is a formula a pope imposed on converts, not a conciliar definition.

9.6.4 *Amoris Laetitia* and the sacraments for the divorced and "remarried"

TEACHING · Council of Trent, Session 6 (1547), ch. 11 and canon 18:
"But no one, how much soever justified, ought to think himself exempt from the observance of the commandments; no one ought to make use of that rash saying, one prohibited by the Fathers under an anathema,-that the observance of the commandments of God is impossible for one that is justified. **For God commands not impossibilities, but, by commanding, both admonishes thee to do what thou are able, and to pray for what thou art not able (to do), and aids thee that thou mayest be able** … CANON XVIII.-If any one saith, that **the commandments of God are, even for one that is justified and constituted in grace, impossible to keep; let him be anathema.**"

Context: on marriage, Session 24, canon 7, anathematises anyone who says the Church errs in teaching that the bond is not dissolved even by adultery, and "that he is guilty of adultery, who, having put away the adulteress, shall take another wife".

SAID · Francis, *Amoris Laetitia* §§301, 303 and note 351 (19 March 2016); letter to the bishops of the Buenos Aires region with their criteria, 5 September 2016 (*AAS* 108 [2016] 1071–1074):
"Hence it is [sic] can no longer simply be said that all those in any 'irregular' situation are living in a state of mortal sin and are deprived of sanctifying grace. More is involved here than mere ignorance of the rule. A subject may know full well the rule, yet have great difficulty in understanding 'its inherent values', or **be in a concrete situation which does not allow him or her to act differently and decide otherwise without further sin.**" (§301) Conscience can "come to see with a certain moral security that **it is what God himself is asking** amid the concrete complexity of one's limits, while yet not fully the objective ideal." (§303) Note 351: "**In certain cases, this can include the help of the sacraments.**"
Buenos Aires criteria, n. 6 (Author's translation): "If it comes to be recognised that, in a concrete case, there are limitations that mitigate responsibility and culpability (cf. 301–302), particularly when a person considers that he would fall into a further fault by harming the children of the new union, ***Amoris laetitia* opens the possibility of access to the sacraments of Reconciliation and the Eucharist** (cf. notes 336 and 351)." Francis's letter (Author's translation): "The document is very good and fully explains the meaning of chapter VIII of *Amoris laetitia*. **There are no other interpretations.**"

Context: criterion 6 concerns cases where living "in continence", proposed in criterion 5, "may not in fact be feasible". Criterion 7 warns against "an unrestricted access to the sacraments" (both Author's translation). A rescript of 5 June 2017 ordered the letter and the criteria to be published in the *Acta Apostolicae Sedis* "velut Magisterium authenticum" ("as authentic magisterium").

The contradiction: Trent defines that God's commandments are never impossible for the justified, because God "aids thee that thou mayest be able". *Amoris Laetitia* speaks of a person whose situation "does not allow him or her to act differently … without further sin". It says conscience may judge the present state to be "what God himself is asking". The Buenos Aires criteria were declared the only interpretation and published as authentic magisterium. They admit to the sacraments a person for whom continence is "not feasible", that is, one who continues the sexual relationship, on the ground that leaving it would be "a further fault". In effect, keeping the Sixth Commandment is treated as not now possible for that person without sin.

> **Objection:** *Amoris Laetitia* speaks of guilt, not of the law: "a negative judgment about an objective situation does not imply a judgment about the imputability or culpability of the person involved" (§302). It cites St Thomas on saints who have a virtue yet find its acts difficult (§301). The "further sin" is harm to the children of the second union, not the adultery itself. And the Buenos Aires bishops first propose continence and exclude "unrestricted access". Mitigating factors are traditional teaching (*Catechism* 1735, cited in §302).

> **Answer:** mitigation of guilt is traditional. The problem is the conclusion drawn from it for the sacraments and for the will of God. John Paul II restated the Church's "practice, which is based upon Sacred Scripture", and closed exactly this door. The divorced and remarried are not admitted "from the fact that their state and condition of life objectively contradict that union of love between Christ and the Church which is signified and effected by the Eucharist". Where separation is impossible, absolution requires them to "take on themselves the duty to live in complete continence" (*Familiaris Consortio* §84). *Amoris Laetitia* allows sacramental access in the same objective state once guilt is judged reduced, and says God may be "asking" the person to remain in it for now.

Weight: contrary to the Church's constant teaching, but not a defined dogma. The text speaks of subjective guilt and never says in so many words that a commandment is impossible, so the charge under canon 18 remains a matter of interpretation. The practice it authorises, published "as authentic magisterium", reverses a discipline that John Paul II grounded in Scripture.

9.6.5 Blessings for same-sex couples

BEFORE · Congregation for the Doctrine of the Faith, *Responsum ad dubium* with explanatory note, 22 February 2021 (published 15 March 2021):
"TO THE QUESTION PROPOSED: Does the Church have the power to give the blessing to unions of persons of the same sex? RESPONSE: Negative." … "The answer to the proposed dubium does not preclude the blessings given to individual persons with homosexual inclinations, who manifest the will to live in fidelity to the revealed plans of God as proposed by Church teaching. Rather, **it declares illicit any form of blessing that tends to acknowledge their unions as such.** … But **he does not and cannot bless sin**: he blesses sinful man, so that he may recognize that he is part of his plan of love and allow himself to be changed by him."

Context: the note ends: "the Church does not have, and cannot have, the power to bless unions of persons of the same sex in the sense intended above". Francis "was informed and gave his assent to the publication".

SAID · Dicastery for the Doctrine of the Faith, *Fiducia Supplicans* §31, 18 December 2023, approved by Francis:
"Within the horizon outlined here appears **the possibility of blessings for couples in irregular situations and for couples of the same sex**, the form of which should not be fixed ritually by ecclesial authorities to avoid producing confusion with the blessing proper to the Sacrament of Marriage. In such cases, a blessing may be imparted that not only has an ascending value but also involves the invocation of a blessing that descends from God upon those who—recognizing themselves to be destitute and in need of his help—do not claim a legitimation of their own status, but who beg that **all that is true, good, and humanly valid in their lives and their relationships be enriched, healed, and elevated** by the presence of the Holy Spirit."

Context: the Presentation says the declaration "remains firm on the traditional doctrine of the Church about marriage" and also that it "implies a real development from what has been said about blessings in the Magisterium". The blessing must never be given "in concurrence with the ceremonies of a civil union", nor "with any clothing, gestures, or words that are proper to a wedding" (§39).

The contradiction: in 2021 Rome declared illicit, with Francis's assent, "any form of blessing that tends to acknowledge their unions as such". In 2023, with his approval, it allowed the couple, as a couple, to be blessed, with prayer for what is good in "their relationships". *Fiducia Supplicans* §11 restates the 2021 ruling as forbidding a "liturgical blessing". The 2021 text had said "any form".

> **Objection:** the Dicastery's statement of 4 January 2024 explains that these are "short and simple pastoral blessings (neither liturgical nor ritualised) of couples in irregular situations (but not of their unions)", and that "Obviously it is not a marriage, but equally it is not an 'approval' or ratification of anything either." On this reading, the 2021 reply concerned unions and the 2023 text concerns persons who come together, so no doctrine of marriage is changed.

> **Answer:** the distinction between blessing a couple and blessing their union can be drawn in the abstract, and *Fiducia Supplicans* keeps the doctrine of marriage in words. But two people are blessed as a couple because of the relationship that makes them one, and the 2021 text forbade exactly "any form" that "tends to acknowledge" it. This is one Roman act contradicting another on discipline and on the meaning of a sacramental, which supports section 7.6 ("Rome against itself"). It does not touch a defined dogma.

Weight: ambiguous: an orthodox reading exists through the distinctions between couple and union, and between liturgical and spontaneous blessings, and the matter is one of discipline, not a definition.

Acts often cited (not doctrinal statements):

- **4 February 2019, Abu Dhabi:** he signed the *Document on Human Fraternity* jointly with the Grand Imam of Al-Azhar (9.6.1).
- **31 October 2016, Malmö (Sweden):** "I thank God for this joint commemoration of the five-hundredth anniversary of the Reformation" (address at the ecumenical event in the Malmö Arena).
- **3 April 2019:** he presented his visit to Morocco as "another step on the path of dialogue and encounter with our Muslim brothers and sisters" (general audience).
- **16 July 2021:** *Traditionis Custodes* (see section 7.6).

9.7 Leo XIV (2025–)

Robert Francis Prevost was elected on 8 May 2025. His official biography records that he was ordained priest on 19 June 1982, and that the nuncio, Archbishop James Patrick Green, "conferred episcopal ordination upon him on 12 December 2014, Feast of Our Lady of Guadalupe, in the Cathedral of Saint Mary" at Chiclayo, Peru. The biography does not name the rite. A Latin-rite diocesan episcopal ordination in 2014 would have used Paul VI's 1968 Pontifical, the rite in ordinary use, and nothing found suggests otherwise. The doubt argued in section 6 therefore applies to his episcopal orders. It is important to be exact about what follows from this. Under the 1917 Code, "Romanus Pontifex, legitime electus, statim ab acceptata electione, obtinet, iure divino, plenam supremae iurisdictionis potestatem" (the Roman Pontiff, lawfully elected, obtains by divine law the full power of supreme jurisdiction as soon as he accepts the election) (canon 219). A doubtful consecration would therefore not by itself bar a man from the papacy. It bears on the sacraments that depend on his orders, such as the bishops he consecrates.

In his first eighteen months, **nothing Leo XIV has said contradicts a defined dogma, and this paper does not claim otherwise.** What his public teaching shows is a sustained and explicit adherence to Vatican II. Since January 2026 his weekly general audiences have been a series of catecheses on its documents, which he introduced with the words "Indeed, it is the Magisterium that still constitutes the guiding star of the Church's journey today" (general audience, 7 January 2026). He has celebrated *Nostra Aetate* and continued the ecumenism of *Unitatis Redintegratio* and *Ut Unum Sint*. His case therefore

rests on section 8, which argues that one cannot be in union with Vatican II and *Nostra Aetate* without contradicting the earlier teaching, and on the acts listed below. The three items that follow are each graded ambiguous; the third comes nearest to a condemned proposition.

9.7.1 Reverence for the religions

BEFORE · Pius XI, *Mortalium Animos* §2 (6 January 1928):
"For which reason conventions, meetings and addresses are frequently arranged by these persons, at which a large number of listeners are present, and at which all without distinction are invited to join in the discussion, both infidels of every kind, and Christians… Certainly such attempts can nowise be approved by Catholics, founded as they are on **that false opinion which considers all religions to be more or less good and praiseworthy, since they all in different ways manifest and signify that sense which is inborn in us all, and by which we are led to God** and to the obedient acknowledgment of His rule. Not only are those who hold this opinion in error and deceived, but also in distorting the idea of true religion they reject it…"

Context: Pius XI is describing interreligious gatherings that aim at agreement "in professing certain doctrines, which form as it were a common basis of the spiritual life".

SAID · Leo XIV, address at the commemoration of the 60th anniversary of *Nostra Aetate*, 28 October 2025:
"Third, **religions everywhere try to respond to the restlessness of the human heart. Each, in its own way, offers teachings, ways of life and sacred rites that help guide their followers toward peace and meaning** (cf. n.2). Fourth, the Catholic Church rejects nothing that is true and holy in these religions, which 'reflect a ray of that truth which enlightens all people' (n. 2). **She regards them with sincere reverence** and invites her sons and daughters, through dialogue and collaboration, to recognize, preserve and promote what is spiritually, morally and culturally good in all peoples." … "What is more, we walk this journey not by abandoning our own faith, but by standing firmly within it. For authentic dialogue begins not in compromise, but in conviction…"

Context: the address was given to "Heads and Representatives of World Religions". Earlier that day, at the Colosseum, Leo said "We have prayed for peace according to our diverse religious traditions" and spoke of "religions, as 'mothers'". At the next day's general audience he said *Nostra Aetate* teaches Catholics to meet the followers of other religions "as travelling companions on the path of truth".

The contradiction: Pius XI condemned the view that all religions "in different ways" lead men to God. Leo says each religion "in its own way" offers "sacred rites that help guide their followers toward peace and meaning". He says the Church regards the religions "with sincere reverence", and he calls them "mothers". *Nostra Aetate* §2 itself directs that reverence not at the religions as such, but at "those ways of conduct and of life, those precepts and teachings which … often reflect a ray of that Truth which enlightens all men".

> **Objection:** Leo does not say that the religions save, or that they are equally good. He quotes the "ray of that truth" and requires dialogue "not by abandoning our own faith" but "in conviction". The Roman doctrinal office allowed in 2000 that "some prayers and rituals of the other religions may assume a role of preparation for the Gospel" (*Dominus Iesus* §21). And "peace and meaning" are natural goods, not salvation.

> **Answer:** the defence is fair as far as it goes: nothing here denies that salvation comes through the Church. But Leo's wording goes beyond the conciliar text. He directs reverence at the religions themselves, not at certain of their teachings, and he calls their rites helps. He also addresses their leaders without any call to the faith. This is the programme of *Nostra Aetate*, examined in section 8; Leo adds to it little but his endorsement.

Weight: ambiguous: an orthodox reading exists. The statements are in substance those of *Nostra Aetate*, so the charge is the one made against the Council itself. Section 8 sets the general audience of 29 October 2025 ("Our respective traditions teach truth…") against the earlier teaching as a separate pair; that pair is not repeated here.

9.7.2 “The same faith”, and an ecumenism without return

BEFORE · Pius XI, *Mortalium Animos* §§9–10 (1928):
“…in connection with things which must be believed, it is nowise licit to use that distinction which some have seen fit to introduce between those articles of faith which are fundamental and those which are not fundamental, as they say, as if the former are to be accepted by all, while the latter may be left to the free assent of the faithful: for **the supernatural virtue of faith has a formal cause, namely the authority of God revealing, and this is patient of no such distinction.** … So, Venerable Brethren, it is clear why this Apostolic See has never allowed its subjects to take part in the assemblies of non-Catholics: for **the union of Christians can only be promoted by promoting the return to the one true Church of Christ of those who are separated from it**, for in the past they have unhappily left it.”

Context: §9 names the points on which Christian bodies are divided: Tradition as a source of revelation, the divinely constituted hierarchy, transubstantiation, the Mass as a sacrifice, and the invocation of the saints.

SAID · Leo XIV, apostolic letter *In unitate fidei* §12, 23 November 2025:
“Nevertheless, ecumenical dialogue, founded on one baptism and the Nicene-Constantinopolitan Creed, has led us to recognize the members of other Churches and ecclesial communities as our brothers and sisters in Jesus Christ, and to rediscover the one universal community of Christ’s disciples throughout the world. **We share the same faith in the one and only God**, the Father of all people; we confess together the one Lord and true Son of God, Jesus Christ, and the one Holy Spirit, who inspires us and impels us towards full unity and the common witness to the Gospel. **Truly, what unites us is much greater than what divides us!** … This does not imply **an ecumenism that attempts to return to the state prior to the divisions**, nor is it a mutual recognition of the current status quo of the diversity of Churches and ecclesial communities. Rather, it is an ecumenism that looks to the future, that seeks reconciliation through dialogue as we share our gifts and spiritual heritage.”

Context: the letter marks the 1,700th anniversary of Nicaea and was issued before Leo’s journey to İznik. In the same paragraph he writes: “We must therefore leave behind theological controversies that have lost their raison d’être”. On 30 November 2025, at the Orthodox Divine Liturgy at the Phanar, he said that the faith of the Nicene-Constantinopolitan Creed “unites us in real communion”.

The contradiction: for Pius XI, faith is one because its formal cause is God revealing. One may not set the articles held in common against those rejected, and union comes only by the return of the separated to the Church. Leo says Catholics and the separated “share the same faith” and that what unites them is “much greater than what divides us”. He then describes the goal without any return of the separated to the Catholic Church: neither a return “to the state prior to the divisions” nor “mutual recognition”, but “reconciliation through dialogue as we share our gifts”.

> **Objection:** "the same faith" is qualified by what follows: belief in God the Father, in Christ and in the Holy Spirit, which the Orthodox and most Protestants do profess. The "return" Leo rejects is a return to the situation before the schisms, not the doctrine of *Mortalium Animos*. Elsewhere in the paragraph he admits that "full visible unity … has not yet been reached", and he asks for "repentance and conversion on the part of all". A footnote to the letter (n. 10) says only that the *Filioque* "was inserted into the Latin Creed by Pope Benedict VIII in 1014 and is a subject of Orthodox-Catholic dialogue". That is true as history and does not deny the doctrine.

> **Answer:** the defence holds on the letter of the text. Leo nowhere says that the separated need not enter the Catholic Church, or that dissent from a defined doctrine is harmless. Florence defined that the *Filioque* "was licitly and reasonably added to the creed", and Leo's footnote does not contradict this. But his vocabulary is that of *Unitatis Redintegratio* (see sections 4.3 and 8). The union he describes leaves no room for the return that Pius XI said was the only way. And to measure what "unites" against what "divides" comes close to the distinction between fundamental and non-fundamental articles that Pius XI forbade.

Weight: ambiguous: an orthodox reading exists. The charge is the one against the Council's ecumenism, which Leo has made his own.

9.7.3 Dogmatic formulas “partial and provisional”

TEACHING · Vatican I, *Dei Filius* ch. 4 and canon 3 on faith and reason (24 April 1870; Tanner translation):
“For the doctrine of the faith which God has revealed is put forward not as some philosophical discovery capable of being perfected by human intelligence, but as a divine deposit committed to the spouse of Christ to be faithfully protected and infallibly promulgated. Hence, too, **that meaning of the sacred dogmas is ever to be maintained which has once been declared by holy mother church, and there must never be any abandonment of this sense under the pretext or in the name of a more profound understanding.** … 3. If anyone says that it is possible that at some time, given the advancement of knowledge, a sense may be assigned to the dogmas propounded by the church which is different from that which the church has understood and understands: let him be anathema.”

Context: the chapter goes on to allow growth in understanding “only in its own proper kind, that is to say, in the same doctrine, the same sense, and the same understanding”. Development is allowed; a change of meaning is not.

SAID · Leo XIV, address to bishops, priests, religious and pastoral workers, Cathedral of the Holy Spirit, Istanbul, 28 November 2025:
“Finally, the third challenge is the mediation of faith and the development of doctrine. In a complex cultural context, the Nicene Creed expressed the essence of the faith through the philosophical and cultural categories of its time. Yet only a few decades later, at the First Council of Constantinople, we see that it was further deepened and expanded. … Here too we learn an important lesson: **the Christian faith must always be expressed in the languages and categories of the culture in which we live**, just as the Fathers did at Nicaea and in the other Councils. At the same time, **we must distinguish the essence of the faith from the historical formulas that express it — formulas that are always partial and provisional and can change as doctrine is more deeply understood.** Let us recall that the Church’s newest Doctor, Saint John Henry Newman, insisted on the development of Christian doctrine, because doctrine is not an abstract, static idea, but reflects the very mystery of Christ.”

Context: the Italian text on vatican.va reads “dobbiamo distinguere il nucleo della fede dalle formule e dalle forme storiche che lo esprimono, le quali restano sempre parziali e provvisorie e possono cambiare man mano che approfondiamo la dottrina” (“we must distinguish the core of the faith from the formulas and historical forms that express it, which always remain partial and provisional and can change as we deepen doctrine”). Leo speaks of formulas, not of meaning. His example of development is the Creed of Constantinople completing that of Nicaea.

The contradiction: Vatican I binds the faith to the sense once declared, and that sense is carried by formulas such as *homoousios* and transubstantiation. Pius XII condemned the view "that the mysteries of faith are never expressed by truly adequate concepts but only by approximate and ever changeable notions" (*Humani Generis* §15). Paul VI taught that the dogmatic formulas "are adapted to all men of all times and all places" (*Mysterium Fidei* §24). Leo calls the formulas "always partial and provisional", says they "can change", and says the faith "must always be expressed in the languages and categories of the culture in which we live".

> **Objection:** Leo distinguishes the formula from the "essence" and never says that the meaning changes. The Roman doctrinal office drew the same distinction in *Mysterium Ecclesiae* (1973) §5: a dogmatic truth may be "first expressed incompletely (but not falsely)". It added that certain formulas "gave way to new expressions which, proposed and approved by the Sacred Magisterium, presented more clearly or more completely the same meaning". Pius XII himself granted that the Church's terminology "is capable of being perfected and polished" (*Humani Generis* §16). "Partial" can mean only that no formula exhausts the mystery, and Leo's example, Nicaea completed by Constantinople, is a case of completion, not of reversal.

> **Answer:** "partial" can be read that way; "provisional" is harder to read so. *Mysterium Ecclesiae* says the formulas "remain forever suitable for communicating this truth to those who interpret them correctly". It warns the faithful against the opinion "that dogmatic formulas (or some category of them) cannot signify truth in a determinate way, but can only offer changeable approximations to it". A formula that is provisional by its nature, and must follow the categories of each culture, comes close to that "changeable approximation", and to Pius XII's "ever changeable notions". Paul VI's "adapted to all men of all times and all places" says the opposite. Still, the sentence does not assert a change of sense, and a change of sense is what Vatican I anathematises.

Weight: ambiguous: an orthodox reading exists, through the distinction between formula and meaning that *Mysterium Ecclesiae* allows. It is nonetheless the closest any statement of Leo XIV comes to a condemned proposition.

Acts often cited (not doctrinal statements):

- **28 October 2025, Colosseum:** he took part in the Sant'Egidio meeting of prayer for peace: "We have prayed for peace according to our diverse religious traditions". He grounded it in the Council: "For the Catholic Church, prayer in the 'spirit of Assisi' is based on the solid foundation set out in the Second Vatican Council's Declaration Nostra Aetate".
- **28 October 2025, *Nostra Aetate* commemoration:** after recalling John Paul II at Assisi in 1986, he invited the heads of the world religions "to pause for a moment in silent prayer". He did the same at the general audience of 29 October 2025, at which "leaders and representatives of non-Christian religions" were present.
- **28 November 2025, İznik:** he joined an ecumenical prayer service with Patriarch Bartholomew I and the heads of other Christian bodies, including "the choral recitation of the Nicene-Constantinopolitan Creed" (Holy See Press Office).

- **29 November 2025, Istanbul:** he visited the Sultan Ahmed Mosque “in silence, in a spirit of contemplation and listening, with deep respect for the place and the faith of those who gather there in prayer” (Holy See Press Office). The same day he signed a joint declaration with Bartholomew I stating that “what binds us together is the faith expressed in the creed of Nicaea”.
- **30 November 2025, Istanbul:** he attended the Orthodox Divine Liturgy in the Patriarchal Church of St George.
- **22 January 2026:** his message for the International Day of Human Fraternity celebrated “the 7th anniversary of the signing of the Document on Human Fraternity by Pope Francis and the Grand Imam Ahmad Al-Tayyeb” (see 9.6.1).

10. Objections and answers

"Who are you to judge the pope?"

No one here claims to judge or depose a pope. The question is whether a man who publicly professes what the Church condemns *is* the pope. The 1917 Code counts public defection from the faith among the acts by which a cleric is held to have tacitly resigned his office. That office then becomes vacant "ipso facto et sine ulla declaratione" (by the fact itself and without any declaration) (canon 188, 4º; see Principle 3). Comparing published documents is not private judgment: the texts are public and can be read by anyone.

"The texts can be read in continuity. These are only changes of discipline or emphasis."

Those who defend the Council admit that something really changed, though each of them denies that doctrine was contradicted. Here are their words, with that denial left in.

> **Benedict XVI**, address to the Roman Curia, 22 December 2005:
> "It is clear that in all these sectors, which all together form a single problem, some kind of discontinuity might emerge. Indeed, **a discontinuity had been revealed** but in which, after the various distinctions between concrete historical situations and their requirements had been made, the continuity of principles proved not to have been abandoned. It is easy to miss this fact at a first glance. It is precisely in this combination of continuity and discontinuity at different levels that the very nature of true reform consists."
>
> *Context:* Benedict is defending a "hermeneutic of reform" against a "hermeneutic of discontinuity". The "sectors" are the Church's relations with modern science, with the modern State (religious freedom) and with the world religions and the Jews. He places the discontinuity in "the Church's decisions on contingent matters", and holds that the principles were kept.

Fr Brian Harrison, "Is Ecumenism a Heresy?":
"To compare these two magisterial documents, we first need to recall the distinction between a reversal of official Church policy, discipline or pastoral strategy, and a contradiction of doctrine. The former type of change has often taken place in the course of Church history, in response to changing circumstances. And in this practical, disciplinary respect, a comparison between MA and UR reveals an undeniable and very marked change of direction — **indeed, practically a U-turn.** Pius XI flatly forbade any Catholic participation in interchurch or inter-religious meetings and activities motivated by the desire for restoring Christian unity. Vatican II, on the other hand, authorizes and positively encourages Catholic participation in such activities (within certain limits). … At the more fundamental level of doctrine, however, the short answer to the charge of contradiction between MA and UR is that what Pius XI condemned is by no means the same thing that Vatican II affirms."

Context: Harrison is comparing Pius XI's *Mortalium Animos* (MA, 1928) with Vatican II's *Unitatis Redintegratio* (UR, 1964). The omitted sentence calls the change a prudential judgement that the good hoped from ecumenism outweighs its risks. He grants a U-turn in discipline and denies any contradiction in doctrine.

Michael Davies, *The Second Vatican Council and Religious Liberty* (1992), pp. 273–274, as quoted by Fr Brian Harrison:
"One instance in which it appears **impossible to deny the existence of a formal contradiction** is that of Proposition 78 of the Syllabus, which has already been cited in this appendix: *Hence it has been wisely decided by law, in some Catholic countries, that persons coming to reside therein shall enjoy the public exercise of their own peculiar worship.* Dignitatis humanae most certainly appears to contradict [the Papal condemnation of] this proposition by teaching that non-Catholics shall enjoy the public exercise of their own peculiar worship in every Catholic country, hence the changes in the Spanish Constitution documented in Appendix III."

Context: Davies says this of one proposition only. Elsewhere in the same book (p. 227, as quoted by Harrison) he writes: "I shall not claim that a contradiction exists. All that I wish to do is to state that I do not see how the traditional teaching and that of Dignitatis humanae can be reconciled". He also accepts that *Quanta Cura* is not formally contradicted. Harrison replies that Proposition 78 concerns policy towards immigrants, not doctrine.

> **Cardinal Ratzinger**, "The Ecclesiology of the Constitution on the Church" (2000):
> "With the word subsistit, the Council wished to explain the unicity of the Catholic Church and the fact of her inability to be multiplied: the Church exists as a subject in historical reality. The difference between subsistit and est however contains the tragedy of ecclesial division. Although the Church is only one and "subsists" in a unique subject, there are also ecclesial realities beyond this subject — true local Churches and different ecclesial communities. Because sin is a contradiction, **this difference between subsistit and est cannot be fully resolved from the logical viewpoint.**"
>
> *Context:* Ratzinger is explaining *Lumen Gentium* §8, where the Church of Christ "subsists in" (*subsistit in*) the Catholic Church instead of Pius XII's "is" (*est*). He reads *subsistit* as affirming the Church's unicity. He puts the unresolved tension down to the contradiction of sin and division, not to a contradiction in doctrine.

Each of these writers places the change in discipline, policy or application, and denies that doctrine was contradicted. That is their position, and it is stated here fairly. This paper's claim is that the change reaches doctrine itself, and §§3–4 set the texts side by side so that the reader can test it. What the admissions establish is narrower: the change is real, and its defenders recognised it as such. It cannot be dismissed as a traditionalist misreading.

Rome itself has since abandoned continuity in the liturgy. In 2007 Benedict XVI wrote of the old and new missals: "In the history of the liturgy there is growth and progress, but no rupture. What earlier generations held as sacred, remains sacred and great for us too, and it cannot be all of a sudden entirely forbidden or even considered harmful." He held both missals to be legitimate, and he added that priests using the old one could not "as a matter of principle, exclude celebrating according to the new books" (letter to bishops with *Summorum Pontificum*). In 2021 *Traditionis Custodes* art. 1 declared: "The liturgical books promulgated by Saint Paul VI and Saint John Paul II, in conformity with the decrees of Vatican Council II, are the unique expression of the lex orandi of the Roman Rite."

"If the Church has been without a pope for sixty years, she is no longer visible. Christ promised she would last."

This is the strongest objection. Archbishop Lefebvre put it this way:

> **Archbishop Lefebvre**, statement of 8 November 1979 (Davies, *Apologia pro Marcel Lefebvre* II ch. 40):
> "Does not the exclusion of the cardinals of over eighty years of ages, and the secret meetings which preceded and prepared the last two Conclaves, render them invalid? Invalid: no, that is saying too much. Doubtful at the time: perhaps. But in any case, the subsequent unanimous acceptance of the election by the Cardinals and the Roman clergy suffices to validate it. That is the teaching of the theologians. **The visibility of the Church is too necessary to its existence for it to be possible that God would allow that visibility to disappear for decades.** The reasoning of those who deny that we have a Pope puts the Church in an inextricable situation. Who will tell us who the future Pope is to be? How, as there are no Cardinals, is he to be chosen?"
>
> *Context:* Lefebvre is answering traditionalists who held that Paul VI was a heretic and no longer pope. Just before this passage he grants that Paul VI signed texts "close to heresy if not formally heretical". He explains them by Paul VI's liberalism, not by heresy, and appeals to acceptance by the cardinals (see the next objection).

The Church must be visible. Leo XIII:

> **Leo XIII**, *Satis Cognitum* §3 (1896):
> "From this it follows that **those who arbitrarily conjure up and picture to themselves a hidden and invisible Church are in grievous and pernicious error**: as also are those who regard the Church as a human institution which claims a certain obedience in discipline and external duties, but which is without the perennial communication of the gifts of divine grace … But since the Church is such by divine will and constitution, **such it must uniformly remain to the end of time.** … The union consequently of visible and invisible elements because it harmonizes with the natural order and by God's will belongs to the very essence of the Church, must necessarily remain so long as the Church itself shall endure."
>
> *Context:* Leo XIII is arguing against Protestant ideas of an invisible Church. The Church is a body, and so is visible, and the visible element must last as long as the Church does. The omitted lines compare the union of the Church's visible and invisible elements to the union of soul and body, and of Christ's two natures.

The answer cannot be an invisible Church. This text cuts against any reply that makes the Church hidden, and it has to be met head-on.

What visibility requires. Theologians distinguish two kinds of visibility. *Material* visibility means that the Church is a public society, not a secret one. *Formal* visibility means that she stays recognisable for what she is:

Catholic Encyclopedia, "The Church" (1908):
"In asserting that the Church of Christ is visible, we signify, first, that as a society it will at all times be conspicuous and public, and second, that it will ever be recognizable among other bodies as the Church of Christ. These two aspects of visibility are termed respectively "material" and "formal" visibility by Catholic theologians. **The material visibility of the Church involves no more than that it must ever be a public, not a private profession**; a society manifest to the world, not a body whose members are bound by some secret tie. Formal visibility is more than this. It implies that in all ages the true Church of Christ will be easily recognizable for that which it is … This must, of course, be understood with some necessary qualifications. The power to recognize the Church for what it is presupposes certain moral dispositions. Where there is a rooted unwillingness to follow God's will, there may be spiritual blindness to the claims of the Church. Invincible prejudice or inherited assumptions may produce the same result. But in such cases **the incapacity to see is due, not to the want of visibility in the Church, but to the blindness of the individual.**"

Context: The article goes on to say that formal visibility is secured by the four marks, above all unity. The faithful "are united by the profession of a common faith, by participation in a common worship, and by obedience to a common authority", and "acknowledge in the successor of Peter the same supreme ruler." The "blindness" sentence is about people whose moral dispositions or prejudice keep them from seeing a Church that is in itself plain to see.

That is a demanding standard, and the last part of it, unity under a known successor of Peter, is precisely what a long vacancy obscures. The sedevacantist reply has two parts. First, the other marks, especially unity of faith, are kept visibly by the clergy and faithful who publicly hold the faith and the sacraments. Second, unity under the papacy remains as a right and a demand of the Church even while the See is empty (Dorsch, below). Archbishop Lefebvre appealed to the same marks in 1988, though he made the appeal while still recognising the pope:

Archbishop Lefebvre, retreat of 9 September 1988:
"Where is the visible Church? The visible Church is recognised by the signs she has always given for her visibility: she is one, holy, catholic and apostolic. … All this shows that **it is we who bear the marks of the visible Church.** If there is still any visibility of the Church today, it is thanks to you. These signs are no longer to be found among the others. The unity of faith no longer exists with them, yet it is faith which is the foundation of all visibility of the Church."

Context: Lefebvre is speaking to his priests after the 1988 consecrations. The omitted lines go through unity, catholicity, apostolicity and holiness in turn. He then adds: "we are always united to the Roman Church, and even to the Pope, of course, to the successor of Peter." The sedevacantist takes his criterion, not his conclusion.

Widespread failure among the bishops has happened before. In the Arian crisis:

> **St Jerome**, *Dialogue against the Luciferians* §19 (NPNF translation):
> "Valens and Ursacius and others associated with them in their wickedness, eminent Christian bishops of course, began to wave their palms, and to say they had not denied that He was a creature, but that He was like other creatures. At that moment the term Usia was abolished: the Nicene Faith stood condemned by acclamation. **The whole world groaned, and was astonished to find itself Arian.** Some, therefore, remained in their own communion, others began to send letters to those Confessors who as adherents of Athanasius were in exile; several despairingly bewailed the better relations into which they had entered. … The bishops who had been caught in the snare at Ariminum and had unwittingly come to be reported of as heretics, began to assemble, while they called the Body of our Lord and all that is holy in the Church to witness that they had not a suspicion of anything faulty in their own faith. … We did not suppose that the bishops of Christ were fighting against Christ."
>
> *Context:* Jerome is describing the Council of Ariminum (359). There the bishops signed an ambiguous creed in good faith, and Valens and his party then claimed it for the Arian sense. He is writing *against* the Luciferians, who refused communion with those bishops. In §§19–21 he argues that the bishops were deceived, not heretics, and should be received. He says of Lucifer's separation that "he separated off a few sheep and abandoned the remnant of the flock". Jerome is a witness to how far error could spread among the bishops, not to the rightness of separating. His bishops had been deceived and recanted.

> **St Basil** and the Eastern bishops, *Letter* 92 §2, to the bishops of Italy and Gaul:
> "The doctrines of true religion are overthrown. The laws of the Church are in confusion. The ambition of men, who have no fear of God, rushes into high posts, and exalted office is now publicly known as the prize of impiety. The result is, that the worse a man blasphemes, the fitter the people think him to be a bishop. … All the while unbelievers laugh; men of weak faith are shaken; faith is uncertain; souls are drenched in ignorance, because adulterators of the word imitate the truth. The mouths of true believers are dumb, while every blasphemous tongue wags free; holy things are trodden under foot; **the better laity shun the churches as schools of impiety; and lift their hands in the deserts with sighs and tears to their Lord in heaven.** Even you must have heard what is going on in most of our cities, how our people with wives and children and even our old men stream out before the walls, and offer their prayers in the open air … waiting for help from the Lord."
>
> *Context:* The letter is signed by Meletius, Basil and some thirty other Eastern bishops. They describe sees held by Arians and ask the Western bishops to come to their help. The writers are themselves orthodox bishops, and the letter is an appeal for help and communion from the West.

St Gregory Nazianzen, *Oration* 33 §15, "Against the Arians, and concerning himself":
"**These men have the houses, but we the Dweller in the house; they the Temples, we the God**; and besides it is ours to be living temples of the Living God, lively sacrifices, reasonable burnt-offerings, perfect sacrifices, yea, gods through the adoration of the Trinity. They have the people, we the Angels; they rash boldness, we faith; they threatenings, we prayer; they smiting, we endurance; they gold and silver, we the pure word. … Is mine a little flock? But it is not being carried over a precipice. Is mine a narrow fold? But it is unapproachable by wolves … I shall yet see it, I know well, wider. And many of those who are now wolves, I must reckon among my sheep, and perhaps even among the shepherds."

Context: Gregory is answering Arian opponents who hold the church buildings and the crowds while his own orthodox flock is small. He expects many of them to return.

A long vacancy of the Holy See is not excluded. The papacy is perpetual as an office, not as an unbroken occupancy.

The anathema most often cited against this paper is this one:

ANATHEMA · Vatican I, *Pastor Aeternus* ch. 2 (Tanner translation):
"Therefore, **if anyone says that it is not by the institution of Christ the lord himself (that is to say, by divine law) that blessed Peter should have perpetual successors in the primacy over the whole church**; or that the Roman pontiff is not the successor of blessed Peter in this primacy: let him be anathema."

Context: chapter 2 is "On the permanence of the primacy of blessed Peter in the Roman pontiffs". It teaches that what Christ established in Peter "must of necessity remain for ever … in the church".

The canon defines that the primacy has perpetual successors *by divine institution*: that the office is never abolished, and that whoever lawfully holds the Roman See succeeds Peter in it. It does not define that the See is never vacant. If it did, every interregnum would contradict it, including the vacancies of 304–308 and 1268–1271 below. The question is how long a vacancy can be, and the theologians do not fix a limit:

A. Dorsch SJ, *Institutiones Theologiae Fundamentalis* II: *De Ecclesia Christi* (1928), pp. 196–197:
"Corollarium. Est ergo ecclesia societas essentialiter monarchica. **Neque obstat, quod mortuo papa ecclesia per aliquod tempus vel etiam per plures annos capite suo destituta manet; manet enim ejus forma monarchica etiam in isto casu**; de qua re haec teneas. a) Potestas regendi suprema isto tempore actu quidem non adest, neque in toto ecclesiae corpore, neque in episcopis; adest tamen exigentia eiusdem determinata, qua novus primas omnino eligi debet; neque igitur forma monarchica tum transit in aliam. b) Manet tunc potestas quidem episcoporum in suo ordine; est enim ordinaria eorumque muneri conexa; sed haec potestas ex sese vel illo tempore incompleta est et insufficiens ad gubernandam totam ecclesiam qua talem et exigit tanquam necessarium complementum potestatem capitis; ideoque isto tempore nec dogma ullum definiri nec concilium oecumenicum celebrari potest."
(Corollary. The Church is therefore an essentially monarchical society. Nor is it an obstacle that, when the pope has died, the Church remains without her head for some time or even for several years; for her monarchical form remains even in that case. On this point hold the following. a) At that time the supreme power of ruling is not actually present, neither in the whole body of the Church nor in the bishops; but there is present a determinate demand for it, by which a new primate must by all means be elected, so the monarchical form does not then pass into another. b) The power of the bishops does then remain in its own order, for it is ordinary and joined to their office; but this power, of itself and at that time, is incomplete and insufficient to govern the whole Church as such, and demands the power of the head as its necessary complement; and so at that time no dogma can be defined and no ecumenical council held. Author's translation.)

Context: Dorsch is answering the objection that a vacancy breaks the Church's monarchical constitution. He has in view a vacancy after a pope's death, not one caused by heresy, and he assumes that the bishops keep their ordinary power meanwhile. These lines of the archive.org OCR are legible; only line-end hyphens have been joined.

E. S. Berry, *The Church of Christ* (1927), pp. 397–398:
"When the Apostolic See is vacant, there is no supreme authority in the Church; the bishops retain power to rule their respective dioceses, but no laws can be made for the universal Church, no dogmas of faith can be defined, no legitimate council convened. In place of this supreme authority, the Church has the right and the duty of selecting someone upon whom Christ will again bestow it. It is evident, then, that **the Apostolic succession cannot fail in the Apostolic See so long as the Church herself continues to exist, for although the see be vacant for many years, the Church always retains the right to elect a legitimate successor**, who then obtains supreme authority according to the institution of Christ."

Context: Berry is explaining that the pope receives his power immediately from Christ, while the Church designates the person. On the next page he adds that a pope "must also be a member of the Church since no one can be the head of any society unless he also be a member of that society". Like Dorsch, he assumes that the bishops keep their dioceses during a vacancy.

E. J. O'Reilly SJ, *The Relations of the Church to Society* (1892), p. 283:
"We may here stop to inquire what is to be said of the position, at that time, of the three claimants, and their rights with regard to the Papacy. In the first place, there was all through, from the death of Gregory XI. in 1378, a Pope — with the exception, of course, of the intervals between deaths and elections to fill up the vacancies thereby created. There was, I say, at every given time a Pope, really invested with the dignity of Vicar of Christ and Head of the Church, whatever opinions might exist among many as to his genuineness; **not that an interregnum covering the whole period would have been impossible or inconsistent with the promises of Christ, for this is by no means manifest**, but that, as a matter of fact, there was not such an interregnum."

Context: O'Reilly is discussing the Western Schism ahead of the Council of Constance. His own judgement is that there *was* a true pope throughout, Urban VI and his line. He only declines to say that a forty-year interregnum would have been impossible.

> *Catholic Encyclopedia*, "Western Schism" (1912):
> "Christendom was quickly divided into two almost equal parties. **Everywhere the faithful faced the anxious problem: where is the true pope? The saints themselves were divided**: St Catherine of Siena, St. Catherine of Sweden, Bl. Peter of Aragon, Bl. Ursulina of Parma, Philippe d'Alencon, and Gerard de Groote were in the camp of Urban; St. Vincent Ferrer, Bl. Peter of Luxemburg, and St. Colette belonged to the party of Clement. … There was simply ignorance, and among the greater number invincible ignorance regarding the person of the true pope, regarding him who was at that time the visible depositary of the promises of the invisible Head."
>
> *Context:* The article calls the schism "a deplorable misunderstanding concerning a question of fact", in which "faith in the necessary unity never wavered a particle". It shows how long the Church could be without a *certainly known* head. It is not an example of a vacant See.

The See was also vacant for about four years (304–308) and almost three years (1268–1271).

What remains open. The theologians who allow a long vacancy assume that diocesan bishops with ordinary jurisdiction remain in place during it (Dorsch, Berry). Where such bishops are today, and how a future pope will be elected, are real questions that sedevacantist theologians answer in different ways. This paper does not pretend they are settled. But every alternative faces a greater difficulty (see the objection on the Society of St Pius X below). And Catholic theology already holds that the Church can provide for herself when she lacks a certain head:

> **E. J. O'Reilly SJ**, *The Relations of the Church to Society* (1892), pp. 287–288:
> "A General Council was the proper remedy, or rather the proper road to a remedy. Clearly **the Church, when destitute of a Head, or of a certain unquestioned Head, has the right and the power to provide for herself**, and determine on a course which seems fit to furnish her with a Supreme Pontiff, and the course maturely taken is to be considered as Divinely authorised. … If this schism had not occurred, the hypothesis of such a thing happening would appear to many chimerical. They would say it could not be; God would not permit the Church to come into so unhappy a situation. … But that Catholics should be divided on the question of who was Pontiff, that the true Church should remain between thirty and forty years without a thoroughly ascertained Head, and representative of Christ on earth, this would not be. Yet it has been; and we have no guarantee that it will not be again, though we may fervently hope otherwise. What I would infer is, that **we must not be too ready to pronounce on what God may permit.**"
>
> *Context:* O'Reilly is explaining how the Council of Constance ended the Western Schism. The remedy he names is a General Council of the bishops. He goes on to say that "contingencies regarding the Church, not excluded by the Divine promises, cannot be regarded as practically impossible, because they would be terrible and distressing in a very high degree."

There is a second anathema here, and it bears on every traditional priest and bishop, whatever his view of the papacy:

> **ANATHEMA** · Council of Trent, Session 23, canon 7, last clause:
> "… or, that **those who have neither been rightly ordained, nor sent, by ecclesiastical and canonical power, but come from elsewhere, are lawful ministers of the word and of the sacraments**; let him be anathema."
>
> *Context:* the clause is aimed at the Protestant claim that ministers may be called by the congregation or the civil power. The same canon condemns those who say that orders conferred "without the consent, or vocation of the people, or of the secular power, are invalid".

This is a real difficulty, and it is not peculiar to sedevacantists: the bishops of the Society of St Pius X were also consecrated without, indeed against, a mandate from the man they recognise as pope. The traditional clergy answer that they claim no mission from the people, and that the Church herself supplies jurisdiction where the faithful need the sacraments: "In errore communi aut in dubio positivo et probabili sive iuris sive facti, iurisdictionem supplet Ecclesia pro foro tum externo tum interno" (In common error, or in positive and probable doubt of law or of fact, the Church supplies jurisdiction for both the external and internal forum) (1917 Code, canon 209). Whether supplied jurisdiction covers the present situation is disputed among sedevacantist theologians themselves. This paper states it as an open question.

"The whole Church accepted these popes, and universal acceptance is an infallible sign of a legitimate pope."

The principle is from Cardinal Billot. The whole passage should be read, because it cuts both ways:

Cardinal Billot, *Tractatus de Ecclesia Christi* I (1909), pp. 620–621:
"Sed quidquid demum de possibilitate vel impossibilitate praelatae hypothesis adhuc sentias, id saltem veluti penitus inconcussum et extra omnem dubitationem positum firmiter tenendum est: **adhaesionem universalis Ecclesiae fore semper ex se sola infallibile signum legitimitatis personae Pontificis, adeoque et exsistentiae omnium conditionum quae ad legitimitatem ipsam sunt requisitae.** Neque huius rei a longe repetenda ratio. Immediate enim sumitur ex infallibili Christi promissione atque providentia: Portae inferi non praevalebunt adversus eam, et iterum: Ecce ego vobiscum sum omnibus diebus. Idem namque foret, Ecclesiam adhaerere pontifici falso, ac si adhaereret falsae fidei regulae, cum Papa sit regula vivens quam Ecclesia in credendo sequi debet et semper de facto sequitur, uti ex dicendis in posterum luculentius adhuc apparebit. **Equidem permittere potest Deus ut aliquando vacatio sedis diutius protrahatur.** Permittere quoque potest ut de legitimitate unius vel alterius electi exoriatur dubium. **Permittere autem non potest ut Ecclesia tota eum admittat pontificem qui verus et legitimus non sit.** Ex quo igitur receptus est, et Ecclesiae coniunctus ut corpori caput, non est amplius movenda quaestio de possibili vitio electionis vel defectu cuiuscumque conditionis ad legitimitatem necessariae, quia praedicta Ecclesiae adhaesio omne vitium electionis radicitus sanat, et exsistentiam omnium requisitarum conditionum infallibiliter ostendit. Et hoc sit obiter dictum contra eos qui certa tentamina schismatica tempore Alexandri VI facta hoc nomine cohonestare volunt, quod ab eo fiebant qui de haereticitate Alexandri certissimas probationes in Concilio generali revelandas habere se dictitabat. At vero, ut aliae nunc rationes omittantur quibus opinio ista facile posset confutari, haec una sufficit: Constat nempe quod tempore quo Savonarola suas ad principes litteras scribebat, tota christianitas Alexandro adhaerebat et obediebat tanquam vero pontifici. Ergo eo ipso, Alexander non erat pontifex falsus, sed legitimus. **Ergo non erat haereticus, ea saltem haereticitate quae tollendo rationem membri Ecclesiae, pontificia potestate vel qualibet alia ordinaria iurisdictione ex natura rei consequenter privat.**"
(But whatever you may still think about the possibility or impossibility of the hypothesis just set out, this at least must be held firmly as wholly unshaken and beyond all doubt: **the adhesion of the universal Church will always be, of itself alone, an infallible sign of the legitimacy of the person of the Pontiff, and therefore also of the existence of all the conditions required for legitimacy itself.** The reason for this need not be sought from afar. It is taken directly from the infallible promise and providence of Christ: The gates of hell shall not prevail against her; and again: Behold, I am with you all days. For it would be the same thing for the Church to adhere to a false pontiff as to adhere to a false rule of faith, since the Pope is the living rule which the Church must follow in believing, and in fact always does follow, as will appear still more clearly from what is to be said later. **God can indeed permit that at times the vacancy of the See be prolonged for a long time.** He can also permit doubt to arise about the legitimacy of one or another man elected. **But He cannot permit that the whole Church should accept as pontiff one who is not the true and legitimate pontiff.** From the moment, then, that he has been received and joined to the Church as head to body, the question of a possible defect in the election, or of the lack of any condition necessary for legitimacy, is no longer to be raised; for the

> said adhesion of the Church heals at the root every defect of the election and infallibly shows the existence of all the required conditions. Let this be said in passing against those who wish to justify certain schismatic attempts made in the time of Alexander VI on the ground that their author kept saying he had most certain proofs of Alexander's heresy to reveal in a general council. But, to pass over other reasons by which that opinion could easily be refuted, this one suffices: it is established that at the time when Savonarola was writing his letters to the princes, all Christendom adhered to Alexander and obeyed him as true pontiff. Therefore by that very fact Alexander was not a false pontiff but a legitimate one. **Therefore he was not a heretic, at least not with that heresy which, by taking away the standing of a member of the Church, consequently deprives a man, by the nature of the case, of pontifical power or any other ordinary jurisdiction.** Author's translation.)
>
> *Context:* This closes Billot's thesis on the perpetuity of the primacy. The "hypothesis" is that of a pope falling into heresy, which he has just discussed without settling it. The OCR has been silently corrected (e.g. "praevalebunt adversus", "sum omnibus diebus", "haereticitate"), and line-end hyphens joined.

St Alphonsus is usually quoted for the same principle:

St Alphonsus Liguori, *Verità della Fede* (1767), Part III ch. 8 nn. 9–10, p. 104:
"9. Niente ancora importa, che ne' secoli passati alcun Pontefice sia stato illegittimamente eletto, o fraudolentemente siasi intruso nel Pontificato; basta che poi sia stato accettato da tutta la Chiesa come Papa, attesochè per tale accettazione già si è renduto legittimo, e vero Pontefice. **Ma se per qualche tempo non fosse stato veramente accettato universalmente dalla Chiesa, in tal caso per quel tempo sarebbe vacata la Sede Pontificia, come vaca nella morte de' Pontefici.** Così neppure importa, che in caso di Scisma siasi stato molto tempo nel dubbio, chi fosse il vero Pontefice; perchè allora uno sarebbe stato il vero, benchè non abbastanza conosciuto; e se niuno degli Antipapi fosse stato vero, allora il Pontificato sarebbe similmente vacato. 10. Che poi alcuni Pontefici sieno caduti in eresia, taluni han cercato di provarlo, ma non mai l'han provato, nè mai lo proveranno; e noi chiaramente proveremo il contrario nella fine del Capo X. Del resto, **se Dio permettesse, che un Papa fosse notoriamente eretico, e contumace, egli cesserebbe d'esser Papa, e vacherebbe il Pontificato.** Ma se fosse eretico occulto, e non proponesse alla Chiesa alcun falso Dogma, allora niun danno alla Chiesa recherebbe: dobbiam giustamente presumere, come dice il Cardinal Bellarmino, che Iddio non mai permetterà, che alcuno de' Pontefici Romani, anche come uomo privato, diventi eretico nè notorio, nè occulto."
(9. Nor does it matter that in past centuries some Pontiff was illegitimately elected, or fraudulently intruded himself into the Pontificate; it is enough that he was afterwards accepted by the whole Church as Pope, since by such acceptance he has become legitimate and true Pontiff. **But if for some time he had not been truly accepted universally by the Church, in that case for that time the Pontifical See would have been vacant, as it is vacant at the death of the Pontiffs.** Nor, likewise, does it matter that in a case of schism there was long doubt as to who was the true Pontiff; for then one would have been the true one, though not sufficiently known; and if none of the antipopes had been true, then the Pontificate would likewise have been vacant. 10. As for some Pontiffs having fallen into heresy, some have tried to prove it, but have never proved it, nor ever will; and we shall clearly prove the contrary at the end of Chapter X. For the rest, **if God permitted a Pope to be notoriously heretical and contumacious, he would cease to be Pope, and the Pontificate would be vacant.** But if he were an occult heretic and did not propose any false dogma to the Church, then he would do the Church no harm; we must justly presume, as Cardinal Bellarmine says, that God will never permit any Roman Pontiff, even as a private man, to become a heretic, either notorious or occult. Author's translation.)

Context: St Alphonsus is defending the unbroken succession of the Roman Pontiffs against Protestant objections; n. 8 deals with the Avignon residence. His examples in n. 9 are illegitimate election and fraudulent intrusion. The archive.org OCR prints the long s as "f" ("Chiefa", "fiato"). This has been normalised to modern spelling (Chiesa, stato), and the punctuation that the OCR garbled has been restored.

What this means. Billot's principle is stronger than a cure for defects in the election. In his words the Church's adhesion also "infallibly shows the existence of all the required conditions", and he uses it to argue that Alexander VI was not a heretic of the kind that loses membership. So the answer cannot be

that acceptance covers only the election, for Billot's own text says otherwise. What both authors grant is narrower, and it matters here.

- A long vacancy is possible (Billot).
- The sign works only when the acceptance is that of the *whole* Church: "Ecclesia tota", "tutta la Chiesa", "veramente accettato universalmente". Without true universal acceptance, St Alphonsus says, the See is vacant for that time.
- St Alphonsus also holds that a notoriously heretical pope "would cease to be Pope", though he presumes that God will never permit it.

So the real question is whether the acceptance of the post-conciliar claimants is the adhesion of the whole Church in Billot's sense. Billot grounds his principle in the pope being the "living rule" of faith that the Church follows. The sedevacantist argues that a Church adhering to a rule that contradicts her own earlier dogma (§§3–4) would be exactly what Billot calls impossible. Therefore, the argument runs, this acceptance is not the Church's adhesion in his sense. A defender of the principle answers that a dissenting minority does not destroy the Church's moral unanimity. The two principles collide here, and the reader should see that plainly. This paper holds that the integrity of the Church's teaching, laws and rites (Principle 1) is the firmer of the two: popes and councils teach it directly, whereas the acceptance principle is a theologians' conclusion drawn from it. Dissent from the conciliar changes also began early. In 1969 Cardinals Ottaviani and Bacci protested the new Mass to Paul VI, though they did not question his office.

"Why not simply recognize the pope and resist his errors, as the Society of St Pius X does?"

Because that position meets the same difficulty in a worse form. If the recognized pope and bishops really are the Church's authority, then the Church's authority has given the whole Church error in doctrine, harmful universal law and doubtful sacraments, which Principle 1 says cannot happen. Fr Anthony Cekada put the choice this way:

> **Fr Anthony Cekada**, "Resisting the Pope, Sedevacantism and Frankenchurch" (2005):
> "**Since the authority of the Church cannot give evil or error, and since individual Catholics may not "resist" a true pope, R&R-ers face three possible conclusions:** (1) The New Mass and Vatican II teachings are Catholic. (…) (2) The authority of the Catholic Church has defected. (…) (3) The New Mass and the Vatican II teachings are not Catholic, and so could not have come from the authority of the Church. (…) The evils and errors most traditionalists acknowledge, in other words, are solid evidence that the lawgivers lost their authority. Sedevacantism merely tries to explain how."
>
> *Context:* "R&R" is Cekada's term for the "recognise and resist" position of the Society of St Pius X and its allies. The omitted parentheses are satirical asides on each option. He goes on to argue, from canon 188 and the canonists, that a cleric who publicly defects from the faith loses his office.

Only the third conclusion keeps the Church indefectible. Archbishop Lefebvre himself faced the same facts in 1984 and drew a different conclusion:

> **Archbishop Lefebvre**, letter of 1984 (quoted in Tissier de Mallerais, *Marcel Lefebvre: The Biography*, 2004, p. 534):
> "**One has had to live from 1960 to the present moment to discover that Popes can lead the Church to her ruin.** Such a thing seemed impossible to us, given the promises of the Holy Ghost's assistance. Contra factum non fit argumentum. Against the facts, there is no argument. The facts are there before our eyes. So, we have to conclude that when our Lord spoke of help until the end of time, he did not exclude periods of darkness and a time of Passion for His mystical Spouse."
>
> *Context:* Lefebvre wrote this to friends who had recommended Fr Emmanuel's nineteenth-century pages on the "Passion of the Church", which he had just read. He concluded that true popes can do this and that Christ's promise allows it as a "Passion".

Lefebvre admits that the Holy Ghost's promised assistance seemed to make this impossible. He then sets the promise aside in favour of the facts. This paper keeps both: the facts are as he describes, and the promise excludes that the Church's own authority should cause them through her official teaching, laws and rites (Principle 1). Therefore, this paper concludes, those who caused them did not hold that authority.

The jurisdiction question also applies equally to the Society: its bishops were consecrated against the express will of the man it recognizes as pope.

“Sedevacantists cannot even agree among themselves.”

They agree on the conclusion argued here: the conciliar teaching contradicts the Church’s teaching, so its authors do not hold the Church’s authority. They disagree on secondary questions such as how a future pope will be elected. Disagreement about what follows from a conclusion is not evidence against the conclusion.

11. Conclusion

The Church cannot give her children error, harmful laws or doubtful sacraments. Since the Council, the authorities in Rome have contradicted, in official and universal acts, the express teaching and law of the popes before them. Their defenders admit that a real change took place; they deny that it touches doctrine. The texts set side by side in this paper are the reader's means of judging that claim. The Church cannot have failed. Therefore those authorities do not possess the Church's authority, and the Holy See is vacant.

This conclusion does not abandon the papacy; it is the only one that keeps intact what the popes taught about the papacy. It leaves a hard question about how the Church's hierarchy will be restored. That question is real, but it is a question about the future. The alternative, that the Church herself has taught error, would be a contradiction of the faith.

> "But yet the Son of man, when he cometh, shall he find, think you, faith on earth?" (Luke 18:8, Douay-Rheims)

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